

PNC

PNC Infratech Limited Project Name- Chakeri - Allahabad NH-2

1	Work Order No. & Date	PNC/CAP/STR/CAMP-3/439 (Extn-2) Dt.29-04-23
2	Type of Sub Contract	Work order for Drain Work With Shuttering Material & PCC on Separator at RE Wall portion of Chakeri - Allahabad Project.
3	SC Work Period - From and To	1-May-23 To 31-Jul-23 3 Months
4	Name of the Sub Contractor (S/C)	M/S. UTKARSH INFRATECH BUILDER & CONTRACTOR
5	Address of the Sub Contractor	Ground Floor, Khasara No. 1229, Meera Vihar, Pancham Kheda Road, Haiwatmau Mawaiya RBL Road, Lucknow - 226002 (UP) Mob: 7509123767 E-mail: uddmishra105@gmail.com
6	Pan Card No	BXSPM6841F
7	GSTIN	09BXSPM6841F1ZW
8	Vendor Code	1205294

SUMMARY BILL OF QUANTITIES

SI	Item Description	Unit	Quantity	Rate	Amount
A) Drain Work With Shuttering Material					
Dressing & Preparation of bed for PCC. Cutting Bending & Fixing of reinforcement as per design, fixing of shuttering & deshuttering, fixing of Weep hole and concreting and curing as per design and direction of site In-charge (Including binding wire and wooden Plank as per drawing), Complete PCC, Raft & Wall & Cover.					
1	Height upto 1.0mtr (With Cover)	Rmt	300	850 ✓	255,000
2	Height Upto 1.0m (Without Cover)	Rmt	100	700 ✓	70,000
3	Height Upto 1.0m-1.5m (With Cover)	Rmt	200	1100 ✓	220,000
4	Height Upto 1.0m-1.5m (Without Cover)	Rmt	50	850 ✓	42,500
5	Height Upto 1.5m-2.0m (With Cover)	Rmt	100	1300 ✓	130,000
6	Height Upto 1.5m-2.0m (Without Cover)	Rmt	50	1200 ✓	60,000
7	Height above -2.0m (With Cover)	Rmt	50	1500 ✓	75,000
8	Height above -2.0m (Without Cover)	Rmt	50	1350 ✓	67,500
9	RCC Drain Cover Slab (cast-in-situ/pre-cast) with Cutting Bending & Fixing of reinforcement as per design & drawing, fixing of shuttering & de-shuttering, Erection (1.0m x 2.0m x 0.110m). Steel, RMC & machinery provided by PNC.	Rmt	1,000	150 ✓	150,000
B) Laying of Separator PCC (Labour Rate)					
1	Laying of PCC in Footpath/Separator at RE wall portion including dressing of bed as per Drawing and technical Specification (Labour rate).	Rmt	2,000	50 ✓	100,000
Total Amount of Work Order in Rs.					1,170,000

General Terms & Conditions

1	Sub-contractors have to mobilize manpower and shuttering/staging/centering material, tools & tackles /consumables within seven days of issue of work order.
2	Sub-contractor will arrange accommodation to his staff at site on his own
3	The period of work will be 3 (Three) months, effective from date of issuance of the work order.
4	Sub-contractor shall execute the work as per approved drawings.
5	All the work shall be done as per MORT & H specification for Road & Bridge (fifth revision) and all necessary testing shall be done in laboratory in PNC.
6	Sub-contractor shall abide of all safety standards, specification and practices in construction of Highway/Bridge works as well as strictly follow the Instruction of PNC Engineers and also shall be responsible for safety of his staff and employee. The entire safety appliance required like helmets, shoes, belt etc. Shall be arranged by sub- contractor at his own, any mis-happening /accident shall be responsibility of sub-contractor.
7	The work will be supervised by PNC Engineers as well as Authority Engineer's representative and subcontractor shall follow their instructions.
8	You shall follow the COVID-19 rules as advised by Govt. of India.
9	Progress review meeting will be held on weekly basis in the event any particulars activity is found to be lagging behind and have a potential of affecting other activities adversely there by delaying the completion of work. Under these circumstances PNC will be free to withdraw that particular activity from scope of work and shall get it executed on risk and cost of the subcontractor.
10	All the quantities shall be measured as per approved design and Drawings.

29/04/2023



PNC Infratech Limited

An ISO 9001 : 2015 Certified Company

Ref: PNC/CAP/MISC.-CIVIL/CAMP-3/439 (Extn-3)
Dated: 29.04.2023

M/s UTKARSH INFRATECH BUILDER & CONTRACTOR

Ground Floor, Khasara No. 1229,
Meera Vihar, Pancham Kheda Road,
Haiwatmau Mawaiya RBL Road,
Lucknow - 226002 (UP)
Mob: 7509123767
E-mail: uddmishra105@gmail.com
GSTIN: 09BXSPM6841F1ZW

Sub: Six Laning Chakeri- Allahabad Section of NH-02 from Km.483.687 to Km. 620.753 in the state of Uttar Pradesh under NHDP-V on Hybrid Annuity Mode.

Reg: Work order for Construction of 2 Nos. Highway Nest at Toll Plaza 1 @ Ch 527+310 (DI19) for Chakeri Allahabad Project (NH-2).

Dear Sir,

With reference to above cited subject, we are pleased to place work order as per details given below:

Sl.	Item	Project Chainage
1.	Construction of 2 Nos. Highway Nest at Toll Plaza-1 @ Ch 527+310 (BHS) completed in all respect as per drawing and specifications. In Hand Drawing - Copy Enclosed	Ch.527+310 (BHS)

The accepted BOQ on Plinth Area Basis of above work is enclosed herewith in Annexure - "A".

A. SCOPE OF WORK :

Sl. No	Description of Work
1	Site Development & Earth Work :- Excavation, Back Filling from Available Earth at site (Borrow Earth shall be in Scope of PNC).
2	Ant termite Treatments
3	Concrete - Plain and Reinforced Work (Cast In Situ) Plain Cement Concrete - Footing. Reinforced Cement Concrete (Using Site Mix) - Column, Beam, Slabs M25/M20 /M30
4	Centering & Shuttering :- Shuttering
5	Reinforcement :- TMT Bars
6	Brick Work :- Brickwork 230 MM, Brickwork 115 MM (2 nd Class Brick)
7	Plaster Work :- Internal Wall, Ceiling, External
8	Plinth Protection :- Plinth Protection
9	Waterproofing & Brickbat Coba :- Water Proofing Protection Plaster, Terrace Water Proofing, Terrace Water Proofing Protection Plaster, Brick Bat Coba, Gola & Khurras.
10	Flooring & Tiling :- Flooring Vitrified / Ceramic / wall tiles, Kota Stone, IPS, Marble in Stairs case as per Schedule of finishes.
11	Structural Steel Work:- Structure Steel & Rolling Shutter.
12	Wood Work & Aluminium/ UPVC Doors : Doors, window As per Schedule of Finishes.
13	Painting Work :- -
14	Electrical Works -
15	Plumbing Work As per Specifications. ISI Make.

Page 1 of 3



Corporate Office : PNC Tower,
3/22-D, Civil Lines, Bypass Road,
NH-2, Agra-282002

Tel : 91-562-4054400 (30 Lines)
91-562-4070000 (30 Lines)

Fax : 91-562-4070011

Email : ho@pncinfratech.com

Regd. Office : NBCC Plaza, Tower II,
4th Floor, Pushp Vihar, Sector-V, Saket
New Delhi-110017 (India)

Tel : 91-11-29574800 (10 Lines)
91-11-29568511, 64724122

Fax : +91-11-29563844

Email : delhioffice@pncinfratech.com
Web : www.pncinfratech.com
CIN : L45201DL1999PLC195937

PNC INFRATECH LTD				
Name of Project :- Six Laning of Chakeri-Allahabad Road Project (From km 483+687 to km 628+753) of NH-02 In state of Utter Pradesh Under NHDP Phase-V on Hybrid Annuity Mode				
BOQ Construction of Highway Nest @ Toll Plaza Chainage 527+310 (BHS)				
Annexure -A				
S No	Building Description	Completion Stage % basis	Part Rate on % Completion (Rs)	Highway Nest Building 2 Nos.
A	Plinth Area of Building			SFT
B	Total Area for 2 Nos (BHS)			149.590 ✓
C	Plinth Area Rate (Rs) per Sft			299.179 ✓
Payment Terms				1450 ✓
		Amount % Completion Basis		
1	Ground Floor			
i	Plinth Beam	20%	290.00	86,762
ii	Slab	25%	362.50	108,152
iii	Brick Work & Plaster	15%	217.50	65,071
iv	Door Frames & Flooring	15%	217.50	65,071
v	Finishing Work (Paint , Plumbing, Electrical Point Wiring)	20%	290.00	86,762
vi	On Possession	5%	72.50	21,690
	Ground Floor Total	100%	1,450	433,810
2	Total Project Cost ==>>			433,810

29/4/23

29/4/23



PNC Infratech Limited

Ref: PNC/CAP/MISC-CIVIL/CAMP-3/439
Dated: 16.01.2023

M/s UTKARSH INFRATECH BUILDER & CONTRACTOR

Ground Floor, Khasara No. 1229,
Meera Vihar, Pancham Kheda Road,
Haiwatmau Mawaiya RBL Road,
Lucknow - 226002 (UP)
Mob: 7509123767
E-mail: uddmishra105@gmail.com
GSTIN: 09BXSPM6841F1ZW

Sub: Six Lining Chakeri- Allahabad Section of NH-02 from Km.483.687 to Km. 628.753 in the state of Uttar Pradesh under NHDP-V on Hybrid Annuity Mode.

Reg: Work order for Construction of Truck Lay Bye at Ch 619+800 (RHS) for Chakeri Allahabad Project (NH-2).

Dear Sir,

With reference to above cited subject, we are pleased to place work order as per details given below:

Sl.	Item	Project Chainage
1.	Construction of Truck Lay Bye at Ch. 619+800 (RHS) completed in all respect as per drawing and specifications Drawing No. (1) PNC/AC/D150/DWG/TLB/04/R0 dated June-2020.	Ch.619+800 (RHS)

The accepted BOQ on Plinth Area Basis of above work is enclosed herewith in Annexure - "A".

A. SCOPE OF WORK :

Sl. No	Description of Work
1	Site Development & Earth Work :- → Excavation, Back Filling from Available Earth at site (Borrow Earth shall be in Scope of PNC).
2	Ant termite Treatments
3	Concrete - Plain and Reinforced Work (Cast In Situ) Plain Cement Concrete - Footing. Reinforced Cement Concrete (Using Site Mix) - Column, Beam, Slabs M25/M20 /M30
4	Centering & Shuttering :- Shuttering
5	Reinforcement :- TMT Bars
6	Brick Work :- Brickwork 230 MM, Brickwork 115 MM (2 nd Class Brick)
7	Plaster Work :- Internal Wall, Ceiling, External
8	Plinth Protection :- Plinth Protection
9	Waterproofing & Brickbat Coba :- Water Proofing Toilets and Others, Waterproofing Protection Plaster, Terrace Water Proofing, Terrace Water Proofing Protection Plaster, Brick Bat Coba, Gola & Khurras.
10	Flooring & Tiling :- Flooring Vitrified / Ceramic / wall tiles, Kota Stone, IPS, Marble in Stairs case as per Schedule of finishes.
11	Structural Steel Work:- Structure Steel & SS Railing.
12	Wood Work & Aluminium/ UPVC Doors : Doors. window As per Schedule of Finishes.
13	Painting Work :- -
14	Electrical Works -
15	Plumbing Work As per Specifications. ISI Make.



Corporate Office : PNC Tower,
3/22-D, Civil Lines, Bypass Road,
NH-2, Agra-282002

Tel. : 91-562-4054400 (30 Lines)
91-562-4070000 (30 Lines)

Fax : 91-562-4070011

Email : ho@pncinfratech.com

Regd. Office : NBCC Plaza, Tower II,
4th Floor, Pushp Vihar, Sector-V, Saket
New Delhi-110017 (India)

Tel. : 91-11-29574800 (10 Lines)
91-11-29566511, 64724122

Fax : +91-11-29563844

Email : delhioffice@pncinfratech.com

Web : www.pncinfratech.com

CIN : L45201DL1999PLC195937



PNC Infratech Limited

Ref: PNC/CAP/MISC-WORK/CAMP-3/439 (Extn-1)
Dated: 17.01.2023

ISO 9001:2015 Certified Company

M/s UTKARSH INFRATECH BUILDER & CONTRACTOR

Ground Floor, Khasara No. 1229,
Meera Vihar, Pancham Kheda Road,
Haiwatmau Mawaiya RBL Road,
Lucknow – 226002 (UP)
Mob: 7509123767
E-mail: uddmishra105@gmail.com
GSTIN: 09BXSPM6841F1ZW

Sub: Six Laning of Chakeri-Allahabad section of NH 2 (from Km 483.687 to Km 620.753) in the state of Uttar Pradesh under NHDP Phase V on Hybrid Annuity Mode.

Reg: Work order for Construction of Bus Shelters at Ch.619+650 (LHS), 620+835, 625+112, 628+160 (RHS) for Chakeri – Allahabad Road Project.

Ref: As per your request letter dated 26.12.2022.

Dear Sir,

With reference to your request letter dated 26.12.2022 & discussions held with you, we are pleased to place work order as per details given below:

Sl. No.	Description	Quantity	Rate (Rs.)	Amount (Rs.)
1.	Construction of Bus Shelters completed in all respect as per drawing and specifications. Drawing no. PNC/AC/D150/DWG/BB/11/R0 dated July'2021. (Copy enclosed). Ch.619+650 (LHS) & 620+835, 625+112, 628+160 (RHS)	4 Nos.	3,00,000/- ✓	12,00,000/-

Terms & Conditions:-

1. Work is to be executed as per approved drawing no. PNC/AC/D150/DWG/BB/11/R0 dated July'2021. (Copy Enclosed).
2. TDS, Labour Cess or any other tax as applicable shall be deducted.
3. GST as applicable shall be paid extra.
4. **Payment Terms:**
 - i) 20% on completion of Structure work upto Slab bottom.
 - ii) 30% on Laying of Roof slab.
 - iii) 50% on completion of Bus Shelter complete in all respects.
5. **Retention Money:** 6% Retention shall be kept withheld from your bills and shall be released after 12 months of successful completion.
6. All material/Labour/Tools & Tackles required for work is to be arranged by you.
7. Defect Liability Period (DLP) is of one year from successful completion of work.
8. The period of work will be 03 (Three) months, effective from date of issuance of the work order. The contract period and rates shall be deemed to include the rainy days and period of inclement weather that may be experienced during the course of the construction. No claim shall be entertained by Company for any extra cost or incidental expenses, extension of time due to this factor or idling of resources.



Corporate Office : PNC Tower,
3/22-D, Civil Lines, Bypass Road,
NH-2, Agra-282002

Tel. : 91-562-4054400 (30 Lines)
91-562-4070000 (30 Lines)

Fax : 91-562-4070011

Email : ho@pncinfratech.com

Regd. Office : NBCC Plaza, Tower II,
4th Floor, Pushp Vihar, Sector-V, Saket
New Delhi--110017 (India)

Tel. : 91-11-29574800 (10 Lines)
91-11-29566511, 64724122

Fax : +91-11-29563844

Email : delhioffice@pncinfratech.com
Web. : www.pncinfratech.com
CIN : L45201DL1999PLC195937



PNC Infratech Limited
Project Name- Chakeri - Allahabad NH-2

1	Work Order No. & Date	PNC/CAP/STR/CAMP-3/439 (Extn-2) Dt.29-04-23
2	Type of Sub Contract	Work order for Drain Work With Shuttering Material & PCC on Separator at RE Wall portion of Chakeri - Allahabad Project.
3	SC Work Period - From and To	1-May-23 To 31-Jul-23 3 Months
4	Name of the Sub Contractor (S/C)	M/S. UTKARSH INFRATECH BUILDER & CONTRACTOR
5	Address of the Sub Contractor	Ground Floor, Khasara No. 1229, Meera Vihar, Pancham Kheda Road, Haiwatmau Mawaiya RBL Road, Lucknow - 226002 (UP) Mob: 7509123767 E-mail: uddmishra105@gmail.com
6	Pan Card No	BXSPM6841F
7	GSTIN	09BXSPM6841F1ZW
8	Vendor Code	1205294

SUMMARY BILL OF QUANTITIES

SI	Item Description	Unit	Quantity	Rate	Amount
A) Drain Work With Shuttering Material					
Dressing & Preparation of bed for PCC. Cutting Bending & Fixing of reinforcement as per design, fixing of shuttering & deshuttering, fixing of Weep hole and concreting and curing as per design and direction of site In-charge (Including binding wire and wooden Plank as per drawing), Complete PCC, Raft & Wall & Cover.					
1	Height upto 1.0mtr (With Cover)	Rmt	300	850 ✓	255,000
2	Height Upto 1.0m (Without Cover)	Rmt	100	700 ✓	70,000
3	Height Upto 1.0m-1.5m (With Cover)	Rmt	200	1100 ✓	220,000
4	Height Upto 1.0m-1.5m (Without Cover)	Rmt	50	850 ✓	42,500
5	Height Upto 1.5m-2.0m (With Cover)	Rmt	100	1300 ✓	130,000
6	Height Upto 1.5m-2.0m (Without Cover)	Rmt	50	1200 ✓	60,000
7	Height above -2.0m (With Cover)	Rmt	50	1500 ✓	75,000
8	Height above -2.0m (Without Cover)	Rmt	50	1350 ✓	67,500
9	RCC Drain Cover Slab (cast-in-situ/pre-cast) with Cutting Bending & Fixing of reinforcement as per design & drawing, fixing of shuttering & de-shuttering, fraction (1.0m x 2.0m x 0.110m). Steel, RMC & machinery provided by PNC.	Rmt	1,000	150 ✓	150,000

B) Laying of Separator PCC (Labour Rate)					
1	Laying of PCC in Footpath/Separator at RE wall portion including dressing of bed as per drawing and technical Specification (Labour rate).	Rmt	2,000	50 ✓	100,000
Total Amount of Work Order in Rs.					1,170,000

General Terms & Conditions

1	Sub-contractors have to mobilize manpower and shuttering/staging/centering material, tools & tackles /consumables within seven days of issue of work order.
2	Sub-contractor will arrange accommodation to his staff at site on his own
3	The period of work will be 3 (Three) months, effective from date of issuance of the work order.
4	Sub -contractor shall execute the work as per approved drawings.
5	All the work shall be done as per MORT & H specification for Road & Bridge (fifth revision) and all necessary testing shall be done in laboratory in PNC.
6	Sub-contractor shall abide of all safety standards, specification and practices in construction of Highway/Bridge works as well as strictly follow the instruction of PNC Engineers and also shall be responsible for safety of his staff and employee. The entire safety appliance required like helmets, shoes, belt etc. Shall be arranged by sub- contractor at his own, any mis-happening /accident shall be responsibility of sub-contractor.
7	The work will be supervised by PNC Engineers as well as Authority Engineer's representative and subcontractor shall follow their instructions.
8	You shall follow the COVID-19 rules as advised by Govt. of India.
9	Progress review meeting will be held on weekly basis in the event any particulars activity is found to be lagging behind and have a potential of affecting other activities adversely there by delaying the completion of work. Under these circumstances PNC will be free to withdraw that particular activity from scope of work and shall get it executed on risk and cost of the subcontractor.
10	All the quantities shall be measured as per approved design and Drawings.

[Signature]
29/04/2023

[Signature]

[Signature]



PNC Infratech Limited
Project Name- Chakeri - Allahabad NH-2

1	Work Order No. & Date	PNC/CAP/STR/CAMP-3/439 (Extn-2) Dt.29-04-23		
2	Type of Sub Contract	Work order for Drain Work With Shuttering Material & PCC on Separator at RE Wall portion of Chakeri - Allahabad Project.		
3	SC Work Period - From and To	1-May-23	To	31-Jul-23 3 Months
4	Name of the Sub Contractor (S/C)	M/S. UTKARSH INFRATECH BUILDER & CONTRACTOR		
5	Address of the Sub Contractor	Ground Floor, Khasara No. 1229, Meera Vihar, Pancham Kheda Road, Haiwatmau Mawaiya RBL Road, Lucknow - 226002 (UP) Mob: 7509123767 E-mail: uddmishra105@gmail.com		
6	Pan Card No	BXSPM6841F		
7	GSTIN	09BXSPM6841F1ZW		
8	Vendor Code	1205294		
11	Subcontractor shall submit RA bill on monthly basis. The Payment shall be made as per the certification and measurement by PNC.			
12	5% of bill amount shall be kept as retention money from RA bill and which shall be released after six months of successful completion of works.			
13	TDS, Labour Cess, shall be deducted as applicable. GST as applicable shall be payable extra.			
14	Mobilization and Interim advance will not be paid under any circumstance to be sub- contractor.			
15	The material issued to subcontractor through store of PNC shall be deducted in RA bills as per material issue / consumption statement of each month at market rates.			
16	No Escalation in rates shall be payable during the project and rates shall not be revised under any circumstances.			
17	Curing / storage of water shall be in your scope for which water shall be provided by PNC.			
18	RMC, HYSD bars, Tharmacol for expansion joint & Material for Cover block shall be given F.O.C. based on approved drawings & BBS. Extra Consumption shall be recovered from Sub-Contractors bill at applicable Market Rate. Measurement of steel shall be done on per BBS & laps & chairs shall be included only for reconciliation purpose. Tower Crane/Concrete Pump if required shall be provided free of cost as per decision of PNC.			
19	Dewatering if any by dewatering pump shall be paid extra @ Rs 200.00 per hour.			
20	The Sub-Contractor shall indemnify and keep indemnified the Employer against all claims, losses, damages, liabilities/obligations, deficiencies, injuries, taxes duties, and levies including damages and losses arising out of Agreement. The Parties further agree that Employer shall not be responsible for any liabilities whatsoever associated with the Agreement.			
21	The Sub-Contractor shall comply with the PF/ESI and workmen compensation rules applicable for his workers, make timely payment, submit all documents to the concerned authorities, and submit copies to PNC as documentary evidence. The Sub-Contractor shall obtain PF Account No. and provide the detail to PNC within 7 days of the start date of the work. The Sub-Contractor shall submit the register of wages and muster roll upon payment of wages to the workmen employed by the Sub-Contractor for the work every month. In case of failure of the Sub-Contractor to comply with PF rules or to pay wages in a timely manner, PNC shall deduct the amounts from the Sub-Contractor.			
22	In case of violation of any terms and conditions of this work order, PNC shall have a sole right to cancel the work order with immediate effect and balance payment of your dues/bills shall be forfeited and shall not be payable in any case.			
23	The disputes arising out of the contract either during the execution of the work or on completion which could not be amicably solved by the Engineer shall be referred to CMD of Employer for his decision; which will be binding on both the parties.			
Please acknowledge the acceptance and ensure timely execution of the work.				
Accepted For M/S. UTKARSH INFRATECH BUILDER & CONTRACTOR		Issued By PNC Infratech Limited		
Date :		Date : Dir (Tech)		
X1 Work Order Preparation & Verification :		Prepared by		
X2 Distribution		Recommended By		
X3 Work Order Approval Reference No. & Date		S/C	PNC Site	PNC Office PNC HO

Note: Quantity mentioned above is tentative and vary upto any extent (+/-).

29/04/2023

29/04/23

29/04/23



PNC Infratech Limited

An ISO 9001 : 2015 Certified Company

Ref: PNC/CAP/MISC.-CIVIL/CAMP-3/439 (Extn-3)
Dated: 29.04.2023

M/s UTKARSH INFRATECH BUILDER & CONTRACTOR

Ground Floor, Khasara No. 1229,
Meera Vihar, Pancham Kheda Road,
Haiwatmau Mawaiya RBL Road,
Lucknow - 226002 (UP)
Mob: 7509123767

E-mail: uddmishra105@gmail.com

GSTIN: 09BXSPM6841F1ZW

Sub: Six Laning Chakeri- Allahabad Section of NH-02 from Km.183.687 to Km. 620.753 in the state of Uttar Pradesh under NHDP-V on Hybrid Annuity Mode.

Reg: Work order for Construction of 2 Nos. Highway Nest at Toll Plaza 1 @ Ch 527+310 (DIIG) for Chakeri Allahabad Project (NH-2).

Dear Sir,

With reference to above cited subject, we are pleased to place work order as per details given below:

Sl.	Item	Project Chainage
1.	Construction of 2 Nos. Highway Nest at Toll Plaza-1 @ Ch 527+310 (BHS) completed in all respect as per drawing and specifications. In Hand Drawing - Copy Enclosed	Ch.527+310 (BHS)

The accepted BOQ on Plinth Area Basis of above work is enclosed herewith in Annexure - "A".

A. SCOPE OF WORK :

Sl. No	Description of Work
1	Site Development & Earth Work :- Excavation, Back Filling from Available Earth at site (Borrow Earth shall be in Scope of PNC).
2	Ant termite Treatments
3	Concrete - Plain and Reinforced Work (Cast In Situ) Plain Cement Concrete - Footing. Reinforced Cement Concrete (Using Site Mix) - Column, Beam, Slabs M25/M20 /M30
4	Centering & Shuttering :- Shuttering
5	Reinforcement :- TMT Bars
6	Brick Work :- Brickwork 230 MM, Brickwork 115 MM (2 nd Class Brick)
7	Plaster Work :- Internal Wall, Ceiling, External
8	Plinth Protection :- Plinth Protection
9	Waterproofing & Brickbat Coba :- Water Proofing Protection Plaster, Terrace Water Proofing, Terrace Water Proofing Protection Plaster, Brick Bat Coba, Gola & Khurras.
10	Flooring & Tiling :- Flooring Vitrified / Ceramic / wall tiles, Kota Stone, IPS, Marble in Stairs case as per Schedule of finishes.
11	Structural Steel Work:- Structure Steel & Rolling Shutter.
12	Wood Work & Aluminium/ UPVC Doors : Doors. window As per Schedule of Finishes.
13	Painting Work :- -
14	Electrical Works -
15	Plumbing Work As per Specifications. ISI Make.

Page 1 of 3



Corporate Office : PNC Tower,
3/22-D, Civil Lines, Bypass Road,
NH-2, Agra-282002

Tel. : 91-562-4054400 (30 Lines)
91-562-4070000 (30 Lines)

Fax : 91-562-4070011

Email : ho@pncinfratech.com

Regd. Office : NBCC Plaza, Tower II,
4th Floor, Pushp Vihar, Sector-V, Saket
New Delhi-110017 (India)

Tel. : 91-11-29574800 (10 Lines)
91-11-29569511, 64724122

Fax : +91-11-29563844

Email : delhioffice@pncinfratech.com

Web. : www.pncinfratech.com

CIN : L45201DL1999PLC195937

B. TERMS AND CONDITIONS:

The Sub-contract shall comply fully and strictly in accordance to (but not limited to) the Sub-contract condition as below:-

1. The scope of work covers supply of all materials, machinery, Labour with multiple mobilizations as required for execution and completion of the above said work unless otherwise specified elsewhere in this agreement.
2. The Sub Contractor has to make the necessary arrangements at his own cost for accommodating manpower/arrangement of water/electricity and this is deemed to be included in the item rates and amounts.
3. The period of work will be 2 (Two) months, effective from date of issuance of the work order handing over of site. The contract period and rates shall be deemed to include the rainy days and period of inclement weather that may be experienced during the course of the construction. No claim shall be entertained by Company for any extra cost or incidental expenses, extension of time due to this factor or idling of resources. Date of Start shall be 01.05.2023 for Highway Nest @ Ch.527+310 on BHS.
4. The Sub Contractor shall execute the work as per approved drawings and specifications.
5. All the work shall be done as per MORT&H specification for Road & Bridge (fifth revision) and all necessary testing shall be done in laboratory in PNC. All the materials to be used shall of I.S. standards and shall be inspected and approved by PNC Project Head Prior to use. Cement and steel shall be used as per the NHAI's approved list of suppliers for the project.
6. The rates stated in the BOQ shall be inclusive of all direct and indirect costs, all taxes, duties, statutory legal and contractual compliances, overheads and profit margin for executing the Piece Rate Contract work comprising of, but not limited to, Labour costs, material costs (including all materials incorporated in permanent works, consumables, materials used in temporary works etc.), loading and unloading, handling and storage costs, re-handling where required, cost of testing of material and other testing as required during the execution of the Piece Rate Contract work, necessary formwork, scaffolding, staging and all temporary works, all plant & machinery cost including their operation, maintenance & fuel, safety equipment and measures, mobilization & demobilization of manpower, plant & machinery, materials etc. at site.
7. The Sub Contractor shall abide of all safety standards, specification and practices in construction of Highway works as well as strictly follow the Instruction of PNC Engineers and also shall be responsible for safety of his staff and employee. The entire safety appliance required like helmets, shoes, belt etc. Shall be arranged by Sub Contractor at his own, any miss-happening /accident shall be responsibility of sub-contractor.
8. The work will be supervised by PNC Engineers as well as Authority Engineer's representative and subcontractor shall follow their instructions.
9. Progress review meeting will be held on weekly basis in the event any particulars activity is found to be lagging behind and have a potential of affecting other activities adversely there by delaying the completion of work. Under these circumstances PNC will be free to withdraw that particular activity from scope of work and shall get it executed on risk and cost of the subcontractor.
10. This is a Plinth Area basis contract. The executed work shall be paid under different stages of payment at unit rates set out in the BOQ. Subcontractor shall submit RA bill on monthly basis. The Payment shall be made as per the certification and measurement certified by PNC based on actual execution at site. Final measurements will depend on final certification of measurements by PNC.
11. **Retention Money:** 5% of bill amount shall be kept as retention money from RA bill and which shall be released after completion of Defects Liability Period of one year.
12. TDS, Labour Cess shall be deducted as applicable. GST as applicable shall be payable extra.
13. The Sub Contractor shall indemnify and keep indemnified the Employer against all claims, losses, damages, liabilities/obligations, deficiencies, injuries, taxes duties, and levies including damages and losses arising out of Agreement. The Parties further agree that Employer shall not be responsible for any liabilities whatsoever associated with the Agreement.

14. The Sub Contractor shall comply with the PF/ESI rules applicable for his workers, make timely payment, submit all documents to the concerned authorities, and submit copies to PNC as documentary evidence. The Sub Contractor shall obtain PF Account No. and provide the detail to PNC within 7 days of the start date of the work. The Sub Contractor shall submit the register of wages and muster roll upon payment of wages to the workmen employed by the Sub Contractor for the work every month. In case of failure of the Sub Contractor to comply with PF rules or to pay wages in a timely manner, PNC shall deduct the amounts from the Sub Contractor's dues and make the payments directly as appropriate.
15. The disputes arising out of the contract either during the execution of the work or on completion which could not be amicably resolved by the Engineer shall be referred to MD of PNC for his decision; which will be binding on both the parties.
16. The rates shall not be subject to any fluctuation of the rates of materials, manpower or any other item directly or indirectly involved in the work.
17. Defects liability period shall be one year.
18. You will follow the COVID-19 related guidelines as and when issued by Central / State Govt.
19. No subletting of the work will be allowed.
20. If any material issued to Sub Contractor through store of PNC shall be deducted @ Market Rate in RA bills as per material issue / consumption statement of each month.

Please acknowledge the acceptance and ensure timely execution of the work.

Thanking you.

Yours truly,
For PNC INFRATECH LIMITED

Accepted
For M/s UTKARSH INFRATECH BUILDER & CONTRACTOR

(ANIL KUMAR RAO)
Director (Tech)

(Authorized Signatory)

Encl.: Annexure- "A".

PNC INFRATECH LTD				
Name of Project :- Six Laning of Chakeri-Allahabad Road Project (From km 483+687 to km 628+753) of NH-02 In state of Utter Pradesh Under NHDP Phase-V on Hybrid Annuity Mode				
BOQ Construction of Highway Nest @ Toll Plaza Chainage 527+310 (BHS)				
	Annexure -A			
S No	Building Description	Completion Stage % basis	Part Rate on % Completion (Rs)	Highway Nest Building 2 Nos.
A	Plinth Area of Building			SFT
B	Total Area for 2 Nos (BHS)			149.590 ✓
C	Plinth Area Rate (Rs) per Sft			299.179 ✓
				1450 ✓
	Payment Terms	Amount % Completion Basis		
1	Ground Floor			
i	Plinth Beam	20%	290.00	86,762
ii	Slab	25%	362.50	108,152
iii	Brick Work & Plaster	15%	217.50	65,071
iv	Door Frames & Flooring	15%	217.50	65,071
v	Finishing Work (Paint , Plumbing, Electrical Point Wiring)	20%	290.00	86,762
vi	On Possession	5%	72.50	21,690
	Ground FloorTotal	100%	1,450	433,810
2	Total Project Cost ==>			433,810 ✓

29/11/23

29/11/23

Handwritten signature

Handwritten signature

DOOR

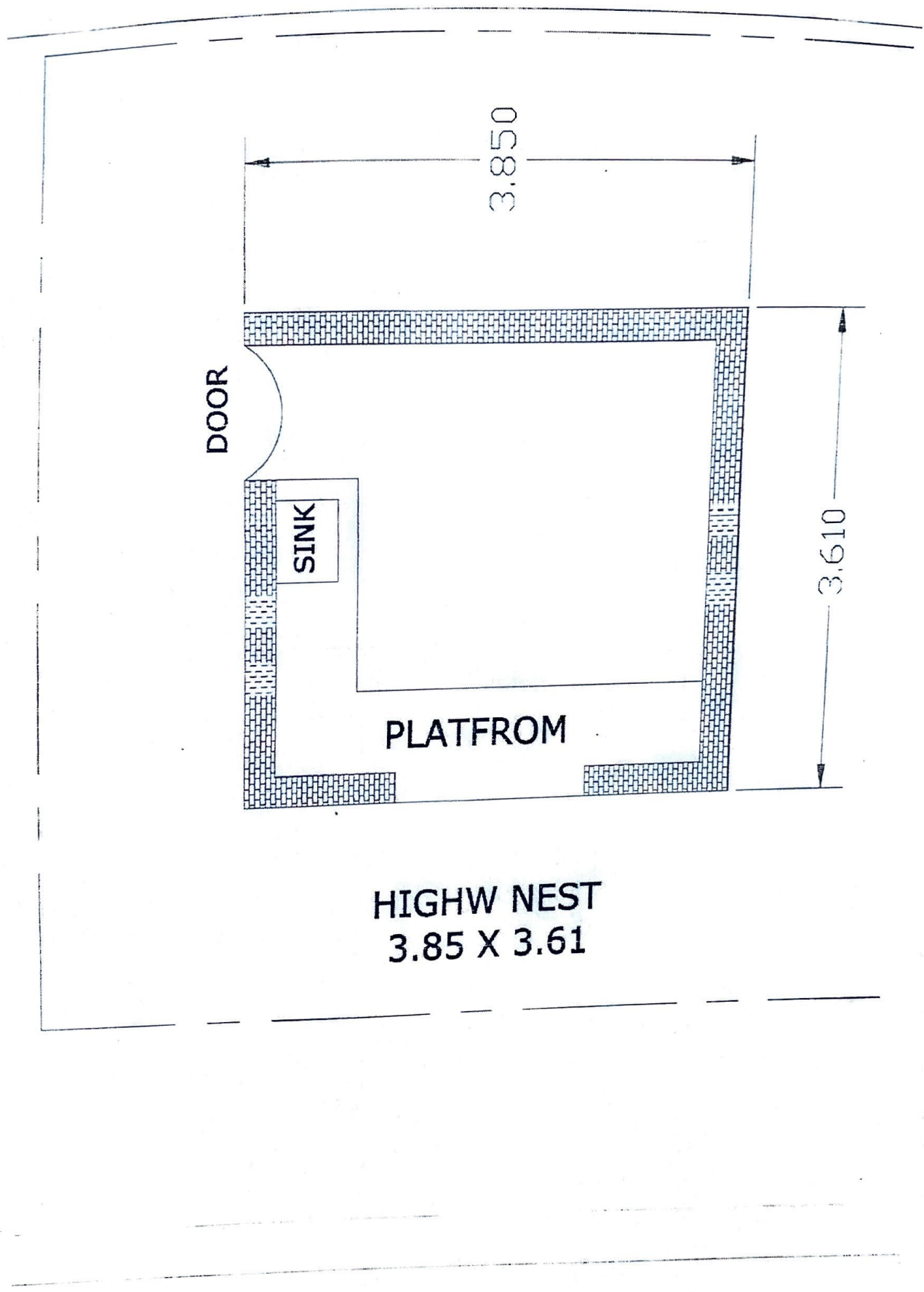
SINK

PLATFROM

3.850

3.610

HIGHW NEST
3.85 X 3.61





Amendment of Work Order

PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM		Project Name	Barabanki Water Project (7012)
		Vendor Code	1205294
		Work Order No.	8500006874
		Work Order Date	24.08.2023
PAN No.	BXSPM6841F	Ref. No.	WV-1049
GSTIN	09BXSPM6841F1ZW	Amend. No. & Dt.	R2 / 16.04.2024
Billing Address: PNC INFRATECH LIMITED 3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)		Consignee Address: PNC INFRATECH LIMITED Gata 55,72,74,Nawabganj,Barabanki Dehat, BARABANKI-225001 Uttar Pradesh	
PAN No.	AACCP0377Q	PAN No.	
GSTIN	09AACCP0377Q1ZU	GSTIN	09AACCP0377Q1ZU

Order For: Construction of Miscellaneous Civil Work in the state of Uttar Pradesh under the Jal Jeevan Mission for Barabanki District in Ayodhya Division.

Reference: Recommended by PM Barabanki

We are pleased to place our work order for the following services on you. You are requested to provide the services in accordance with particulars and conditions given below and confirm acceptance of the order by return mail.

Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
10	995424	CM-1 Const.of Civil Work {GP: Baraiya ; Block: Suratganj}				
1.01	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of Earth Work, PCC, RCC & Brick masonry work up to plinth level	MTR	91.200	1,197.00	109,166.40
1.02	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of Super structure	MTR	91.200	1,197.00	109,166.40
1.03	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of plastering and pointing	MTR	91.200	798.00	72,777.60
1.04	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m	MTR	91.200	399.00	36,388.80

Praveen

Quany

bs

25/8/24





Work Order PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM		Project Name	Barabanki Water Project (7012)			
		Vendor Code	1205294			
		Work Order No.	8500006874			
		Work Order Date	24.08.2023			
PAN No.	BXSPM6841F	Ref. No.	WV-1049			
GSTIN	09BXSPM6841F1ZW	Amend. No. & Dt.	R2 / 16.04.2024			
Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
		as per departmental type design, drawing and specifications. On Completion of painting (1 coat of Primer and 2 coat weather proof exterior emulsion paint) and finishing.				
1.05	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Handed over the work to concern department	MTR	91.200	399.00	36,388.80
1.06	995424	Supply of all material, fabrication and fixing of 3.6 m x 1.20 m MS gate and construction of boundary wall pillars of size 1.35mx0.23mx0.23m with ornamental brick work 115mm thick around RCC, as per departmental type design, drawing and specifications in the bid document including material, labour and equipments etc complete.	NO	1.000	45,000.00	45,000.00
1.07	995424	Supply of all material, fabrication and fixing of 1.2m wide MS wicket gate and construction of boundary wall pillars as per departmental type design, drawing and specifications in the bid document including material, labour and equipment's etc complete.	NO	1.000	15,000.00	15,000.00
1.08	995424	Construction of Interlocking pavement for approach to water works, as per departmental type design, drawing and specifications, including material, labour and equipment's etc. complete.	M2	70.000	835.00	58,450.00
1.09	995424	Construction of granular sub base by providing coarse grade materials, spreading in uniform layers including watering and compaction complete.	M3	14.000	2,550.00	35,700.00
1.10	995424	Construction of WBM by providing grade materials, spreading in uniform layers including watering and compaction complete.	M3	10.500	2,850.00	29,925.00
1.11	995424	Construction of inside semi-circular drain 200mm dia including material, labour and equipment's etc. complete.	MTR	30.400	720.00	21,888.00
1.12	995424	Construction of Pump house size(2.5mx3mx3m),Chlorinating room size(2.5x1.3x3)as per departmental type design, drawing and specifications, including supply of all material,labour,Tool Plant etc. complete. On Completion of foundation up to plinth level	NO	1.000	90,000.00	90,000.00
1.13	995424	Construction of Pump house size(2.5x3x3)m, Chlorinating room size (2.5x1.3x3)m as per departmental type design,drawing and specifications, including supply of all material,labour,Tool & Plant etc.	NO	1.000	126,000.00	126,000.00



Work Order

PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL: ho@pncinfratech.com, URL: www.pncinfratech.com
CINNo: L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM			Project Name		Barabanki Water Project (7012)		
			Vendor Code		1205294		
			Work Order No.		8500006874		
			Work Order Date		24.08.2023		
PAN No.		BXSPM6841F		Ref. No.		WV-1049	
GSTIN		09BXSPM6841F1ZW		Amend. No. & Dt.		R2 / 16.04.2024	
Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount	
		complete. On completion of superstructure and wall with Door, window frame and roof slab					
1.14	995424	Construction of Pump house size (2.5x3x3) m, Chlorinating room size (2.5x1.3x3) m as per departmental type design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete. On completion of plastering, Installation of door, window shutters/grills and painting of all surfaces (Exterior: 1 coat Primer and 2 coat weather proof exterior emulsion paint, Interior: 1 coat Primer and 2 coat Oil Bound Distemper)	NO	1.000	72,000.00	72,000.00	
1.15	995424	Construction of Pump house size (2.5x3x3) m, Chlorinating room size (2.5x1.3x3) m as per departmental type design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete. On Completion of finishing including electrical wiring and installation	NO	1.000	72,000.00	72,000.00	
1.16	995424	Construction of Bye-pass chamber for pump house {1000(L)X1000(W)X1150(H)mm} as per design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete.	NO	1.000	14,500.00	14,500.00	
20	995424	CM-1 Const.of Civil Work{GP: Bhagwanpur; Block: Harakh}					
2.01	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of Earth Work, PCC, RCC & Brick masonry work up to plinth level	MTR	145.200	1,197.00	173,804.40	
2.02	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of Super structure	MTR	145.200	1,197.00	173,804.40	
2.03	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of plastering and pointing	MTR	145.200	798.00	115,869.60	



PNC**Work Order****PNC Infratech Limited**

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address:**UTKARSH INFRATECH BUILDER AND CONTRACTOR****G FLR, KHASARA NO. 1229, MEERA****LUCKNOW-226002 Uttar Pradesh, Contact :****Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM****Project Name****Barabanki Water Project (7012)****Vendor Code****1205294****Work Order No.****8500006874****Work Order Date****24.08.2023****PAN No.****BXSPM6841F****Ref. No.****WV-1049****GSTIN****09BXSPM6841F1ZW****Amend. No. & Dt.****R2 / 16.04.2024**

Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
2.04	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of painting (1 coat of Primer and 2 coat weather proof exterior emulsion paint) and finishing.	MTR	145.200	399.00	57,934.80
2.05	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Handed over the work to concern department	MTR	145.200	399.00	57,934.80
2.06	995424	Supply of all material, fabrication and fixing of 3.6 m x 1.20 m MS gate and construction of boundary wall pillars of size 1.35mx0.23mx0.23m with ornamental brick work 115mm thick around RCC, as per departmental type design, drawing and specifications in the bid document including material, labour and equipments etc complete.	NO	1.000	45,000.00	45,000.00
2.07	995424	Supply of all material, fabrication and fixing of 1.2m wide MS wicket gate and construction of boundary wall pillars as per departmental type design, drawing and specifications in the bid document including material, labour and equipment's etc complete.	NO	1.000	15,000.00	15,000.00
2.08	995424	Construction of Interlocking pavement for approach to water works, as per departmental type design, drawing and specifications, including material, labour and equipment's etc. complete.	M2	140.000	835.00	116,900.00
2.09	995424	Construction of granular sub base by providing coarse grade materials, spreading in uniform layers including watering and compaction complete.	M3	28.000	2,550.00	71,400.00
2.10	995424	Construction of WBM by providing grade materials, spreading in uniform layers including watering and compaction complete.	M3	21.000	2,850.00	59,850.00
2.11	995424	Construction of inside semi-circular drain 200mm dia including material, labour and equipment's etc. complete.	MTR	73.000	720.00	52,560.00
2.12	995424	Construction of Pump house size(2.5mx3mx3m),Chlorinating room size(2.5x1.3x3)as per departmental type design, drawing and specifications, including supply of all material,labour,Tool Plant etc. complete. On Completion of foundation up to plinth	NO	1.000	90,000.00	90,000.00



Work Order

PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM		Project Name	Barabanki Water Project (7012)			
		Vendor Code	1205294			
		Work Order No.	8500006874			
		Work Order Date	24.08.2023			
PAN No.	BXSPM6841F	Ref. No.	WV-1049			
GSTIN	09BXSPM6841F1ZW	Amend. No. & Dt.	R2 / 16.04.2024			
Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
		level				
2.13	995424	Construction of Pump house size (2.5x3x3)m, Chlorinating room size (2.5x1.3x3)m as per departmental type design,drawing and specifications, including supply of all material,labour,Tool & Plant etc. complete. On completion of superstructure and wall with Door, window frame and roof slab	NO	1.000	126,000.00	126,000.00
2.14	995424	Construction of Pump house size (2.5x3x3) m, Chlorinating room size (2.5x1.3x3) m as per departmental type design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete. On completion of plastering, Installation of door, window shutters/grills and painting of all surfaces (Exterior: 1 coat Primer and 2 coat weather proof exterior emulsion paint, Interior: 1 coat Primer and 2 coat Oil Bound Distemper)	NO	1.000	72,000.00	72,000.00
2.15	995424	Construction of Pump house size (2.5x3x3) m, Chlorinating room size (2.5x1.3x3) m as per departmental type design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete. On Completion of finishing including electrical wiring and installation	NO	1.000	72,000.00	72,000.00
2.16	995424	Construction of Bye-pass chamber for pump house {1000(L)X1000(W)X1150(H)mm} as per design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete.	NO	1.000	14,500.00	14,500.00
30	995424	CM-1 Const.of Civil Work {GP: Karaundi Khurd, Karaundi ; Block: Harakh}				
3.01	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of Earth Work, PCC, RCC & Brick masonry work up to plinth level	MTR	154.000	1,197.00	184,338.00
3.02	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of Super structure	MTR	154.000	1,197.00	184,338.00
3.03	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made	MTR	154.000	798.00	122,892.00



PNC**Work Order****PNC Infratech Limited**

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address:

UTKARSH INFRATECH BUILDER AND CONTRACTOR
G FLR, KHASARA NO. 1229, MEERA
LUCKNOW-226002 Uttar Pradesh, Contact :
Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM

Project Name**Barabanki Water Project (7012)****Vendor Code****1205294****Work Order No.****8500006874****Work Order Date****24.08.2023****PAN No.****BXSPM6841F****Ref. No.****WV-1049****GSTIN****09BXSPM6841F1ZW****Amend. No. & Dt.****R2 / 16.04.2024**

Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
		in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of plastering and pointing				
3.04	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Completion of painting (1 coat of Primer and 2 coat weather proof exterior emulsion paint) and finishing.	MTR	154.000	399.00	61,446.00
3.05	995424	Construction of 1.3m high and 115mm thick boundary wall with 230x230 mm thick pillars (above DPC) made in Brick masonry in 1:4 mortar. The spacing between two pillars should not be more than 3m c/c and the depth of foundation should not be less than 0.60m as per departmental type design, drawing and specifications. On Handed over the work to concern department	MTR	154.000	399.00	61,446.00
3.06	995424	Supply of all material, fabrication and fixing of 3.6 m x 1.20 m MS gate and construction of boundary wall pillars of size 1.35mx0.23mx0.23m with ornamental brick work 115mm thick around RCC, as per departmental type design, drawing and specifications in the bid document including material, labour and equipments etc complete.	NO	1.000	45,000.00	45,000.00
3.07	995424	Supply of all material, fabrication and fixing of 1.2m wide MS wicket gate and construction of boundary wall pillars as per departmental type design, drawing and specifications in the bid document including material, labour and equipment's etc complete.	NO	1.000	15,000.00	15,000.00
3.08	995424	Construction of Interlocking pavement for approach to water works, as per departmental type design, drawing and specifications, including material, labour and equipment's etc. complete.	M2	140.000	835.00	116,900.00
3.09	995424	Construction of granular sub base by providing coarse grade materials, spreading in uniform layers including watering and compaction complete.	M3	28.000	2,550.00	71,400.00
3.10	995424	Construction of WBM by providing grade materials, spreading in uniform layers including watering and compaction complete.	M3	21.000	2,850.00	59,850.00
3.11	995424	Construction of inside semi-circular drain 200mm dia including material, labour and equipment's etc. complete.	MTR	77.000	720.00	55,440.00

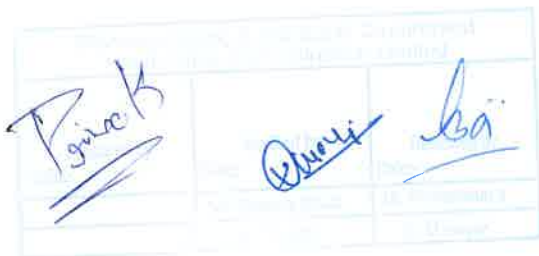


Work Order PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM			Project Name		Barabanki Water Project (7012)	
			Vendor Code		1205294	
			Work Order No.		8500006874	
			Work Order Date		24.08.2023	
PAN No.		BXSPM6841F	Ref. No.		WV-1049	
GSTIN		09BXSPM6841F1ZW	Amend. No. & Dt.		R2 / 16.04.2024	
Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
3.12	995424	Construction of Pump house size(3.6mx3mx3m),Chlorinating room size(2x1.8x3)as per departmental type design, drawing and specifications including supply of all material,labour,Tool Plant etc. complete. On Completion of foundation up to plinth level	NO	1.000	96,250.00	96,250.00
3.13	995424	Construction of Pump house size(3.6x3x3)m, Chlorinating room size (2x1.8x3)m as per departmental type design,drawing and specifications, including supply of all material,labour,Tool & Plant etc. complete. On completion of superstructure and wall with Door, window frame and roof slab	NO	1.000	134,750.00	134,750.00
3.14	995424	Construction of Pump house size (3.6x3x3) m, Chlorinating room size (2x1.8x3) m as per departmental type design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete. On completion of plastering, Installati on of door, window shutters/grills and painting of all surfaces (Exterior: 1 coat Primer and 2 coat weather proof exterior emulsion paint, Interior: 1 coat Primer and 2 coat Oil Bound Distemper)	NO	1.000	77,000.00	77,000.00
3.15	995424	Construction of Pump house size (3.6x3x3) m, Chlorinating room size (2x1.8x3) m as per departmental type design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete. On Completion of finishing in cluding electrical wiring and installation	NO	1.000	77,000.00	77,000.00
3.16	995424	Construction of Bye-pass chamber for pump house {1000(L)X1000(W)X1150(H)mm} as per design, drawing and specifications, including supply of all material, labour and Tool and Plant etc. complete.	NO	1.000	14,500.00	14,500.00
			Sub Total			3,636,459.00
			State GST @ 9 %			327,281.31
			Central GST @ 9 %			327,281.31
			Grand Total			4,291,021.62

Amount in Words : Rupees Forty Two Lakh Ninety One Thousand Twenty One Only Sixty Two Paise



PNC**Work Order****PNC Infratech Limited**

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM		Project Name	Barabanki Water Project (7012)
		Vendor Code	1205294
		Work Order No.	8500006874
		Work Order Date	24.08.2023
PAN No.	BXSPM6841F	Ref. No.	WV-1049
GSTIN	09BXSPM6841F1ZW	Amend. No. & Dt.	R2 / 16.04.2024

Terms & Conditions:

- 100% of the amount for executed quantity shall be certified by PNC PM as per the stage wise breakup mentioned above on the basis of prima facie acceptance of the same quantity by TPI/PMC/Client. However, if there is any deduction of the certification of the quantities in Measurement book by TPI/PMC/Client, the same shall be deducted from the contractor in the successive RA Bill and the balance payment of the earlier certified quantity shall be on hold until the measurement book certification is duly signed and accepted by TPI/PMC/Client.
- In addition to the above, 5% payment shall be kept hold as retention money for the period of 12 Months up to Defect Liability Period or as per the approval of Project Head.
- All construction material shall be in Contractor's Scope, with material QAP and Approval if any required. If any material/ equipment will be provided by PNC to avoid the delay in completion of any work on the behalf of the contractor then actual cost of material / equipment plus 3% as per tax invoice issued to contractor for the same.
- Only Cement + Reinforcement Steel will be provide by PNC's from PNC Store/Godown. Shifting, transportation, loading/unloading will be in contractor scope.
- All Plumbing, Sanitary Material & Electrical Item (Fixture, wire, MCV, Fans, Etc.) Supply and fixing work shall be in subcontractor scope.

The Following Enclosures are also part of this Work Order:

- Annexure-1- General Condition of Contract. (11 Pages)
- Annexure-2- Common Check List for Scope of main items. (2 Pages)
- Annexure-3- Check list for Appointing Sub/Petty Contractors. (1 Pages)
- Annexure-4- Labour Declaration Form. (3 Pages)
- Annexure-5- Work Phase Plan of Each GP Post Cover Agreement Date. (1 Page)

NOTE :**PLEASE ISSUE TAX INVOICE ONLY**

* We reserve the rights to cancel or amend Order / quantity as per our requirement.

For PNC Infratech Limited**(Recommended By)****(Approved By)**

Accepted By

(Authorized Signatory)

UTKARSH INFRATECH BUILDER AND CONTRACTOR

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

1. The Works:

- 1.1 PNC Infratech Limited ("PNC") hereby engages the Subcontractor, as an independent contractor, to perform the Works and the Subcontractor hereby accepts such engagement and agrees to perform the Works in accordance with the terms of this Agreement.
- 1.2 The Work shall be performed under the direction and supervision of representative as appointed by PNC from time to time ("PNC Representative"). The Subcontractor shall fully comply with and cooperate with any instructions issued by PNC Representative. Such instructions shall not be deemed an approval by PNC of any part of the Works and shall not relieve the Subcontractor of any liability or responsibility thereof.
- 1.3 PNC Representative may require the Subcontractor to remove any person who, at the opinion of PNC Representative, (i) performed or persists in any misconduct or lack of care (in terms of safety, health, environment or otherwise), (ii) carries out duties incompetently or negligently, (iii) fails to conform with any provision of this Agreement and applicable law, and the Subcontractor shall replace such person immediately.
- 1.4 The Subcontractor shall commence the performance of the Works within 15 (Fifteen) days from the date of signing of this LOI/ Agreement/ Work Order by both parties. The Subcontractor shall carry out the Works fully and continuously, with the knowledge that time is of essence of this Agreement.
- 1.5 The Subcontractor shall provide all the plant and machinery, equipment's, manpower, shuttering, staging and consumables (such as but not limited to diesel fuel and project materials) (**Free Issue Materials** to be supplied by PNC if any as per attached annexure/as mentioned in SOR) required for the performance of the Works as well as the connection of electric, power, water and all other utilities and infrastructures necessary for the timely performance of the works and shall bear all costs and expenses related to thereto.
- 1.6 Any cost involved in loading/unloading and transportation shall be in Subcontractor's responsibilities whenever the items are issued from PNC designated stock yard.
- 1.7 The reconciliation of the free issue items or material shall be done every month and shall be verified with PNC representative. The same shall be enclosed with every running bill and stock statement.
- 1.8 For progressive issue of free issue items or material shall be entertained only after receipt of reconciliation for previously issued items.
- 1.9 The Subcontractor, following handing over of all the Works to PNC in accordance with the requirements of this Agreement, shall provide any additional related information, and reply to whatever questions and requests for consultations and clarifications that PNC may require, at no additional cost to PNC.
- 1.10 Subcontractor shall maintain the required number of experienced engineers, operators and supervisory staff at site in connection with the respective scope of the work of the Project. Subcontractor shall adhere to the deployment of experienced staff as per the Contract condition, failing which Client shall levy the penalty as mentioned in the Contract which shall be borne by the Subcontractor.
- 1.11 The Subcontractor shall ensure that all the work shall be confirmed to the specifications and standards of the contract agreement executed between PNC SPML-JV & Client.
- 1.12 If any material is supplied to the subcontractor, then supply will be under GST for PNCIL. GST shall be charged on it at applicable rate from contractor and the terms and conditions of sale shall be as mentioned in the Tax invoice with rates pertaining to the date of supply as decided by PNC representative and shall be deemed final.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

2. Representations and Warranties:

The Subcontractor hereby represents and warrants that:

- 2.1** It has all the expertise, experience, manpower, authorizations under charter documents, licenses, permits and financial means required for the purpose of performing the Works in an expert manner and in accordance with the schedule under this Agreement.
- 2.2** It has financial standing and capacity to undertake the works in its scope and as per the terms & conditions of the Agreement.
- 2.3** It shall take all necessary permissions as required in law which are required for to perform all obligations under the contract.
- 2.4** The Sub Contractor has gone through the terms and conditions of Agreement and has inspected the site, examined to scope of project, specification and standards before entering into the present agreement.
- 2.5** PNC shall have right to appropriate any amount towards any loss, or damages it has incurred or any amount which is found payable by the Sub Contractor in the Agreement under question.

3. The Subcontractor's undertakings:

The Subcontractor hereby undertakes that throughout the entire period of this Agreement, the Subcontractor shall:

- 3.1** Perform its obligations in a professional manner, with expertise and competence, shall maintain regular communication with PNC Representative concerning the progress of the Works and provide with all requested data, information and documents relating thereto.
- 3.2** Strictly follow the quality norms and requirements as per the Technical Specifications; the Requirements and BOQ included is as attached hereto, to the full satisfaction of PNC.
- 3.3** Setup a Site office, labour camp and storage facilities for tools & tackles and equipment's as necessary, on the respective site, subject to receipt of access to the site from PNC.
- 3.4** Fully cooperate with and coordinate the performance of the Works with the work carried out by other persons at or near the Site.
- 3.5** Maintain a construction site logbook (diary) for the Works, duly completed and updated in accordance with the applicable law and PNC instructions.
- 3.6** Provide monthly/weekly progress reports (or in a shorter interval if so determined by PNC Representative) with respect to the Works performed and any delay encountered during the period covered by the report or anticipated in the future ("Reports").
- 3.7** Attend status meetings and other meetings as requested by PNC Representative.
- 3.8** Subcontractor shall be entirely responsible to adhere to the highest standards of health, safety and environment regulations at the site during execution of the Project as per the requirements outlined by the Client from time to time including (but not limited to) the following:
 - 3.8.1** Take all precautions to maintain the health of everyone on its behalf, including by ensuring that suitable arrangements are made for all necessary welfare and hygiene requirements and for the prevention of epidemics;
 - 3.8.2** Take care for the safety of all persons entitled to be on the Site; and
 - 3.8.3** Provide for any temporary works (including footways, guards and fences) which may be necessary, due to the execution of the Works, for the use and protection of the public and of owners and occupants of adjacent land.
- 3.9** Subcontractor shall not permit any of the Subcontractor's personnel to maintain any temporary or permanent living quarters within the structures forming part of the Works;
- 3.10** Subcontractor shall provide and maintain the necessary security means at the Site and keep unauthorized persons away, shall take all reasonable steps to protect the environment and limit damage and nuisance to people and property resulting from pollution, noise and other



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

results of its operations; and in the performance of the Works, fully comply with all applicable law, regulations, codes and Technical Specifications and Requirements

4. Works Acceptance and Completion:

4.1 PNC Representative shall issue to the Subcontractor an approval of completion and acceptance of the Works ("Completion Approval") within 30 (Thirty) days following the occurrence of all the following events.

4.1.1 The Works have been completed and successfully commissioned in accordance with this Agreement to the full satisfaction of PNC and any other obligations been fulfilled as required.

4.1.2 The Subcontractor has to clean the Site and has to remove all debris, wreckage, obstruction and any unnecessary remains from work location.

4.1.3 All debit note amounts shall be deducted by PNC from Subcontractor and if any recovery was found to be done, the same shall be verified and deducted by PNC

4.1.4 In the event that any part of the Works was rejected and the rejected part of the Works has been re-done and such re-done parts of the works have been accepted by Client & PNC

4.2 If any issue, dispute or claim shall be outstanding or pending between PNC and the Subcontractor at the time of issuing of the Completion Approval, PNC Representative may condition or limit any confirmation, admission or certification expressed in the Completion Approval to exclude such outstanding or pending issue from the scope of such confirmation, admission or certification.

5. Liquidated Damages for Delays:

5.1 The liquidated damages if any shall be in line with the agreed terms of the contract executed between PNC-SPML JV and the Client which is part of the RFP

5.2 If the sub-contractor fails to complete the works in time period as stipulated above, PNC shall have a right to terminate the contract and/or to get the balance works executed either on its own or through any other agency of PNC's choice, at the risk and cost of the sub-contractor and the decision of PNC in this regard shall be final and binding. The amount so spent towards the cost of such execution along with overheads as computed by PNC shall be deducted from the sub-contractor's due payments/bills and/or performance security and/or retention and the decision of PNC shall be final & binding in this regard and shall be liable to pay the same at its first demand.

5.3 PNC shall be entitled to withhold all such payment(s) under any head(s) and/or account payable to the sub-contractor till all the work are not completed with uniform and corresponding progress in all respects and/or final bill is prepared and certified and/or in case where the work order is terminated or the works are executed at risk and cost of sub-contractor till such time the entire works are not complete and the costs are not worked out..

6. DEFECTS LIABILITY PERIOD:

6.1 The Warranty Period for the purpose of this Agreement shall be 12 (Twelve) months from the date of the issuance of the Completion Approval by PNC Infratech Limited.

6.2 In case any non-compliance with the terms of this Agreement is discovered in the Works during the Warranty Period, the Subcontractor, at its own cost shall promptly, but in no event later than 14 (Fourteen) calendar days after PNC notifies it of said defect .

6.3 If the Subcontractor fails to repair or make such changes to the Works as aforesaid within the time specified by PNC, PNC may, without limiting any of its rights and/or remedies under this Agreement and/or under applicable law and in addition to any such rights and/or remedy, carry out the said repair, re-performance or changes by itself or by means of a third party on its



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

behalf, and be entitled to full reimbursement of all costs resulting there-from, plus an additional 15% of such cost from Subcontractor.

7. Measurement and Evaluation of the Works:

7.1 The Works shall be measured, and valued for payment, in accordance with this Clause. The Subcontractor shall show in each application for payment the quantities and other particulars detailing the amounts, which he considers entitled under this Agreement.

7.1.1 Whenever PNC Representative requires any part of the Works to be measured, reasonable notice shall be given to the Subcontractor, who shall promptly attend and assist PNC Representative in making the measurement, and supply any particulars requested by PNC Representative.

7.1.2 If the Subcontractor fails to attend, the measurement made by or on behalf of PNC Representative shall be accepted as accurate.

7.2 If the Subcontractor examines and disagrees with the records, and/or does not sign them as agreed, then the Subcontractor shall give notice to PNC Representative of the specific aspects in which the records are asserted to be inaccurate. PNC Representative shall review the records and notify the Subcontractor of its decision to either accept or deny them. If the Subcontractor does not give any response to PNC Representative within 7 (Seven) days after receiving PNC decision, the records shall be deemed to be considered accurate.

7.3 Except as otherwise stated in the Agreement and notwithstanding local practice:

7.3.1 Measurement shall be made of the net actual quantity of each item of the installed Works. Unless specifically instructed in writing by PNC Representative, the Works performed in excess of their description in the Drawings and the Technical Specifications shall not be paid for.

7.3.2 The method of measurement shall be in accordance with the Bill of Quantities or other applicable Annexes.

7.4 The rate or price for each item of Work shall be as specified in this Agreement. If there is no rate or price specified for a specific item or Work, then the rate or price to be considered shall be for a similar item or Work, as may be applicable.

7.5 All rates and unit prices in the Bill of Quantities shall not be subject to any escalation, change or adjustment for any reason. Without derogating from the above, the omission of or reduction in quantity of any Works shall not entitle the Subcontractor to any additional payment, nor shall it justify any change in rate or unit price of any Work item.

8. Consideration and Payment:

8.1 In consideration for the full, satisfactory and timely performance of all its obligations hereunder, PNC shall pay the Subcontractor the accumulative sum of the amounts determined by PNC Representative in accordance with Clause 7, exclusive of Goods and Services Tax (GST), to the extent applicable ("Consideration").

8.2 The estimated Consideration including GST is as mentioned in the Work Order however the final Consideration shall be determined in accordance with the actual quantity of the Works executed by the Subcontractor and confirmed as aforesaid.

8.3 The Rate List is as per attached annexure. However, BOQ will be the same as per approved & finally accepted by TPI/PMC/DWSM/SWSM/DM/JJM/UPJL. The same shall be the certified quantity.

8.4 All payments shall be made to the Subcontractor against approved, timely and duly issued original invoices to PNC by the Subcontractor, together with all required and approved supporting information, documents and reports, within 15 (Fifteen) days following the date on which the Subcontractor's invoice was approved for payment and receipt of amount from client.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

- 8.5** The approval of any Subcontractor's invoice by PNC Representative and/or the payment by PNC of any amount on account of the Consideration shall not constitute an approval of the quality of the Works, and shall not relieve the Subcontractor from any liability and/or derogate from any right or remedy available to PNC.
- 8.6** The Consideration represents full, final and complete payment of any and all amounts to which the Subcontractor is or may be entitled in connection with the Works and expenses incurred by the Subcontractor in connection with the Works, including for, repairs, labour, accommodation, transportation, security, insurance, maintenance cost during the Warranty Period, (overhead etc.), all direct and indirect taxes, duties and other compulsory payment applicable to Works or Subcontractor (including TDS) and exclusive of Goods & Service Tax (GST), and all other inputs of any kind, necessary for proper performance and satisfactory completion of the Works and the remedying of any defects therein in accordance with the provisions of the Contract, and for the fulfilment of all other obligations of Subcontractor hereunder.
- 8.7** The Parties hereby agree that the Consideration is final and fixed and shall in no way be subject to any price escalations or variations for any reason, for the duration of this Agreement and until the end of the Warranty Period.
- 8.8** The Subcontractor is solely responsible and liable for the entire payment of any and all taxes, duties, fees, charges or levies imposed on it and/or any of its employees, Subcontractors and anyone on its behalf.
- 8.9** PNC shall be entitled to exercise and/or forfeit the Retention and/or, in the event that the Subcontractor has breached any of his obligations under this Agreement and has not remedied such breach within 10 (Ten) days from receipt of a written notice from PNC specifying the breach and requiring its remedy. In addition, in the event that the Subcontractor fails to extend any Guarantee at least 14 (Fourteen) days prior to its expiration date, PNC shall be entitled to exercise the relevant Guarantee.
- 8.10** Approval/validation charges of all the works as mentioned in the scope of work along with testing, if any required, by TPI/PMC/Client/PNC/Government Engineering College/NIT shall be borne by the Subcontractor.

9. Taxes & Duties & Royalties:

- 9.1** GST shall be payable extra as per prevailing rule. PNC will release GST amount to Subcontractor after submission of proof of deposit of GST and reflection of the same in GSTR-2A.
- 9.2** TDS, as applicable shall be deducted from Subcontractor's bill and necessary TDS Certificates shall be issued.
- 9.3** If Subcontractor fails to submit monthly return of GST and / or payment of GST within one month of supply to PNC, PNC shall have the liberty to recover GST amount from the Subcontractor and / or take penal action.
- 9.4** Before accepting of Work Order, Subcontractor shall check the details of HSN Code/Service code, GSTN (GSTN Number), PNC Address (Delivery address) including state code and Subcontractors dispatch location including state code as applicable. Moreover, Subcontractor shall ensure all applicable Tax rates as mentioned in the Work Order. For any changes, Subcontractor shall inform PNC for making necessary amendment. No deviation shall be entertained post Receipt of accepted work order.

10. Statutory Compliance:

- 10.1** Subcontractor shall fully comply with all the regulatory and statutory requirements/ obligations referred to in the PNC/Client Contract, which shall be read along with the Contract Agreement and the general laws of India as applicable in relation to the execution of the Projects including those stipulated under the labour legislations viz., PF, E.S.I.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

Contract Labour, Minimum Wages, Labour Cess, Insurance and any other acts as applicable.

- 10.2** Subcontractor shall be entirely responsible for all such adherence and the cost for such compliances shall be borne by the Subcontractor.
- 10.3** All contributions towards capital expenditure, machinery and equipment, working capital contributions, insurance costs and any other expenses that may be required during Project execution shall be arranged/ borne by Subcontractor.
- 10.4** If the aforementioned statutory requirements are not met with the expectations of PNC/Client & documented, PNC shall reserve the right to hold 5% of the contract value on account by default and specifically subcontractor needs to provide EPF & ESI Challans with payment proof of the previous month, otherwise 2% shall be deducted from gross amount of the bill and the same will be deposited in the name of the employees of subcontractor/agency after a period of 2 months of deduction if no payment proof is submitted to PNC.
- 10.5** The work has to be executed in such a planned manner so that there should not be any idling of labours, equipment's and machineries and if any such idling arise, the same shall not be entertained by PNC/Client

11. Guarantees:

- 11.1** PNC shall deduct from each approved invoice an amount equal to 5% of the approved invoice (the "Retention"). The Retention shall be retained by PNC until the issuance of the Completion Approval and shall be released to the Subcontractor subject to and against an unconditional bank guarantee for 5% of the Consideration, issued by a reputable bank agreed upon by PNC, payable on first demand, valid until the end of the Defects Liability Period. In the event , the Retention shall be released to the Subcontractor within 30 (thirty) days from the end of the Defects Liability Period.
- 11.2** PNC shall be entitled to exercise and/or forfeit the Retention Guarantee, in the event that the Subcontractor has breached any of his obligations under this Agreement and has not remedied such breach within 10 (ten) days from receipt of a written notice from PNC specifying the breach and requiring its remedy. In addition, in the event that the Subcontractor fails to extend any Guarantee at least 14 (fourteen) Days prior to its expiration date, PNC shall be entitled to exercise the relevant Guarantee.
- 11.3** For the avoidance of doubt, the provision of the Retention and or the forfeiture thereof by PNC, shall not derogate from PNC remedies under the Agreement and/or the applicable law.
- 11.4** All costs associated with the issuance, maintenance, replacement, renewal and restoration of the Guarantees shall be exclusively borne by the Subcontractor.
- 11.5** The Sub Contractor shall maintain and keep all guarantee/Bank Guarantee alive till such time of the finalization of all accounts and final bill is not certified. The PBG however shall be kept alive till the Defect Liability Period is not over to the satisfaction of the PNC.

12. Completion Schedule

- 12.1** The time of completion for the each project shall be as per the clause provided in RFP/ as agreed in between the client/PNC/ as instructed by PNC representative at site.
- 12.2** PNC shall have the right to request changes to the Works ("Change" and "Change Request", respectively). The Subcontractor hereby undertakes to comply with any Change Request at no additional cost or expense to PNC other than as provided for in this Agreement and without any delay of the Time Schedule, provided that where the Change results in material additional Works outside the scope of the Works ("Additional Works"), the Parties shall agree on the consideration for such Additional Works, which shall be based on

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

the unit prices of the Works detailed as attached annexure/SOR, and the additional time granted to the Subcontractor for the performance of the Additional Works. In the event that the Additional Works include Work items with respect of which no Unit Prices are provided in annexure, the consideration for such items shall be priced by the Subcontractor in accordance with the provisions of Clause 7.4 or, based upon its additional proven Basic / actual (whichever is lower) costs resulting from these Work items plus 10% overhead and profit, and shall be subject to the prior approval of PNC Representative.

- 12.3** Any dispute between the Parties with respect to the consideration for the performance of any Additional Works shall be referred to arbitration in accordance with Clause 19. Any such dispute or arbitration proceedings shall not entitle the Subcontractor to detain, withhold, postpone, suspend, slow-down or otherwise delay or stop any part of the Additional Work or the Change.
- 12.4** PNC may at any time decrease the scope of the Works (either by reducing the quantities of the Works and/or by omitting items of Works), and the Consideration shall be paid to the Subcontractor in accordance with the decreased scope of the Works as provided in Clause 7. For avoidance of doubt, no compensation shall be paid to the Subcontractor in relation with such decrease.
- 12.5** PNC may, at any time following such Change Request, decide not to proceed with such Change and shall notify the same to the Subcontractor, in writing. PNC shall only be obligated to pay the Subcontractor the direct costs incurred by it for that part of the task already executed and approved by PNC Representative.
- 12.6** In the event the Parties agree on additional works that are not regarded as extra / additional and are not covered by the scope of the Works in this Agreement, then the extra items shall be priced according to the basic / actual (Whichever is lower) costs of labour, hire charges, governmental tax at prevalent rates. as well as 10% Overhead & profit on such value of the works before taxes

13. Insurance:

- 13.1** The Subcontractor shall procure and maintain, during the term of the Subcontractor's liability under this Agreement and any applicable law, at its expense, all necessary insurances. All insurance policies shall be submitted to PNC within 21 (Twenty-one) days following the signing of this Agreement.
- 13.2** Failure on the part of the Subcontractor to procure or maintain the insurance policies providing the required coverage, conditions and minimum limits, shall constitute a material breach of this Agreement upon which PNC may immediately terminate this Agreement, or at its discretion PNC may procure or renew any such policy or any extended reporting period thereto and may pay any and all premiums in connection therewith, and all monies so paid by PNC shall be repaid by the Subcontractor to PNC upon demand, or PNC may set off the cost and expense of the said premiums against any monies due to the Subcontractor from PNC.

14. Intellectual Property:

All reports, specifications, products and all documents and other information supplied by PNC and/or anyone on its behalf and/or produced by the Subcontractor and/or anyone on its behalf in connection with the Works, the Project and/or this Agreement ("Documents"), and all proprietary and intellectual property rights therein shall be and remain the property of PNC as first owner thereof. The Subcontractor shall not be entitled to use the Documents or any part thereof for any purpose other than for the performance of the Works and shall not be entitled to disclose them to any third party without the prior written consent of PNC.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

15. Term and Termination:

PNC shall have the right to terminate this Agreement in whole or in part, at any time for PNC convenience, by giving a 30 (Thirty) days' prior written notice of such termination to the Subcontractor.

PNC shall have the right to terminate this Agreement without prior notice in any of the following events.

15.1 If the other Party is found to be guilty of dishonesty or misconduct or breach of this Agreement; and

15.2 If the other Party becomes bankrupt or enters into liquidation or has a receiver, manager or administrator appointed over the whole or any material part of its assets or undertakings.

16. Effects of termination:

16.1 Upon expiration or termination of this Agreement for any reason, the Subcontractor shall, desist and discontinue all actions related to the Works and at no additional cost to PNC Infratech Limited, shall immediately transfer and deliver to PNC Infratech Limited, at its expense, any and all Documents and information related to this Agreement and the Project and shall not keep any copy of any part thereof unless specifically agreed upon in writing at that time by PNC Infratech Limited. The Subcontractor shall cooperate at all times with PNC in affecting the transfer.

16.2 The Subcontractor shall be entitled to payment for the Works that were performed by it and approved by PNC Representative up until the time of termination, and without derogating from PNC rights under this Agreement or any applicable law, in the event of termination by PNC in any of the events mentioned in Clause 15.2 above, PNC shall be entitled to set-off any damage, loss and expense caused to or suffered by PNC in connection with such termination.

16.3 In the event of termination of this Agreement for any reason and notwithstanding thereof, the terms of Clauses 14 [Intellectual Property], 17 [Confidentiality], 18 [Liability and Indemnification] and 19 [Law and Dispute Resolutions] shall survive the termination and remain in full force and effect and shall continue to bind the Parties in all respect.

17. Confidentiality:

Both during the term of this Agreement and after its termination, the Subcontractor undertakes:

17.1 To maintain all the Confidential Information in strict confidence and to refrain from any disclosure and/or publication and/or communication of the Confidential Information, in whole or in part, either directly or indirectly, to any third party whatsoever, without receiving the prior written approval of PNC Infratech Limited;

17.2 Not to use any Confidential Information for any purpose other than the performance of the Works under this Agreement; and

17.3 Upon PNC first written request, to return to PNC all Confidential Information of any type, as well as all copies thereof.

17.4 "Confidential Information" means this Agreement and any Documents and/or information related to the Project and/or the Works and/or concerning PNC and/or PNC subsidiaries or affiliates which are non-public, confidential and/or proprietary in nature which may be provided to the Subcontractor under this Agreement, or that the Subcontractor may become acquainted with or has access to due to the Works it performs under this Agreement as well as any materials, documents, charts, designs or other information, in any form, prepared by the Subcontractor in connection with this Agreement.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

18. Liability and Indemnification:

- 18.1** The Subcontractor shall be responsible for the full, timely and satisfactory performance of the Works hereunder, and shall be fully responsible and liable for, and shall fully indemnify and hold PNC harmless, its affiliates, officers, directors, clients, agents and employees ("Indemnities") from and against any damage, loss, expense, costs and/or harm (including, without limitation, bodily injuries, damage to property and legal fees), incurred (whether directly or indirectly) by PNC and/or any of the indemnities and/or the Subcontractor and/or anyone acting on its behalf (including, without limitation, its employees, agents and Subcontractors), arising out of or related to any act or omission of the Subcontractor and/or anyone acting on its behalf or under its supervision, including, without limitation, its employees, agents and Subcontractors ("Causes").
- 18.2** The Subcontractor shall defend PNC and any of the indemnities from and against any demands, claims, suits and proceedings (civil or criminal) asserted against any of them in connection with any of the Causes. PNC shall notify the Subcontractor of any such claim, suit or action and allow it, as much as it depends on PNC, to participate and defend PNC against any such proceedings.
- 18.3** PNC shall not bear any responsibility and/or liability whatsoever, to the Subcontractor, its employees, consultant or anyone on its behalf, except as expressly and specifically indicated in this Agreement and to the extent specified herein, and the Subcontractor shall not have and hereby waives any additional relief and/or claim against PNC. Without derogating from the generality of the aforesaid, PNC shall not bear any responsibility and/or liability whatsoever, to the Subcontractor, its employees, consultants or anyone on its behalf or under its supervision, in relation to use of, or reliance upon any information relating to the execution of the Subcontractor's obligations hereunder.
- 18.4** In case of violation of any terms & conditions of this work order or any illegal pressure imposed on PNC or theft, then PNC shall have sole right to cancel this work order with immediate effect and then balance payment of subcontractor's dues/ bills, shall be forfeited to the extent of such damages caused to PNC, PNC-SPML JV on account of such theft/misrepresentation.

19. Law and Dispute Resolution:

- 19.1** This Agreement and the rights and obligations of the Parties hereunder shall be governed and construed in accordance with the laws of India without regard to its conflict of law principles.
- 19.2** If a dispute, claim or controversy arises out of or in connection with this Agreement, the Parties shall negotiate in good faith in an attempt to reach an amicable settlement. If the disputed matter is not settled amicably between the Parties within 30 (thirty) days, such disputed matter shall be finally settled in arbitration as set out herein below.
- 19.3** Any dispute arising between the Parties with relation to this Agreement shall be referred to Arbitration comprising of a sole arbitrator to be appointed by PNC. Any orders/ directions/ award of the sole arbitrator shall be final and binding on the Parties. The arbitration proceedings shall be held in English language in accordance with the Arbitration and Conciliation Act, 1996 and the Rules made thereunder, or any statutory modification(s) or re-enactment(s) thereto for the time being in force. The venue of Arbitration shall be at Agra.
- 19.4** The cost of the arbitration proceedings shall be first borne equally by the Parties and the arbitrator shall be requested to rule on the division of these costs between the Parties along with his principle decree.
- 19.5** The Parties shall continue to perform their respective obligations under the Contract not with standing any referral of a dispute to arbitration herein.

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

20. Miscellaneous:

- 20.1** The Subcontractor shall have to hold a valid license under the Contract labour (Regulation & Abolition) Act 1970, wherever it is required.
- 20.2** The Subcontractor shall have to pay all fee / dues and maintain such registers and records containing such particulars of contract labour employed by them under the Contract Labour (Regulation and Abolition) Act, 1970, EPF Scheme-1952, 1995 & Amendment - 2016, Payment of wages Act-1936, Workmen's Compensation Act- 1923 or any other law including particulars regarding the nature of work performed by the contract labour.
- 20.3** The Subcontractor shall make the arrangement of food, snacks and tea/soft drinks for such workers and PNC shall not be responsible for the same.
- 20.4** If PNC finds that any worker of the Subcontractor is not able to carry out the Work satisfactorily or is otherwise physically unfit to carry out the Work involved, the Subcontractor shall withdraw such worker from the duty assigned to him and substitute some other worker on his behalf.
- 20.5** Every worker during the period of his work will be bound to observe the rules and regulations of PNC relating to his movement, dress and discipline. If there is any breach thereof by any such worker and PNC suffers any penalty, monetary loss or other charges the Subcontractor shall be responsible for the same and the Subcontractor shall reimburse PNC for any such liability.
- 20.6** The Subcontractor shall be responsible for the payment of wages to each worker when payable, and PNC can nominate an authorized representative to be present at the time of wage disbursement by the Subcontractor who shall certify the amounts paid as wages by the Subcontractor in the manner prescribed by applicable law.
- 20.7** Every worker engaged by the Subcontractor shall be as per applicable labour laws.
- 20.8** The Subcontractor should provide a list of Names, Aadhaar & Bank details of worker to PNC in prescribed form before engaging any labour at site.
- 20.9** It is the responsibility of the Subcontractor to see that the workers do not go on any strike or stop Work.
- 20.10** The Subcontractor shall comply with all law and regulations governing the relation between the employer and employee which are in force as if the Subcontractor is the employer and the worker his employee. The Subcontractor agrees to indemnify and keep indemnified PNC against any loss, charges and expenses suffered by it on account of breach of any law.
- 20.11** In case of any discrepancy or conflict between any of the annexes, the provisions of the Annex so determined by PNC Representative, shall prevail.
- 20.12** No amendment to or modification of this Agreement shall be effective unless made in writing, duly signed by all the Parties.
- 20.13** **Force Majeure:** If any event beyond the reasonable control of either Party occurs, which (i) constitutes exceptional and unforeseeable circumstances, including war and terrorist activities (but excluding strikes, shortage in work force etc.), which, despite the exercise of diligent efforts, such party was unable to prevent, limit or minimize, and (ii) the scheduled performance of any major part of the Works or their completion date, then provided that such event was acknowledged and approved as an event of Force Majeure by PNC, the Party claiming such event shall be excused from whatever performance is prevented thereby to the extent so affected. In such circumstances, neither Party shall be entitled to terminate this Contract on the basis of such non-performance or non-payment
- 20.14** The Subcontractor shall not assign, transfer, sublet, sell, pledge or otherwise dispose of, in whole or in part, its rights or obligations hereunder, without PNC prior written consent. PNC may assign its rights and/or obligations under this Agreement in whole or in part, to any of

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

its affiliated companies and/or to PNC, or to encumber or pledge any of its rights under the Contract, without the consent of Subcontractor.

- 20.15** PNC shall be entitled to set-off or withhold from the Consideration payable to the Subcontractor hereunder, any amounts owed by the Subcontractor to PNC under any contract or agreement and/or, under any applicable law.
- 20.16** Any and all notices, requests, consents and communications required or permitted to be given or made pursuant to this Agreement shall be in writing and deemed to have been given when delivered in person to the other Party to whom the communication or document is addressed or when sent by registered mail or confirmed facsimile to such Party at the addresses detailed set forth above. Each of the Parties hereto shall be entitled to give the other Party written notice of any change of address or the authorized representative relating to the Party giving such notice.
- 20.17** No waiver of any term or condition of this Agreement shall be considered as a waiver of any other breach of such term or condition, or of any other term or condition, nor shall any failure to comply any provisions hereunder. Any waiver by either party to any provisions of this Agreement shall only be binding if made and confirmed in writing.
- 20.18** This Agreement cancels, supersedes and replaces any and all prior agreements or Understandings, oral or written, between the Parties of this Agreement with regard to its subject matter.
- 20.19** The above rate are for completion of all activity in all respect as stated in the BOQ and Inclusive of all direct and indirect cost, overhead and profit margin for exceeding the work and the quantity given in the above work order are tentative and increased are decreased to any extent.
- 20.20** The Dispute arising out of the contract during the execution of the work that are on Completion which could not be amicable solved by the engineer shall be referred to CMD of employer ("PNC") for his decision, which will be binding on both the parties.
- 20.21** Any further dispute will be addressed only to court in Agra jurisdiction.

PK





NAME OF PROJECT: IMPLEMENTATION OF VARIOUS RURAL WATER SUPPLY PROJECTS IN THE STATE OF UTTAR PRADESH UNDER THE JAL JEEVAN MISSION.

NAME OF EMPLOYER: PNC INFRATECH LIMITED

Subject: Common Check List for Construction of Boundary Wall (BW) & Pump House (PH), Interlocking Tiles Pavement , Other related Units Etc., Construction of RCC Over Head Tank of desired capacity & staging above ground level & Pipe laying work in all respect including hydrotest & Associated civil Work

Revision-R1
Dated: 24-03-2023**Check List**

Sl. No.	Description	Scope	Signature of PNC Representative	Signature of Contractor's Representative
1	Approval/ Validation charges of all works & Joint Measurement book (MB) from TPI/PMC/Client/PNC/Government Engineering College/NIT	Contractor		
2	Details of Labour attendance of all working days to be submitted to PNC. PNC shall verify as and when required.	Contractor		
3	List of Names, Aadhaar & Bank details of worker shall be submitted to PNC in prescribed form before engaging any labour at site.	Contractor		
4	Monthly muster roll upto last month within 3 working days shall be submitted to PNC	Contractor		
5	Electricity for Construction & lighting Purpose for night work.	Contractor		
6	Labour PF, ESI, GST Registration, Labour License is to be taken care by contractor	Contractor		
7	TAXES : Only TDS and Labour cess will be deducted as applicable. GST will be paid extra as applicable. Relevant documents shall be submitted to PNC on monthly basis.	Contractor		
8	Contractor will deposit EPF(both side), ESIC, on the basis of furnished documents by contractor i.e. Muster roll & wages register upto closing month If Contractor does not fulfill Statutory Compliance then, PNC will deduct Cumulative of 5% from over all bill and If Contractor does not provide EPF and ESI Challans only with payment proof for the labour engaged in issued work order job, then PNC will deduct 2% from over all bill.	Contractor		
9	Water for construction / hydro test and curing	Contractor		
10	Labours for all testing related to Construction work, like Compaction Test, Cube Testing etc shall be arranged by contractor. PNC shall set up lab facilities to help the contractor in testing as possible. If any additional tests required or if PNC lab is found occupied with other contractor testing, then contractor shall get it tested at the approved third party lab agency as suggested by TPI/Client/PNC at contractors cost.	Contractor		
12	Work Man Compensation Policy	Contractor		
13	Labour Enforcement Officer - Documentation and Co-Ordination	PNC		
14	One bill per month. Bill should be make upto 25 th of each month and submit to PNC office on 28th of every month with muster roll.	Contractor		
15	Curing of all Civil Structures at regular Interval	Contractor		
16	Dewatering of surface/ rain water by dewatering pump.	Contractor		
17	Excavation by mechanical (as JCB & POCLAIN depending on works)	Contractor		
18	No Idle payment : Due to any hinderance at work or any other reasons, no labour/Idle payment will be made by PNC	Contractor		
19	All tools and tackels, Plants and Machineries/ equipments required for construction and testing of civil or pipeline work in contractor scope.	Contractor		



Check List

Sl. No.	Description	Scope	Signature of PNC Representative	Signature of Contractor's Representative
20	All PPE: Safety Helmet, Safety Shoes, Safety Belt, Safety Jacket and if Issued by PNC Store the amount will be debited from contractor bill.	Contractor		
21	All construction material shall be in Contractor's Scope, with material QAP and Approval if any required. If any material/ equipment will be provided by PNC to avoid the delay in completion of any work on the behalf of the contractor then actual cost of material/ equipment plus 3% will be debited from the payments/ invoices or according to tax invoices issued to contractor for the same.	Contractor		
22	In Case of Civil works & OHT Work Orders Only Cement and Reinforcement Steel will be provided by PNC	PNC		
23	In Case of Pipeline Work Orders Pipes/ Fittings/Valves/Specials/FHTC material will be provided by PNC & Cement, Reinforcement steel, Bricks, Sand Aggregate, etc. for associated civil works will be in Subcontractor's scope.	PNC/ Contractor		
24	Cement and Steel to be used as per BBS and Design Mix. Any extra material consumed shall be debited from contractor bill.	Contractor		
25	All Plumbing, Electrical Item/Fixtures or any other items other than free issue materials and its fixing work shall be in contractor scope.	Contractor		
26	All consumables for executing the work other than free issue materials which may include diesel, shuttering materials, scaffoldings, Doors, windows, tiles, paints etc but not limited to, shall be in contractor scope.	Contractor		
27	Reconciliation of free issue materials on monthly basis. (In case of loss/damage, cost of same shall be debited from contractor)	Contractor		
28	Non-satisfactory labour can be removed within a day notice by PNC, full and final settlement to be ensured by contractor.	Contractor		
29	Progress Report and Photographs on daily basis.	Contractor		
30	Healthcare, Food, Accommodation, & Sanitation of Work force.	Contractor		
31	Security of all equipments, manpower, materials of contractor shall be in contractor scope.	Contractor		
32	Provide clear and compacted access to execution location and its maintenance till the end of the project execution/ WO which ever is earlier is in contractor scope.	Contractor		
33	Protection of existing utilities (underground/in open) such as sewer lines/water lines etc.			
34	Prepare as-built drawings for the works executed and its approval from TPI/Client at site level	Contractor		
35	Delay reasons shall be registered and updated to PNC on weekly basis	Contractor		
36	Clearance of punch points issued from TPI/ Client/ PNC	Contractor		
37	Backfilling of trenches/ foundation pits with material as per BOQ Specifications (rates already included in relevant items) for civil/pipeline works	Contractor		
38	Manual excavation (if any required/performed) will be in contractor's scope and rate for it will be same as that for mechanical excavation	Contractor		
39	If the sub-contractor fails to execute at the required output requested by PNC, PNC shall depute additional contractor at the workplace of existing contractor and the retention money of both contractors withdrawn work shall be released after completion of overall withdrawn work and as per retention money clause from the date of completion of said work.	Contractor		
40	Schedule for the work, catch up plans, labour, plant & machinery mobilization plan shall be submitted to PNC by contractor and be revised and resubmitted on monthly basis as per discussion with engineer in charge (PNC representative).	Contractor		



ANNEXURE-3**CHECK LIST FOR APPOINTING SUB / PETTY CONTRACTORS**

Date :

Project :

1	Name of Contractor	
2	Address	
3	Name of Partners / Directors / Proprietor	
4	Name of Contact Person	
5	Contact details & Mobile No	
6	Aaadhar No	
7	PAN Card No	
8	GST No (Copy of GST Registration Certificate to be submitted)	
9	Contractor's License Number and State	
10	Date of Expiry	
11	Status of Firm (CIN No., in case of Company/Private Ltd)	
12	Total Turnover in the last three financial years (Indicate the amount in lakhs)	
13	Details of Skilled / Semi-skilled / unskilled labours to be deployed	
14	Details of previous experience (attach list of clients)	
15	Bank details (Copy of cancelled cheque to be submitted)	
16	PF Registration No. (Copy of Regn. Details to be provided)	
17	ESIC Registration No. (Copy of Regn. Details to be provided)	
18	Workmen Compensation Policy with Medical /Accidental Rider	

I / We hereby declare that the details furnished above are true and correct to the best of our/my knowledge and belief and I undertake to inform you of any changes therein, immediately

Date :

Authorised Signatory
(Signature and stamp)



दिनांक :

ANNEXURE - 4

सेवा में,
प्रोजेक्ट इंचार्ज
पी एन सी इंफ्राटेक लिमिटेड

साइट- जल जीवन मिशन के तहत उत्तर प्रदेश राज्य के अंतर्गत विभिन्न ग्रामीण जलापूर्ति परियोजनाओं का कार्यान्वयन

{विषय=लेबर वैधानिक अनुपालन सम्बंधित उद्घोषा एवं सहमति }

महाशय,

मैं.....पुत्रश्री.....अपने
फर्म.....

वर्क आर्डर नंबरके
द्वारा पी एन सी -एस पी एम एल-जेवी को जल जीवन मिशन के तहत उत्तर प्रदेश राज्य के विभिन्न ग्रामीण जलापूर्ति परियोजनाओं में उपलब्ध कराये गए दैनिक मजदूरों के सम्बन्ध में यह घोषणा करता हूँ की मैं ठेका श्रम रेगुलेशन एवं उन्मूलन अधिनियम 1970 ,मजदूरी भुगतान अधिनियम 1936 , न्यूनतम मजदूरी भुगतान अधिनियम 1948 ,कर्मचारी भविष्यानिधि अधिनियम 1952 एवं 1995 ,कर्मचारी राज्य बीमा 1948 अधिनियम के अंतर्गत सभी नियमों का पालन करूँगा।

उपरोक्त सभी नियमों एवं अधिनियमों के अलावा श्रम प्रावधानों के अधीन अन्य लागू होने वाले प्रावधानों के पालन के लिए जिम्मेदारी लेता हूँ एवं इस एवज पूर्ण रूप से आस्वस्त करता हूँ।

प्रत्येक माह के दौरान कार्य में लगाए गए मजदूरों की जानकारी उनके कार्य में लगाए जाने के पहले दिन से ही प्रस्तुत कर दूँगा एवं ठेका श्रमिक अधिनियम द्वारा लगाए जा रहे प्रावधानों को ध्यान में रखते हुए ही कार्य प्रारम्भ करवाऊँगा एवं अधीनस्थ सभी प्रावधानों का पालन करूँगा।

1.1 मैं यह सुनिश्चित करता हूँ की श्रम अनुबंध (विनियमन और उन्मूलन) अधिनियम 1970 के तहत जहां भी आवश्यक हो, के तहत एक वैध लाइसेंस धारण करूँगा

1.2 मैं यह सुनिश्चित करता हूँ की ऐसे श्रमिकों के लिए भोजन, स्नेक्स और चाय / शीतल पेय की व्यवस्था करूँगा और पी एन सी इसके लिए जिम्मेदार नहीं होगा

1.3 मैं यह सुनिश्चित करता हूँ की अगर पी एन सी को पता चलता है कि कोई भी व्यक्ति संतोषजनक तरीके से कार्य करने में सक्षम नहीं है या अन्यथा भौतिक रूप से शामिल कार्य को पूरा करने में असमर्थ है, तो ऐसे कार्यकर्ता को उसके द्वारा सौंपा गया कर्तव्य से वापस लेते हुए और उसकी ओर से किसी अन्य कार्यकर्ता को प्रतिस्थापित करेगा

1.4 मैं यह सुनिश्चित करता हूँ की उनके कार्यकाल की अवधि के दौरान प्रत्येक कर्मचारी अपने ड्यूटी , पोशाक और अनुशासन से संबंधित पी एन सी के नियमों और विनियमों का पालन करने के लिए बाध्य होगा यदि ऐसे किसी कर्मचारी द्वारा पी एन सी के नियमों का कोई उल्लंघन करता है और इस एवज पी एन सी को कोई दंड, मौद्रिक हानि



या अन्य आरोपों का सामना करना पड़ता है तो मैं इसके लिए ज़िम्मेदार होऊंगा और इस तरह की देयता के लिए पी एन सी की छति की प्रतिपूर्ति करूंगा

1.5 मैं यह सुनिश्चित करता हूँ की देय होने पर प्रत्येक कर्मचारी को मजदूरी के भुगतान के लिए ज़िम्मेदार होऊंगा , और पी एन सी ठेकेदार द्वारा मजदूरी वितरण के समय उपस्थित होने के लिए एक अधिकृत प्रतिनिधि को नामित कर सकता है जो ठेकेदार द्वारा निर्धारित तरीके से मजदूरी के रूप में भुगतान की गई राशि प्रमाणित करेगा लागू कानून द्वारा

1.6 मैं यह सुनिश्चित करता हूँ की मेरे द्वारा लगाए गए प्रत्येक कर्मचारी 22 वर्ष से कम नहीं होंगे और 50 वर्ष से अधिक उम्र के नहीं होंगे और प्रत्येक कार्यकर्ता के सम्बन्ध में सुनिश्चित करूंगा कि वह किसी भी बीमारी या बड़ी बीमारी से पीड़ित नहीं है और वह शारीरिक रूप से कार्य करने के लिए सक्षम है

1.7 मैं यह सुनिश्चित करता हूँ की पी एन सी को पूर्ण पते और कार्यकर्ता के नाम एवं आधार पहचान पत्र अनिवार्य तौर से कार्यकर्ता को लगाए जाने के पहले दिन ही प्रदान कर दूंगा

1.8 मैं यह सुनिश्चित करता हूँ की मेरे द्वारा प्रदान किये हुए कोई भी मजदुर अथवा कर्मचारी किसी भी हड़ताल पर नहीं जायेंगे या काम बंद नहीं करेंगे

1.9 मैं यह सुनिश्चित करता हूँ की नियोक्ता और कर्मचारी के बीच संबंधों को नियंत्रित करने वाले सभी कानूनों और विनियमों का पालन करूंगा जो कि लागू हैं जैसे कि लगाए गए श्रमिक , नियोक्ता और कार्यकर्ता उसका कर्मचारी है किसी भी कानून के उल्लंघन के कारण किसी भी नुकसान, शुल्क और खर्च के खिलाफ क्षतिपूर्ति करने के लिए सहमत हूँ

1.10 इस समझौते और उसके किसी भी अनुबंध के बीच किसी भी विसंगति या संघर्ष के मामले में, इस समझौते के प्रावधान प्रबल होंगे किसी भी अनुबंध के बीच किसी भी विसंगति या संघर्ष के मामले में, पी एन सी के प्रतिनिधि द्वारा निर्धारित अनुबंध के प्रावधान, प्रबल होंगे

1.11 इस समझौते में कोई संशोधन या संशोधन तब तक प्रभावी नहीं होगा जब तक कि सभी पार्टियों द्वारा विधिवत हस्ताक्षरित नहीं किया जाता है

1.12 मैं यह सुनिश्चित करता हूँ की पी एन सी की पूर्व लिखित सहमति के बिना, पूरे या आंशिक रूप से, इसके अधिकार या दायित्वों को हस्तांतरण, सबलेट, बिक्री, प्रतिज्ञा या अन्यथा निपटान नहीं करेगा पी एन सी इस समझौते के तहत अपने अधिकारों और / या दायित्वों को पूरी तरह से या कुछ हिस्सों में, किसी भी संबद्ध कंपनियों और / या पी एन सी को, या ठेकेदार की सहमति के बिना अनुबंध के तहत अपने किसी भी अधिकार को प्रतिज्ञा करने के लिए असाइन कर सकता है

1.13 मैं यह सुनिश्चित करता हूँ की किसी भी अनुबंध या समझौते के तहत या किसी भी लागू कानून के तहत पी एन सी को मेरे द्वारा प्रदत्त किसी भी राशि को मुझे देय संविधान से सेट-ऑफ या रोकथाम के हकदार होंगे

1.14 किसी भी और सभी नोटिस, अनुरोध, सहमति और संचार आवश्यक या इस समझौते के अनुसार दिए जाने या अनुमति देने की अनुमति लिखित में होगी और माना जाता है कि जब किसी अन्य पार्टी को व्यक्तिगत रूप से पहुंचाया जाता है जिसके लिए संचार या दस्तावेज संबोधित किया जाता है या कब पंजीकृत मेल द्वारा भेजा गया है या ऊपर बताए गए पते पर ऐसी पार्टी को पुष्टि की गई है यहां से प्रत्येक पक्ष अन्य पक्ष को पते के किसी भी परिवर्तन या पार्टी से संबंधित अधिकृत प्रतिनिधि को ऐसी सूचना देने के लिखित नोटिस देने का हकदार होगा

PK



1.15 इस समझौते की किसी भी अवधि या शर्त का कोई छूट या उल्लंघन इस तरह की अवधि या शर्त, या किसी भी अन्य कार्यकाल या शर्त के किसी भी अन्य उल्लंघन की छूट के रूप में कार्य नहीं करेगा, न ही किसी भी प्रावधान को लागू करने में विफलता इस तरह की छूट के रूप में संचालित होगी प्रावधान या यहां कोई अन्य प्रावधान किसी भी पक्ष द्वारा इस समझौते के किसी भी प्रावधान के लिए कोई छूट केवल लिखित नहीं होगी और लिखित में पुष्टि की जाएगी

1.16 यह समझौता इस विषय के पक्ष में इस विषय के पक्ष में किसी भी और सभी पूर्व समझौतों या समझों, मौखिक या लिखित, को रद्द और प्रतिस्थापित करता है

इस सम्बन्ध में **प्रत्येक माह के एवज कर्मचारी भविष्य निधि अधिनियम एवं कर्मचारी राज्य बीमा अधिनियम** के अंतर्गत किये जाने वाले मासिक योगदान को यदि मेरे द्वारा जमा नहीं करा पाने में असक्षम होते हैं तो कंपनी को पूर्ण अधिकार देता हूँ की कंपनी अपने भविष्य निधि एवं कर्मचारी राज्य बीमा अधिनियम के अंतर्गत लागू दर से जमा कर दे एवं कंपनी द्वारा इस हेतु जमा कराये गए प्रत्येक माह के योगदान को मेरे द्वारा लगाए जा रहे मासिक बिल से काटने की इजाजत देता हूँ एवं इस बाबत मैं इस सपथ पत्र के द्वारा अपनी सहमति प्रदान करता हूँ एवं इस सम्बन्ध में कंपनी को पूरी जानकारी उस निहित माह के (पुरे कार्य दिवस एवं मजदूरों का विवरण) सम्बंधित माह के अंतिम दिन पी एन सी इंफ्राटेक लिमिटेड के आगरा कार्यालय में जमा कर दूंगा।

आपकी सेवा में

मेसर्स



PK

Annexure : 5

Work Phase Plan of Each GP post Cover Agreement Date

Sr. Nos	Module Description	Work Description	Phase-I	Phase-II	Pre-Trial Run	Remarks
1	Borewell (CM-3)	Drilling, Lowering, Compressor, OP Unit and Water Testing	0-1 Month		6 Months	
2	Pump House (CM-1)	Overall Completion	0-2 Months		-do-	
3	HDPE Pipe Laying (CM-10)	Pipelaying, Hydrotest, FHTC installation, Overall Line testing	0-1.5 Months		-do-	
4	Over Head Tank (CM-2)	Substructure	0-2 Months		-do-	
		Superstructure		2-4 Months		
		Installation of DI Pipes, Specials and other accessories required for overall completion		5th Month		
		Commissioning & Testing		6th Month		
5	Solar (CM-6)	Support Foundation	0-2 Months		-do-	
		Structure erection		3-4 Months		
		Panel Installation and other related works for overall completion		4-5 Months		
6	Boundary wall with Gates (CM-1)	Substructure	0-2 Months		-do-	
		Superstructure	2-3 Months			
		Gate Installation		3-4 Months		
7	Interlocking Paver Road (CM-1)	GSB & WBM	2-3 Months		-do-	
		Interlocking paver installation		5-6 Months		
8	Submersible Pumps (CM-4)	Installation of Submersible Pumps with all accessories complete in all respects	2-3 Months		-do-	
9	E&I Works (CM-5)	Panels, Cabling, glanding, termination complete in all respects		4-5 Months	-do-	
10	Diesel Generator (CM-5)	Foundation and DG installation complete in all respects	2-3 Months		-do-	
		Earthing Pit and complete in all respects	2-3 Months			
	Phase-I Completion		2-3 Months		-do-	
	Phase-II Completion	Completion in all respect for start Trial Run	5 Months		-do-	
	Commissioning		6 Months		-do-	

Note:

1. The Cover Agreement date is to be read as zero date.
2. Only applicable modules to be referred by the contractor.
3. If there is any delay in Sub-Contractor's performance. Which is conclusively proved that it is on account of reason solely attributable to the sub-contractor, resulting in extension of overall schedule for completion of project as given above, then PNC shall be entitled to recover from the sub-contractor by way of liquidated damages of 10% of total value of work.
4. In case of poor performance by the agency, PNC reserves the right to engage any alternate agency/labour team at agency's risk and cost. The expenses incurred on completing the balance work will be debited from your dues along with 20% supervisory charges on labour component.





Work Order

PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM		Project Name	Barabanki Water Project (7012)
		Vendor Code	1205294
		Work Order No.	8500006875
		Work Order Date	24.08.2023
PAN No.	BXSPM6841F	Ref. No.	WV-1049
GSTIN	09BXSPM6841F1ZW	Amend. No. & Dt.	
Billing Address: PNC INFRATECH LIMITED 3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)		Consignee Address: PNC INFRATECH LIMITED Gata 55,72,74,Nawabganj,Barabanki Dehat, BARABANKI-225001 Uttar Pradesh	
PAN No.	AACCP0377Q	PAN No.	
GSTIN	09AACCP0377Q1ZU	GSTIN	09AACCP0377Q1ZU

Order For: Work Order for Construction of Flat Slab Over Head Tank of required capacity & staging as per approved drawings & DPR in the state of Uttar Pradesh under the Jal Jeevan Mission for Barabanki District in Ayodhya Division.

Reference: Recommended by PM Barabanki

We are pleased to place our work order for the following services on you. You are requested to provide the services in accordance with particulars and conditions given below and confirm acceptance of the order by return mail.

Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
10	995424	CM2-OHT(ZnAl) 150KL 14M {GP: Baraiya; Block: Suratganj}				
1.01	995424	After completion of Excavation, PCC and RCC of raft and foundation beam	EA	1.000	184,500.00	184,500.00
1.02	995424	After completion of Columns up to Plinth level including back filling.	EA	1.000	61,500.00	61,500.00
1.03	995424	After completion of staging and staircase up to half height	EA	1.000	184,500.00	184,500.00
1.04	995424	After completion of staging and staircase up to full height	EA	1.000	184,500.00	184,500.00
1.05	995424	After completion of RCC of ring beam and Flat Slab	EA	1.000	307,500.00	307,500.00
1.06	995424	After completion of piping arrangement, hand rail in GI, plastering (if required), painting 2 coats and finishing work including appurtenance.	EA	1.000	123,000.00	123,000.00
1.07	995424	After construction of Valve Chambers and placement of precast slabs in position and laying of floor apron with edge protection with brick lining, laying DI pipe lines inside water works campus, Finishing of flat slab after fixing of DI pipes/ puddles	EA	1.000	123,000.00	123,000.00
1.08	995424	After completion of testing and commissioning and final coat of paint before final handover	EA	1.000	61,500.00	61,500.00
			Sub Total			1,230,000.00
			State GST @ 9 %			110,700.00
			Central GST @ 9 %			110,700.00
			Grand Total			1,451,400.00

Amount in Words : Rupees Fourteen Lakh Fifty One Thousand Four Hundred Only

Planning, Estimation & Contracts Department PNC Infratech Limited	
Prepared by <i>Tanveer K</i>	Reviewed by <i>Rohit</i>
Date: <i>24/08/23</i>	Date: <i>24/08/23</i>
Mr. Sandeep Bharti Manager	Mr. Bharatharun S Sr. Manager

24/08/23



Work Order PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM		Project Name	Barabanki Water Project (7012)
		Vendor Code	1205294
		Work Order No.	8500006875
		Work Order Date	24.08.2023
PAN No.	BXSPM6841F	Ref. No.	WV-1049
GSTIN	09BXSPM6841F1ZW	Amend. No. & Dt.	

Terms & Conditions:

- 100% of the amount for executed quantity shall be certified by PNC PM as per the stage wise breakup mentioned above on the basis of prima facie acceptance of the same quantity by TPI/PMC/Client. However, if there is any deduction during the certification of the quantities in Measurement book by TPI/PMC/Client, the same shall be deducted from the contractor in the successive RA Bill and the balance payment of the earlier certified quantity shall be on hold until the measurement book certification is duly signed and accepted by TPI/PMC/Client.
- In addition to the above, 5% payment shall be kept hold as retention money for the period of 12 Months upto end of Defect Liability Period or as per the approval of project head and same can be released on submission of Bank Guarantee for the same amount.
- All construction material (Other than free issue materials mentioned in this document) shall be in Contractor's Scope with material QAP and Approval (if any required). If any material/ equipment is provided by PNC to avoid the delay in completion of any work on the behalf of the contractor then actual cost of material / equipment plus 3% handling cost will be charged to contractor for the same.
- Free issue Items: Only Cement + Reinforcement Steel + (Inlet, Outlet, Drain and Overflow) DI Pipe & Fittings will be provide by PNC from PNC Store/Godown. Shifting, transportation, loading/unloading of the same will be in contractor's scope. All other materials which are not mentioned in this point shall be considered as contractor's scope of supply for the successful completion of allotted work. The contractor will have to submit reconciliation of the free issues material with every running bill. Any excess quantities used (after considering wastages) will be debited from the bill.
- Construction Period : The Contractor will complete individual over head tanks in 4 months for all capacities.
- Contractor has to adhere to the above mentioned schedule for completion of the OHT in any circumstance failing which LD will be imposed.
- The Client certification of the works executed by the contractor shall be in scope of the contractor .
- Only Steel Shuttering shall be used for Column Casting.
- The Following Encloser are also part of this work order:
 - Annexure-1: General Condition of Contract. (11 Pages)
 - Annexure-2: Common Check List for Scope of main items. (2 Pages)
 - Annexure-3: Check list for Appointing Sub/Petty Contractors. (1 Page)
 - Annexure-4: Labour Declaration Form. (3 Pages)
 - Annexure-5: Work Phase Plan of each GP post Cover Agreement Date. (1 Page)

NOTE :

PLEASE ISSUE TAX INVOICE ONLY

* We reserve the rights to cancel or amend Order / quantity as per our requirement.

Planning, Training & Contracts Department Head - PNC Infratech Limited			
Prepared by <i>Praveen K</i>	Verified by <i>Ram</i>	Reviewed by <i>Ba</i>	
Date:-	Date:-	Date:-	
Mr. Sanjeev Bharti	Mr. Bhargava		
Manager	Sub Manager		

For PNC Infratech Limited

(Recommended By)

(Approved By)

Accepted By

(Authorized Signatory)

UTKARSH INFRATECH BUILDER AND CONTRACTOR

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

1. The Works:

- 1.1 PNC Infratech Limited ("PNC") hereby engages the Subcontractor, as an independent contractor, to perform the Works and the Subcontractor hereby accepts such engagement and agrees to perform the Works in accordance with the terms of this Agreement.
- 1.2 The Work shall be performed under the direction and supervision of representative as appointed by PNC from time to time ("PNC Representative"). The Subcontractor shall fully comply with and cooperate with any instructions issued by PNC Representative. Such instructions shall not be deemed an approval by PNC of any part of the Works and shall not relieve the Subcontractor of any liability or responsibility thereof.
- 1.3 PNC Representative may require the Subcontractor to remove any person who, at the opinion of PNC Representative, (i) performed or persists in any misconduct or lack of care (in terms of safety, health, environment or otherwise), (ii) carries out duties incompetently or negligently, (iii) fails to conform with any provision of this Agreement and applicable law, and the Subcontractor shall replace such person immediately.
- 1.4 The Subcontractor shall commence the performance of the Works within 15 (Fifteen) days from the date of signing of this LOI/ Agreement/ Work Order by both parties. The Subcontractor shall carry out the Works fully and continuously, with the knowledge that time is of essence of this Agreement.
- 1.5 The Subcontractor shall provide all the plant and machinery, equipment's, manpower, shuttering, staging and consumables (such as but not limited to diesel fuel and project materials) (**Free Issue Materials** to be supplied by PNC if any as per attached annexure/as mentioned in SOR) required for the performance of the Works as well as the connection of electric, power, water and all other utilities and infrastructures necessary for the timely performance of the works and shall bear all costs and expenses related to thereto.
- 1.6 Any cost involved in loading/unloading and transportation shall be in Subcontractor's responsibilities whenever the items are issued from PNC designated stock yard.
- 1.7 The reconciliation of the free issue items or material shall be done every month and shall be verified with PNC representative. The same shall be enclosed with every running bill and stock statement.
- 1.8 For progressive issue of free issue items or material shall be entertained only after receipt of reconciliation for previously issued items.
- 1.9 The Subcontractor, following handing over of all the Works to PNC in accordance with the requirements of this Agreement, shall provide any additional related information, and reply to whatever questions and requests for consultations and clarifications that PNC may require, at no additional cost to PNC.
- 1.10 Subcontractor shall maintain the required number of experienced engineers, operators and supervisory staff at site in connection with the respective scope of the work of the Project. Subcontractor shall adhere to the deployment of experienced staff as per the Contract condition, failing which Client shall levy the penalty as mentioned in the Contract which shall be borne by the Subcontractor.
- 1.11 The Subcontractor shall ensure that all the work shall be confirmed to the specifications and standards of the contract agreement executed between PNC SPML-JV & Client.
- 1.12 If any material is supplied to the subcontractor, then supply will be under GST for PNCIL. GST shall be charged on it at applicable rate from contractor and the terms and conditions of sale shall be as mentioned in the Tax invoice with rates pertaining to the date of supply as decided by PNC representative and shall be deemed final.

PKj



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

2. Representations and Warranties:

The Subcontractor hereby represents and warrants that:

- 2.1** It has all the expertise, experience, manpower, authorizations under charter documents, licenses, permits and financial means required for the purpose of performing the Works in an expert manner and in accordance with the schedule under this Agreement.
- 2.2** It has financial standing and capacity to undertake the works in its scope and as per the terms & conditions of the Agreement.
- 2.3** It shall take all necessary permissions as required in law which are required for to perform all obligations under the contract.
- 2.4** The Sub Contractor has gone through the terms and conditions of Agreement and has inspected the site, examined to scope of project, specification and standards before entering into the present agreement.
- 2.5** PNC shall have right to appropriate any amount towards any loss, or damages it has incurred or any amount which is found payable by the Sub Contractor in the Agreement under question.

3. The Subcontractor's undertakings:

The Subcontractor hereby undertakes that throughout the entire period of this Agreement, the Subcontractor shall:

- 3.1** Perform its obligations in a professional manner, with expertise and competence, shall maintain regular communication with PNC Representative concerning the progress of the Works and provide with all requested data, information and documents relating thereto.
- 3.2** Strictly follow the quality norms and requirements as per the Technical Specifications; the Requirements and BOQ included is as attached hereto, to the full satisfaction of PNC.
- 3.3** Setup a Site office, labour camp and storage facilities for tools & tackles and equipment's as necessary, on the respective site, subject to receipt of access to the site from PNC.
- 3.4** Fully cooperate with and coordinate the performance of the Works with the work carried out by other persons at or near the Site.
- 3.5** Maintain a construction site logbook (diary) for the Works, duly completed and updated in accordance with the applicable law and PNC instructions.
- 3.6** Provide monthly/weekly progress reports (or in a shorter interval if so determined by PNC Representative) with respect to the Works performed and any delay encountered during the period covered by the report or anticipated in the future ("Reports").
- 3.7** Attend status meetings and other meetings as requested by PNC Representative.
- 3.8** Subcontractor shall be entirely responsible to adhere to the highest standards of health, safety and environment regulations at the site during execution of the Project as per the requirements outlined by the Client from time to time including (but not limited to) the following:
 - 3.8.1** Take all precautions to maintain the health of everyone on its behalf, including by ensuring that suitable arrangements are made for all necessary welfare and hygiene requirements and for the prevention of epidemics;
 - 3.8.2** Take care for the safety of all persons entitled to be on the Site; and
 - 3.8.3** Provide for any temporary works (including footways, guards and fences) which may be necessary, due to the execution of the Works, for the use and protection of the public and of owners and occupants of adjacent land.
- 3.9** Subcontractor shall not permit any of the Subcontractor's personnel to maintain any temporary or permanent living quarters within the structures forming part of the Works;
- 3.10** Subcontractor shall provide and maintain the necessary security means at the Site and keep unauthorized persons away, shall take all reasonable steps to protect the environment and limit damage and nuisance to people and property resulting from pollution, noise and other



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

results of its operations; and in the performance of the Works, fully comply with all applicable law, regulations, codes and Technical Specifications and Requirements

4. Works Acceptance and Completion:

4.1 PNC Representative shall issue to the Subcontractor an approval of completion and acceptance of the Works ("Completion Approval") within 30 (Thirty) days following the occurrence of all the following events.

4.1.1 The Works have been completed and successfully commissioned in accordance with this Agreement to the full satisfaction of PNC and any other obligations been fulfilled as required.

4.1.2 The Subcontractor has to clean the Site and has to remove all debris, wreckage, obstruction and any unnecessary remains from work location.

4.1.3 All debit note amounts shall be deducted by PNC from Subcontractor and if any recovery was found to be done, the same shall be verified and deducted by PNC

4.1.4 In the event that any part of the Works was rejected and the rejected part of the Works has been re-done and such re-done parts of the works have been accepted by Client & PNC

4.2 If any issue, dispute or claim shall be outstanding or pending between PNC and the Subcontractor at the time of issuing of the Completion Approval, PNC Representative may condition or limit any confirmation, admission or certification expressed in the Completion Approval to exclude such outstanding or pending issue from the scope of such confirmation, admission or certification.

5. Liquidated Damages for Delays:

5.1 The liquidated damages if any shall be in line with the agreed terms of the contract executed between PNC-SPML JV and the Client which is part of the RFP

5.2 If the sub-contractor fails to complete the works in time period as stipulated above, PNC shall have a right to terminate the contract and/or to get the balance works executed either on its own or through any other agency of PNC's choice, at the risk and cost of the sub-contractor and the decision of PNC in this regard shall be final and binding. The amount so spent towards the cost of such execution along with overheads as computed by PNC shall be deducted from the sub-contractor's due payments/bills and/or performance security and/or retention and the decision of PNC shall be final & binding in this regard and shall be liable to pay the same at its first demand.

5.3 PNC shall be entitled to withhold all such payment(s) under any head(s) and/or account payable to the sub-contractor till all the work are not completed with uniform and corresponding progress in all respects and/or final bill is prepared and certified and/or in case where the work order is terminated or the works are executed at risk and cost of sub-contractor till such time the entire works are not complete and the costs are not worked out..

6. DEFECTS LIABILITY PERIOD:

6.1 The Warranty Period for the purpose of this Agreement shall be 12 (Twelve) months from the date of the issuance of the Completion Approval by PNC Infratech Limited.

6.2 In case any non-compliance with the terms of this Agreement is discovered in the Works during the Warranty Period, the Subcontractor, at its own cost shall promptly, but in no event later than 14 (Fourteen) calendar days after PNC notifies it of said defect .

6.3 If the Subcontractor fails to repair or make such changes to the Works as aforesaid within the time specified by PNC, PNC may, without limiting any of its rights and/or remedies under this Agreement and/or under applicable law and in addition to any such rights and/or remedy, carry out the said repair, re-performance or changes by itself or by means of a third party on its



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

behalf, and be entitled to full reimbursement of all costs resulting there-from, plus an additional 15% of such cost from Subcontractor.

7. Measurement and Evaluation of the Works:

7.1 The Works shall be measured, and valued for payment, in accordance with this Clause. The Subcontractor shall show in each application for payment the quantities and other particulars detailing the amounts, which he considers entitled under this Agreement.

7.1.1 Whenever PNC Representative requires any part of the Works to be measured, reasonable notice shall be given to the Subcontractor, who shall promptly attend and assist PNC Representative in making the measurement, and supply any particulars requested by PNC Representative.

7.1.2 If the Subcontractor fails to attend, the measurement made by or on behalf of PNC Representative shall be accepted as accurate.

7.2 If the Subcontractor examines and disagrees with the records, and/or does not sign them as agreed, then the Subcontractor shall give notice to PNC Representative of the specific aspects in which the records are asserted to be inaccurate. PNC Representative shall review the records and notify the Subcontractor of its decision to either accept or deny them. If the Subcontractor does not give any response to PNC Representative within 7 (Seven) days after receiving PNC decision, the records shall be deemed to be considered accurate.

7.3 Except as otherwise stated in the Agreement and notwithstanding local practice:

7.3.1 Measurement shall be made of the net actual quantity of each item of the installed Works. Unless specifically instructed in writing by PNC Representative, the Works performed in excess of their description in the Drawings and the Technical Specifications shall not be paid for.

7.3.2 The method of measurement shall be in accordance with the Bill of Quantities or other applicable Annexes.

7.4 The rate or price for each item of Work shall be as specified in this Agreement. If there is no rate or price specified for a specific item or Work, then the rate or price to be considered shall be for a similar item or Work, as may be applicable.

7.5 All rates and unit prices in the Bill of Quantities shall not be subject to any escalation, change or adjustment for any reason. Without derogating from the above, the omission of or reduction in quantity of any Works shall not entitle the Subcontractor to any additional payment, nor shall it justify any change in rate or unit price of any Work item.

8. Consideration and Payment:

8.1 In consideration for the full, satisfactory and timely performance of all its obligations hereunder, PNC shall pay the Subcontractor the accumulative sum of the amounts determined by PNC Representative in accordance with Clause 7, exclusive of Goods and Services Tax (GST), to the extent applicable ("Consideration").

8.2 The estimated Consideration including GST is as mentioned in the Work Order however the final Consideration shall be determined in accordance with the actual quantity of the Works executed by the Subcontractor and confirmed as aforesaid.

8.3 The Rate List is as per attached annexure. However, BOQ will be the same as per approved & finally accepted by TPI/PMC/DWSM/SWSM/DM/JJM/UPJL. The same shall be the certified quantity.

8.4 All payments shall be made to the Subcontractor against approved, timely and duly issued original invoices to PNC by the Subcontractor, together with all required and approved supporting information, documents and reports, within 15 (Fifteen) days following the date on which the Subcontractor's invoice was approved for payment and receipt of amount from client.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

- 8.5** The approval of any Subcontractor's invoice by PNC Representative and/or the payment by PNC of any amount on account of the Consideration shall not constitute an approval of the quality of the Works, and shall not relieve the Subcontractor from any liability and/or derogate from any right or remedy available to PNC.
- 8.6** The Consideration represents full, final and complete payment of any and all amounts to which the Subcontractor is or may be entitled in connection with the Works and expenses incurred by the Subcontractor in connection with the Works, including for, repairs, labour, accommodation, transportation, security, insurance, maintenance cost during the Warranty Period, (overhead etc.), all direct and indirect taxes, duties and other compulsory payment applicable to Works or Subcontractor (including TDS) and exclusive of Goods & Service Tax (GST), and all other inputs of any kind, necessary for proper performance and satisfactory completion of the Works and the remedying of any defects therein in accordance with the provisions of the Contract, and for the fulfilment of all other obligations of Subcontractor hereunder.
- 8.7** The Parties hereby agree that the Consideration is final and fixed and shall in no way be subject to any price escalations or variations for any reason, for the duration of this Agreement and until the end of the Warranty Period.
- 8.8** The Subcontractor is solely responsible and liable for the entire payment of any and all taxes, duties, fees, charges or levies imposed on it and/or any of its employees, Subcontractors and anyone on its behalf.
- 8.9** PNC shall be entitled to exercise and/or forfeit the Retention and/or, in the event that the Subcontractor has breached any of his obligations under this Agreement and has not remedied such breach within 10 (Ten) days from receipt of a written notice from PNC specifying the breach and requiring its remedy. In addition, in the event that the Subcontractor fails to extend any Guarantee at least 14 (Fourteen) days prior to its expiration date, PNC shall be entitled to exercise the relevant Guarantee.
- 8.10** Approval/validation charges of all the works as mentioned in the scope of work along with testing, if any required, by TPI/PMC/Client/PNC/Government Engineering College/NIT shall be borne by the Subcontractor.
- 9. Taxes & Duties & Royalties:**
- 9.1** GST shall be payable extra as per prevailing rule. PNC will release GST amount to Subcontractor after submission of proof of deposit of GST and reflection of the same in GSTR-2A.
- 9.2** TDS, as applicable shall be deducted from Subcontractor's bill and necessary TDS Certificates shall be issued.
- 9.3** If Subcontractor fails to submit monthly return of GST and / or payment of GST within one month of supply to PNC, PNC shall have the liberty to recover GST amount from the Subcontractor and / or take penal action.
- 9.4** Before accepting of Work Order, Subcontractor shall check the details of HSN Code/Service code, GSTN (GSTN Number), PNC Address (Delivery address) including state code and Subcontractors dispatch location including state code as applicable. Moreover, Subcontractor shall ensure all applicable Tax rates as mentioned in the Work Order. For any changes, Subcontractor shall inform PNC for making necessary amendment. No deviation shall be entertained post Receipt of accepted work order.
- 10. Statutory Compliance:**
- 10.1** Subcontractor shall fully comply with all the regulatory and statutory requirements/ obligations referred to in the PNC/Client Contract, which shall be read along with the Contract Agreement and the general laws of India as applicable in relation to the execution of the Projects including those stipulated under the labour legislations viz., PF, E.S.I.

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

Contract Labour, Minimum Wages, Labour Cess, Insurance and any other acts as applicable.

- 10.2** Subcontractor shall be entirely responsible for all such adherence and the cost for such compliances shall be borne by the Subcontractor.
- 10.3** All contributions towards capital expenditure, machinery and equipment, working capital contributions, insurance costs and any other expenses that may be required during Project execution shall be arranged/ borne by Subcontractor.
- 10.4** If the aforementioned statutory requirements are not met with the expectations of PNC/Client & documented, PNC shall reserve the right to hold 5% of the contract value on account by default and specifically subcontractor needs to provide EPF & ESI Challans with payment proof of the previous month, otherwise 2% shall be deducted from gross amount of the bill and the same will be deposited in the name of the employees of subcontractor/agency after a period of 2 months of deduction if no payment proof is submitted to PNC.
- 10.5** The work has to be executed in such a planned manner so that there should not be any idling of labours, equipment's and machineries and if any such idling arise, the same shall not be entertained by PNC/Client

11. Guarantees:

- 11.1** PNC shall deduct from each approved invoice an amount equal to 5% of the approved invoice (the "Retention"). The Retention shall be retained by PNC until the issuance of the Completion Approval and shall be released to the Subcontractor subject to and against an unconditional bank guarantee for 5% of the Consideration, issued by a reputable bank agreed upon by PNC, payable on first demand, valid until the end of the Defects Liability Period. In the event, the Retention shall be released to the Subcontractor within 30 (thirty) days from the end of the Defects Liability Period.
- 11.2** PNC shall be entitled to exercise and/or forfeit the Retention Guarantee, in the event that the Subcontractor has breached any of his obligations under this Agreement and has not remedied such breach within 10 (ten) days from receipt of a written notice from PNC specifying the breach and requiring its remedy. In addition, in the event that the Subcontractor fails to extend any Guarantee at least 14 (fourteen) Days prior to its expiration date, PNC shall be entitled to exercise the relevant Guarantee.
- 11.3** For the avoidance of doubt, the provision of the Retention and or the forfeiture thereof by PNC, shall not derogate from PNC remedies under the Agreement and/or the applicable law.
- 11.4** All costs associated with the issuance, maintenance, replacement, renewal and restoration of the Guarantees shall be exclusively borne by the Subcontractor.
- 11.5** The Sub Contractor shall maintain and keep all guarantee/Bank Guarantee alive till such time of the finalization of all accounts and final bill is not certified. The PBG however shall be kept alive till the Defect Liability Period is not over to the satisfaction of the PNC.

12. Completion Schedule

- 12.1** The time of completion for the each project shall be as per the clause provided in RFP/ as agreed in between the client/PNC/ as instructed by PNC representative at site.
- 12.2** PNC shall have the right to request changes to the Works ("Change" and "Change Request", respectively). The Subcontractor hereby undertakes to comply with any Change Request at no additional cost or expense to PNC other than as provided for in this Agreement and without any delay of the Time Schedule, provided that where the Change results in material additional Works outside the scope of the Works ("Additional Works"), the Parties shall agree on the consideration for such Additional Works, which shall be based on

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

the unit prices of the Works detailed as attached annexure/SOR, and the additional time granted to the Subcontractor for the performance of the Additional Works. In the event that the Additional Works include Work items with respect of which no Unit Prices are provided in annexure, the consideration for such items shall be priced by the Subcontractor in accordance with the provisions of Clause 7.4 or, based upon its additional proven Basic / actual (whichever is lower) costs resulting from these Work items plus 10% overhead and profit, and shall be subject to the prior approval of PNC Representative.

12.3 Any dispute between the Parties with respect to the consideration for the performance of any Additional Works shall be referred to arbitration in accordance with Clause 19. Any such dispute or arbitration proceedings shall not entitle the Subcontractor to detain, withhold, postpone, suspend, slow-down or otherwise delay or stop any part of the Additional Work or the Change.

12.4 PNC may at any time decrease the scope of the Works (either by reducing the quantities of the Works and/or by omitting items of Works), and the Consideration shall be paid to the Subcontractor in accordance with the decreased scope of the Works as provided in Clause 7. For avoidance of doubt, no compensation shall be paid to the Subcontractor in relation with such decrease.

12.5 PNC may, at any time following such Change Request, decide not to proceed with such Change and shall notify the same to the Subcontractor, in writing. PNC shall only be obligated to pay the Subcontractor the direct costs incurred by it for that part of the task already executed and approved by PNC Representative.

12.6 In the event the Parties agree on additional works that are not regarded as extra / additional and are not covered by the scope of the Works in this Agreement, then the extra items shall be priced according to the basic / actual (Whichever is lower) costs of labour, hire charges, governmental tax at prevalent rates. as well as 10% Overhead & profit on such value of the works before taxes

13. Insurance:

13.1 The Subcontractor shall procure and maintain, during the term of the Subcontractor's liability under this Agreement and any applicable law, at its expense, all necessary insurances. All insurance policies shall be submitted to PNC within 21 (Twenty-one) days following the signing of this Agreement.

13.2 Failure on the part of the Subcontractor to procure or maintain the insurance policies providing the required coverage, conditions and minimum limits, shall constitute a material breach of this Agreement upon which PNC may immediately terminate this Agreement, or at its discretion PNC may procure or renew any such policy or any extended reporting period thereto and may pay any and all premiums in connection therewith, and all monies so paid by PNC shall be repaid by the Subcontractor to PNC upon demand, or PNC may set off the cost and expense of the said premiums against any monies due to the Subcontractor from PNC.

14. Intellectual Property:

All reports, specifications, products and all documents and other information supplied by PNC and/or anyone on its behalf and/or produced by the Subcontractor and/or anyone on its behalf in connection with the Works, the Project and/or this Agreement ("Documents"), and all proprietary and intellectual property rights therein shall be and remain the property of PNC as first owner thereof. The Subcontractor shall not be entitled to use the Documents or any part thereof for any purpose other than for the performance of the Works and shall not be entitled to disclose them to any third party without the prior written consent of PNC.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

15. Term and Termination:

PNC shall have the right to terminate this Agreement in whole or in part, at any time for PNC convenience, by giving a 30 (Thirty) days' prior written notice of such termination to the Subcontractor.

PNC shall have the right to terminate this Agreement without prior notice in any of the following events.

- 15.1** If the other Party is found to be guilty of dishonesty or misconduct or breach of this Agreement; and
- 15.2** If the other Party becomes bankrupt or enters into liquidation or has a receiver, manager or administrator appointed over the whole or any material part of its assets or undertakings.

16. Effects of termination:

- 16.1** Upon expiration or termination of this Agreement for any reason, the Subcontractor shall, desist and discontinue all actions related to the Works and at no additional cost to PNC Infratech Limited, shall immediately transfer and deliver to PNC Infratech Limited, at its expense, any and all Documents and information related to this Agreement and the Project and shall not keep any copy of any part thereof unless specifically agreed upon in writing at that time by PNC Infratech Limited. The Subcontractor shall cooperate at all times with PNC in affecting the transfer.
- 16.2** The Subcontractor shall be entitled to payment for the Works that were performed by it and approved by PNC Representative up until the time of termination, and without derogating from PNC rights under this Agreement or any applicable law, in the event of termination by PNC in any of the events mentioned in Clause 15.2 above, PNC shall be entitled to set-off any damage, loss and expense caused to or suffered by PNC in connection with such termination.
- 16.3** In the event of termination of this Agreement for any reason and notwithstanding thereof, the terms of Clauses 14 [Intellectual Property], 17 [Confidentiality], 18 [Liability and Indemnification] and 19 [Law and Dispute Resolutions] shall survive the termination and remain in full force and effect and shall continue to bind the Parties in all respect.

17. Confidentiality:

Both during the term of this Agreement and after its termination, the Subcontractor undertakes:

- 17.1** To maintain all the Confidential Information in strict confidence and to refrain from any disclosure and/or publication and/or communication of the Confidential Information, in whole or in part, either directly or indirectly, to any third party whatsoever, without receiving the prior written approval of PNC Infratech Limited;
- 17.2** Not to use any Confidential Information for any purpose other than the performance of the Works under this Agreement; and
- 17.3** Upon PNC first written request, to return to PNC all Confidential Information of any type, as well as all copies thereof.
- 17.4** "Confidential Information" means this Agreement and any Documents and/or information related to the Project and/or the Works and/or concerning PNC and/or PNC subsidiaries or affiliates which are non-public, confidential and/or proprietary in nature which may be provided to the Subcontractor under this Agreement, or that the Subcontractor may become acquainted with or has access to due to the Works it performs under this Agreement as well as any materials, documents, charts, designs or other information, in any form, prepared by the Subcontractor in connection with this Agreement.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

18. Liability and Indemnification:

- 18.1** The Subcontractor shall be responsible for the full, timely and satisfactory performance of the Works hereunder, and shall be fully responsible and liable for, and shall fully indemnify and hold PNC harmless, its affiliates, officers, directors, clients, agents and employees ("Indemnities") from and against any damage, loss, expense, costs and/or harm (including, without limitation, bodily injuries, damage to property and legal fees), incurred (whether directly or indirectly) by PNC and/or any of the indemnities and/or the Subcontractor and/or anyone acting on its behalf (including, without limitation, its employees, agents and Subcontractors), arising out of or related to any act or omission of the Subcontractor and/or anyone acting on its behalf or under its supervision, including, without limitation, its employees, agents and Subcontractors ("Causes").
- 18.2** The Subcontractor shall defend PNC and any of the indemnities from and against any demands, claims, suits and proceedings (civil or criminal) asserted against any of them in connection with any of the Causes. PNC shall notify the Subcontractor of any such claim, suit or action and allow it, as much as it depends on PNC, to participate and defend PNC against any such proceedings.
- 18.3** PNC shall not bear any responsibility and/or liability whatsoever, to the Subcontractor, its employees, consultant or anyone on its behalf, except as expressly and specifically indicated in this Agreement and to the extent specified herein, and the Subcontractor shall not have and hereby waives any additional relief and/or claim against PNC. Without derogating from the generality of the aforesaid, PNC shall not bear any responsibility and/or liability whatsoever, to the Subcontractor, its employees, consultants or anyone on its behalf or under its supervision, in relation to use of, or reliance upon any information relating to the execution of the Subcontractor's obligations hereunder.
- 18.4** In case of violation of any terms & conditions of this work order or any illegal pressure imposed on PNC or theft, then PNC shall have sole right to cancel this work order with immediate effect and then balance payment of subcontractor's dues/ bills, shall be forfeited to the extent of such damages caused to PNC, PNC-SPML JV on account of such theft/misrepresentation.

19. Law and Dispute Resolution:

- 19.1** This Agreement and the rights and obligations of the Parties hereunder shall be governed and construed in accordance with the laws of India without regard to its conflict of law principles.
- 19.2** If a dispute, claim or controversy arises out of or in connection with this Agreement, the Parties shall negotiate in good faith in an attempt to reach an amicable settlement. If the disputed matter is not settled amicably between the Parties within 30 (thirty) days, such disputed matter shall be finally settled in arbitration as set out herein below.
- 19.3** Any dispute arising between the Parties with relation to this Agreement shall be referred to Arbitration comprising of a sole arbitrator to be appointed by PNC. Any orders/ directions/ award of the sole arbitrator shall be final and binding on the Parties. The arbitration proceedings shall be held in English language in accordance with the Arbitration and Conciliation Act, 1996 and the Rules made thereunder, or any statutory modification(s) or re-enactment(s) thereto for the time being in force. The venue of Arbitration shall be at Agra.
- 19.4** The cost of the arbitration proceedings shall be first borne equally by the Parties and the arbitrator shall be requested to rule on the division of these costs between the Parties along with his principle decree.
- 19.5** The Parties shall continue to perform their respective obligations under the Contract not with standing any referral of a dispute to arbitration herein.

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

20. Miscellaneous:

- 20.1** The Subcontractor shall have to hold a valid license under the Contract labour (Regulation & Abolition) Act 1970, wherever it is required.
- 20.2** The Subcontractor shall have to pay all fee / dues and maintain such registers and records containing such particulars of contract labour employed by them under the Contract Labour (Regulation and Abolition) Act, 1970, EPF Scheme-1952, 1995 & Amendment - 2016, Payment of wages Act-1936, Workmen's Compensation Act- 1923 or any other law including particulars regarding the nature of work performed by the contract labour.
- 20.3** The Subcontractor shall make the arrangement of food, snacks and tea/soft drinks for such workers and PNC shall not be responsible for the same.
- 20.4** If PNC finds that any worker of the Subcontractor is not able to carry out the Work satisfactorily or is otherwise physically unfit to carry out the Work involved, the Subcontractor shall withdraw such worker from the duty assigned to him and substitute some other worker on his behalf.
- 20.5** Every worker during the period of his work will be bound to observe the rules and regulations of PNC relating to his movement, dress and discipline. If there is any breach thereof by any such worker and PNC suffers any penalty, monetary loss or other charges the Subcontractor shall be responsible for the same and the Subcontractor shall reimburse PNC for any such liability.
- 20.6** The Subcontractor shall be responsible for the payment of wages to each worker when payable, and PNC can nominate an authorized representative to be present at the time of wage disbursement by the Subcontractor who shall certify the amounts paid as wages by the Subcontractor in the manner prescribed by applicable law.
- 20.7** Every worker engaged by the Subcontractor shall be as per applicable labour laws.
- 20.8** The Subcontractor should provide a list of Names, Aadhaar & Bank details of worker to PNC in prescribed form before engaging any labour at site.
- 20.9** It is the responsibility of the Subcontractor to see that the workers do not go on any strike or stop Work.
- 20.10** The Subcontractor shall comply with all law and regulations governing the relation between the employer and employee which are in force as if the Subcontractor is the employer and the worker his employee. The Subcontractor agrees to indemnify and keep indemnified PNC against any loss, charges and expenses suffered by it on account of breach of any law.
- 20.11** In case of any discrepancy or conflict between any of the annexes, the provisions of the Annex so determined by PNC Representative, shall prevail.
- 20.12** No amendment to or modification of this Agreement shall be effective unless made in writing, duly signed by all the Parties.
- 20.13** **Force Majeure:** If any event beyond the reasonable control of either Party occurs, which (i) constitutes exceptional and unforeseeable circumstances, including war and terrorist activities (but excluding strikes, shortage in work force etc.), which, despite the exercise of diligent efforts, such party was unable to prevent, limit or minimize, and (ii) the scheduled performance of any major part of the Works or their completion date, then provided that such event was acknowledged and approved as an event of Force Majeure by PNC, the Party claiming such event shall be excused from whatever performance is prevented thereby to the extent so affected. In such circumstances, neither Party shall be entitled to terminate this Contract on the basis of such non-performance or non-payment
- 20.14** The Subcontractor shall not assign, transfer, sublet, sell, pledge or otherwise dispose of, in whole or in part, its rights or obligations hereunder, without PNC prior written consent. PNC may assign its rights and/or obligations under this Agreement in whole or in part, to any of

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

its affiliated companies and/or to PNC, or to encumber or pledge any of its rights under the Contract, without the consent of Subcontractor.

- 20.15** PNC shall be entitled to set-off or withhold from the Consideration payable to the Subcontractor hereunder, any amounts owed by the Subcontractor to PNC under any contract or agreement and/or, under any applicable law.
- 20.16** Any and all notices, requests, consents and communications required or permitted to be given or made pursuant to this Agreement shall be in writing and deemed to have been given when delivered in person to the other Party to whom the communication or document is addressed or when sent by registered mail or confirmed facsimile to such Party at the addresses detailed set forth above. Each of the Parties hereto shall be entitled to give the other Party written notice of any change of address or the authorized representative relating to the Party giving such notice.
- 20.17** No waiver of any term or condition of this Agreement shall be considered as a waiver of any other breach of such term or condition, or of any other term or condition, nor shall any failure to comply any provisions hereunder. Any waiver by either party to any provisions of this Agreement shall only be binding if made and confirmed in writing.
- 20.18** This Agreement cancels, supersedes and replaces any and all prior agreements or Understandings, oral or written, between the Parties of this Agreement with regard to its subject matter.
- 20.19** The above rate are for completion of all activity in all respect as stated in the BOQ and Inclusive of all direct and indirect cost, overhead and profit margin for exceeding the work and the quantity given in the above work order are tentative and increased are decreased to any extent.
- 20.20** The Dispute arising out of the contract during the execution of the work that are on Completion which could not be amicable solved by the engineer shall be referred to CMD of employer ("PNC") for his decision, which will be binding on both the parties.
- 20.21** Any further dispute will be addressed only to court in Agra jurisdiction.

PK





NAME OF PROJECT: IMPLEMENTATION OF VARIOUS RURAL WATER SUPPLY PROJECTS IN THE STATE OF UTTAR PRADESH UNDER THE JAL JEEVAN MISSION.

NAME OF EMPLOYER: PNC INFRATECH LIMITED

Subject: Common Check List for Construction of Boundary Wall (BW) & Pump House (PH), Interlocking Tiles Pavement, Other related Units Etc., Construction of RCC Over Head Tank of desired capacity & staging above ground level & Pipe laying work in all respect including hydrotest & Associated civil Work

Revision-R1
Dated: 24-03-2023**Check List**

Sl. No.	Description	Scope	Signature of PNC Representative	Signature of Contractor's Representative
1	Approval/ Validation charges of all works & Joint Measurement book (MB) from TPI/PMC/Client/PNC/Government Engineering College/NIT	Contractor		
2	Details of Labour attendance of all working days to be submitted to PNC. PNC shall verify as and when required.	Contractor		
3	List of Names, Aadhaar & Bank details of worker shall be submitted to PNC in prescribed form before engaging any labour at site.	Contractor		
4	Monthly muster roll upto last month within 3 working days shall be submitted to PNC	Contractor		
5	Electricity for Construction & lighting Purpose for night work.	Contractor		
6	Labour PF, ESI, GST Registration, Labour License is to be taken care by contractor	Contractor		
7	TAXES : Only TDS and Labour cess will be deducted as applicable. GST will be paid extra as applicable. Relevant documents shall be submitted to PNC on monthly basis.	Contractor		
8	Contractor will deposit EPF(both side), ESIC, on the basis of furnished documents by contractor i.e. Muster roll & wages register upto closing month If Contractor does not fulfill Statutory Compliance then, PNC will deduct Cumulative of 5% from over all bill and If Contractor does not provide EPF and ESI Challans only with payment proof for the labour engaged in issued work order job, then PNC will deduct 2% from over all bill.	Contractor		
9	Water for construction / hydro test and curing	Contractor		
10	Labours for all testing related to Construction work, like Compaction Test, Cube Testing etc shall be arranged by contractor. PNC shall set up lab facilities to help the contractor in testing as possible. If any additional tests required or if PNC lab is found occupied with other contractor testing, then contractor shall get it tested at the approved third party lab agency as suggested by TPI/Client/PNC at contractors cost.	Contractor		
12	Work Man Compensation Policy	Contractor		
13	Labour Enforcement Officer - Documentation and Co-Ordination	PNC		
14	One bill per month. Bill should be make upto 25 th of each month and submit to PNC office on 28th of every month with muster roll.	Contractor		
15	Curing of all Civil Structures at regular Interval	Contractor		
16	Dewatering of surface/ rain water by dewatering pump.	Contractor		
17	Excavation by mechanical (as JCB & POCLAIN depending on works)	Contractor		
18	No Idle payment : Due to any hinderance at work or any other reasons, no labour/Idle payment will be made by PNC	Contractor		
19	All tools and tackels, Plants and Machineries/ equipments required for construction and testing of civil or pipeline work in contractor scope.	Contractor		



Check List

Sl. No.	Description	Scope	Signature of PNC Representative	Signature of Contractor's Representative
20	All PPE: Safety Helmet, Safety Shoes, Safety Belt, Safety Jacket and if Issued by PNC Store the amount will debited from contractor bill.	Contractor		
21	All construction material shall be in Contractor's Scope, with material QAP and Approval if any required. If any material/ equipment will be provided by PNC to avoid the delay in completion of any work on the behalf of the contractor then actual cost of material/ equipment plus 3% will be debited from the payments/ invoices or according to tax invoices issued to contractor for the same.	Contractor		
22	In Case of Civil works & OHT Work Orders Only Cement and Reinforcement Steel will be provided by PNC	PNC		
23	In Case of Pipeline Work Orders Pipes/ Fittings/Valves/Specials/FHTC material will be provided by PNC & Cement, Reinforcement steel, Bricks, Sand Aggregate, etc. for associated civil works will be in Subcontractor's scope.	PNC/ Contractor		
24	Cement and Steel to be used as per BBS and Design Mix. Any extra material consumed shall be debited from contractor bill.	Contractor		
25	All Plumbing, Electrical Item/Fixtures or any other items other than free issue materials and its fixing work shall be in contractor scope.	Contractor		
26	All consumables for executing the work other than free issue materials which may include diesel, shuttering materials, scaffoldings, Doors, windows, tiles, paints etc but not limited to, shall be in contractor scope.	Contractor		
27	Reconciliation of free issue materials on monthly basis. (In case of loss/damage, cost of same shall be debited from contractor)	Contractor		
28	Non-satisfactory labour can be removed within a day notice by PNC, full and final settlement to be ensured by contractor.	Contractor		
29	Progress Report and Photographs on daily basis.	Contractor		
30	Healthcare, Food, Accommodation, & Sanitation of Work force.	Contractor		
31	Security of all equipments, manpower, materials of contractor shall be in contractor scope.	Contractor		
32	Provide clear and compacted access to execution location and its maintenance till the end of the project execution/ WO which ever is earlier is in contractor scope.	Contractor		
33	Protection of existing utilities (underground/in open) such as sewer lines/water lines etc.			
34	Prepare as-built drawings for the works executed and its approval from TPI/Client at site level	Contractor		
35	Delay reasons shall be registered and updated to PNC on weekly basis	Contractor		
36	Clearance of punch points issued from TPI/ Client/ PNC	Contractor		
37	Backfilling of trenches/ foundation pits with material as per BOQ Specifications (rates already included in relevant items) for civil/pipeline works	Contractor		
38	Manual excavation (if any required/performed) will be in contractor's scope and rate for it will be same as that for mechanical excavation	Contractor		
39	If the sub-contractor fails to execute at the required output requested by PNC, PNC shall depute additional contractor at the workplace of existing contractor and the retention money of both contractors withdrawn work shall be released after completion of overall withdrawn work and as per retention money clause from the date of completion of said work.	Contractor		
40	Schedule for the work, catch up plans, labour, plant & machinery mobilization plan shall be submitted to PNC by contractor and be revised and resubmitted on monthly basis as per discussion with engineer in charge (PNC representative).	Contractor		



ANNEXURE-3**CHECK LIST FOR APPOINTING SUB / PETTY CONTRACTORS**

Date :

Project :

1	Name of Contractor	
2	Address	
3	Name of Partners / Directors / Proprietor	
4	Name of Contact Person	
5	Contact details & Mobile No	
6	Aaadhar No	
7	PAN Card No	
8	GST No (Copy of GST Registration Certificate to be submitted)	
9	Contractor's License Number and State	
10	Date of Expiry	
11	Status of Firm (CIN No., in case of Company/Private Ltd)	
12	Total Turnover in the last three financial years (Indicate the amount in lakhs)	
13	Details of Skilled / Semi-skilled / unskilled labours to be deployed	
14	Details of previous experience (attach list of clients)	
15	Bank details (Copy of cancelled cheque to be submitted)	
16	PF Registration No. (Copy of Regn. Details to be provided)	
17	ESIC Registration No. (Copy of Regn. Details to be provided)	
18	Workmen Compensation Policy with Medical /Accidental Rider	

I / We hereby declare that the details furnished above are true and correct to the best of our/my knowledge and belief and I undertake to inform you of any changes therein, immediately

Date :

Authorised Signatory
(Signaure sigh stamp)

दिनांक :

ANNEXURE - 4

सेवा में,
प्रोजेक्ट इंचार्ज
पी एन सी इंफ्राटेक लिमिटेड

साइट- जल जीवन मिशन के तहत उत्तर प्रदेश राज्य के अंतर्गत विभिन्न ग्रामीण जलापूर्ति परियोजनाओं का कार्यान्वयन

{विषय=लेबर वैधानिक अनुपालन सम्बंधित उद्घोषा एवं सहमति }

महाशय,

मैं.....पुत्रश्री.....अपने
फर्म.....

वर्क आर्डर नंबरके
द्वारा पी एन सी -एस पी एम एल-जेवी को जल जीवन मिशन के तहत उत्तर प्रदेश राज्य के विभिन्न ग्रामीण जलापूर्ति परियोजनाओं में उपलब्ध कराये गए दैनिक मजदूरों के सम्बन्ध में यह घोषणा करता हूँ की मैं ठेका श्रम रेगुलेशन एवं उन्मूलन अधिनियम 1970 ,मजदूरी भुगतान अधिनियम 1936 , न्यूनतम मजदूरी भुगतान अधिनियम 1948 ,कर्मचारी भविष्यानिधि अधिनियम 1952 एवं 1995 ,कर्मचारी राज्य बीमा 1948 अधिनियम के अंतर्गत सभी नियमों का पालन करूँगा।

उपरोक्त सभी नियमों एवं अधिनियमों के अलावा श्रम प्रावधानों के अधीन अन्य लागू होने वाले प्रावधानों के पालन के लिए जिम्मेदारी लेता हूँ एवं इस एवज पूर्ण रूप से आस्वस्त करता हूँ।

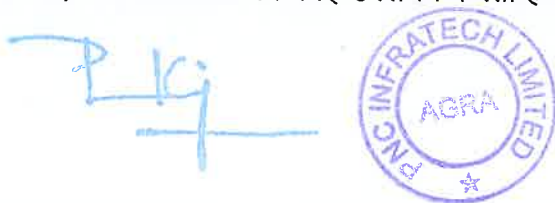
प्रत्येक माह के दौरान कार्य में लगाए गए मजदूरों की जानकारी उनके कार्य में लगाए जाने के पहले दिन से ही प्रस्तुत कर दूँगा एवं ठेका श्रमिक अधिनियम द्वारा लगाए जा रहे प्रावधानों को ध्यान में रखते हुए ही कार्य प्रारम्भ करवाऊँगा एवं अधीनस्थ सभी प्रावधानों का पालन करूँगा।

1.1 मैं यह सुनिश्चित करता हूँ की श्रम अनुबंध (विनियमन और उन्मूलन) अधिनियम 1970 के तहत जहां भी आवश्यक हो, के तहत एक वैध लाइसेंस धारण करूँगा

1.2 मैं यह सुनिश्चित करता हूँ की ऐसे श्रमिकों के लिए भोजन, स्नेक्स और चाय / शीतल पेय की व्यवस्था करूँगा और पी एन सी इसके लिए जिम्मेदार नहीं होगा

1.3 मैं यह सुनिश्चित करता हूँ की अगर पी एन सी को पता चलता है कि कोई भी व्यक्ति संतोषजनक तरीके से कार्य करने में सक्षम नहीं है या अन्यथा भौतिक रूप से शामिल कार्य को पूरा करने में असमर्थ है, तो ऐसे कार्यकर्ता को उसके द्वारा सौंपा गया कर्तव्य से वापस लेते हुए और उसकी ओर से किसी अन्य कार्यकर्ता को प्रतिस्थापित करेगा

1.4 मैं यह सुनिश्चित करता हूँ की उनके कार्यकाल की अवधि के दौरान प्रत्येक कर्मचारी अपने ड्यूटी , पोशाक और अनुशासन से संबंधित पी एन सी के नियमों और विनियमों का पालन करने के लिए बाध्य होगा यदि ऐसे किसी कर्मचारी द्वारा पी एन सी के नियमों का कोई उल्लंघन करता है और इस एवज पी एन सी को कोई दंड, मौद्रिक हानि



या अन्य आरोपों का सामना करना पड़ता है तो मैं इसके लिए ज़िम्मेदार होऊंगा और इस तरह की देयता के लिए पी एन सी की छति की प्रतिपूर्ति करूंगा

1.5 मैं यह सुनिश्चित करता हूँ की देय होने पर प्रत्येक कर्मचारी को मजदूरी के भुगतान के लिए ज़िम्मेदार होऊंगा , और पी एन सी ठेकेदार द्वारा मजदूरी वितरण के समय उपस्थित होने के लिए एक अधिकृत प्रतिनिधि को नामित कर सकता है जो ठेकेदार द्वारा निर्धारित तरीके से मजदूरी के रूप में भुगतान की गई राशि प्रमाणित करेगा लागू कानून द्वारा

1.6 मैं यह सुनिश्चित करता हूँ की मेरे द्वारा लगाए गए प्रत्येक कर्मचारी 22 वर्ष से कम नहीं होंगे और 50 वर्ष से अधिक उम्र के नहीं होंगे और प्रत्येक कार्यकर्ता के सम्बन्ध में सुनिश्चित करूंगा कि वह किसी भी बीमारी या बड़ी बीमारी से पीड़ित नहीं है और वह शारीरिक रूप से कार्य करने के लिए सक्षम है

1.7 मैं यह सुनिश्चित करता हूँ की पी एन सी को पूर्ण पते और कार्यकर्ता के नाम एवं आधार पहचान पत्र अनिवार्य तौर से कार्यकर्ता को लगाए जाने के पहले दिन ही प्रदान कर दूंगा

1.8 मैं यह सुनिश्चित करता हूँ की मेरे द्वारा प्रदान किये हुए कोई भी मजदुर अथवा कर्मचारी किसी भी हड़ताल पर नहीं जायेंगे या काम बंद नहीं करेंगे

1.9 मैं यह सुनिश्चित करता हूँ की नियोक्ता और कर्मचारी के बीच संबंधों को नियंत्रित करने वाले सभी कानूनों और विनियमों का पालन करूंगा जो कि लागू हैं जैसे कि लगाए गए श्रमिक , नियोक्ता और कार्यकर्ता उसका कर्मचारी है किसी भी कानून के उल्लंघन के कारण किसी भी नुकसान, शुल्क और खर्च के खिलाफ क्षतिपूर्ति करने के लिए सहमत हूँ

1.10 इस समझौते और उसके किसी भी अनुबंध के बीच किसी भी विसंगति या संघर्ष के मामले में, इस समझौते के प्रावधान प्रबल होंगे किसी भी अनुबंध के बीच किसी भी विसंगति या संघर्ष के मामले में, पी एन सी के प्रतिनिधि द्वारा निर्धारित अनुबंध के प्रावधान, प्रबल होंगे

1.11 इस समझौते में कोई संशोधन या संशोधन तब तक प्रभावी नहीं होगा जब तक कि सभी पार्टियों द्वारा विधिवत हस्ताक्षरित नहीं किया जाता है

1.12 मैं यह सुनिश्चित करता हूँ की पी एन सी की पूर्व लिखित सहमति के बिना, पूरे या आंशिक रूप से, इसके अधिकार या दायित्वों को हस्तांतरण, सबलेट, बिक्री, प्रतिज्ञा या अन्यथा निपटान नहीं करेगा पी एन सी इस समझौते के तहत अपने अधिकारों और / या दायित्वों को पूरी तरह से या कुछ हिस्सों में, किसी भी संबद्ध कंपनियों और / या पी एन सी को, या ठेकेदार की सहमति के बिना अनुबंध के तहत अपने किसी भी अधिकार को प्रतिज्ञा करने के लिए असाइन कर सकता है

1.13 मैं यह सुनिश्चित करता हूँ की किसी भी अनुबंध या समझौते के तहत या किसी भी लागू कानून के तहत पी एन सी को मेरे द्वारा प्रदत्त किसी भी राशि को मुझे देय संविधान से सेट-ऑफ या रोकथाम के हकदार होंगे

1.14 किसी भी और सभी नोटिस, अनुरोध, सहमति और संचार आवश्यक या इस समझौते के अनुसार दिए जाने या अनुमति देने की अनुमति लिखित में होगी और माना जाता है कि जब किसी अन्य पार्टी को व्यक्तिगत रूप से पहुंचाया जाता है जिसके लिए संचार या दस्तावेज संबोधित किया जाता है या कब पंजीकृत मेल द्वारा भेजा गया है या ऊपर बताए गए पते पर ऐसी पार्टी को पुष्टि की गई है यहां से प्रत्येक पक्ष अन्य पक्ष को पते के किसी भी परिवर्तन या पार्टी से संबंधित अधिकृत प्रतिनिधि को ऐसी सूचना देने के लिखित नोटिस देने का हकदार होगा

PK



1.15 इस समझौते की किसी भी अवधि या शर्त का कोई छूट या उल्लंघन इस तरह की अवधि या शर्त, या किसी भी अन्य कार्यकाल या शर्त के किसी भी अन्य उल्लंघन की छूट के रूप में कार्य नहीं करेगा, न ही किसी भी प्रावधान को लागू करने में विफलता इस तरह की छूट के रूप में संचालित होगी प्रावधान या यहां कोई अन्य प्रावधान किसी भी पक्ष द्वारा इस समझौते के किसी भी प्रावधान के लिए कोई छूट केवल लिखित नहीं होगी और लिखित में पुष्टि की जाएगी

1.16 यह समझौता इस विषय के पक्ष में इस विषय के पक्ष में किसी भी और सभी पूर्व समझौतों या समझों, मौखिक या लिखित, को रद्द और प्रतिस्थापित करता है

इस सम्बन्ध में **प्रत्येक माह के एवज कर्मचारी भविष्य निधि अधिनियम एवं कर्मचारी राज्य बीमा अधिनियम** के अंतर्गत किये जाने वाले मासिक योगदान को यदि मेरे द्वारा जमा नहीं करा पाने में असक्षम होते हैं तो कंपनी को पूर्ण अधिकार देता हूँ की कंपनी अपने भविष्य निधि एवं कर्मचारी राज्य बीमा अधिनियम के अंतर्गत लागू दर से जमा कर दे एवं कंपनी द्वारा इस हेतु जमा कराये गए प्रत्येक माह के योगदान को मेरे द्वारा लगाए जा रहे मासिक बिल से काटने की इजाजत देता हूँ एवं इस बाबत मैं इस सपथ पत्र के द्वारा अपनी सहमति प्रदान करता हूँ एवं इस सम्बन्ध में कंपनी को पूरी जानकारी उस निहित माह के (पुरे कार्य दिवस एवं मजदूरों का विवरण) सम्बंधित माह के अंतिम दिन पी एन सी इंफ्राटेक लिमिटेड के आगरा कार्यालय में जमा कर दूंगा।

आपकी सेवा में

मेसर्स



PKj

Annexure : 5

Work Phase Plan of Each GP post Cover Agreement Date

Sr. Nos	Module Description	Work Description	Phase-I	Phase-II	Pre-Trial Run	Remarks
1	Borewell (CM-3)	Drilling, Lowering, Compressor, OP Unit and Water Testing	0-1 Month		6 Months	
2	Pump House (CM-1)	Overall Completion	0-2 Months		-do-	
3	HDPE Pipe Laying (CM-10)	Pipelaying, Hydrotest, FHTC installation, Overall Line testing	0-1.5 Months		-do-	
4	Over Head Tank (CM-2)	Substructure	0-2 Months		-do-	
		Superstructure		2-4 Months		
		Installation of DI Pipes, Specials and other accessories required for overall completion		5th Month		
		Commissioning & Testing		6th Month		
5	Solar (CM-6)	Support Foundation	0-2 Months		-do-	
		Structure erection		3-4 Months		
		Panel Installation and other related works for overall completion		4-5 Months		
6	Boundary wall with Gates (CM-1)	Substructure	0-2 Months		-do-	
		Superstructure	2-3 Months			
		Gate Installation		3-4 Months		
7	Interlocking Paver Road (CM-1)	GSB & WBM	2-3 Months		-do-	
		Interlocking paver installation		5-6 Months		
8	Submersible Pumps (CM-4)	Installation of Submersible Pumps with all accessories complete in all respects	2-3 Months		-do-	
9	E&I Works (CM-5)	Panels, Cabling, glanding, termination complete in all respects		4-5 Months	-do-	
10	Diesel Generator (CM-5)	Foundation and DG installation complete in all respects	2-3 Months		-do-	
		Earthing Pit and complete in all respects	2-3 Months			
	Phase-I Completion		2-3 Months		-do-	
	Phase-II Completion	Completion in all respect for start Trial Run	5 Months		-do-	
	Commissioning		6 Months		-do-	

Note:

1. The Cover Agreement date is to be read as zero date.
2. Only applicable modules to be referred by the contractor.
3. If there is any delay in Sub-Contractor's performance. Which is conclusively proved that it is on account of reason solely attributable to the sub-contractor, resulting in extension of overall schedule for completion of project as given above, then PNC shall be entitled to recover from the sub-contractor by way of liquidated damages of 10% of total value of work.

21/11/19





Amendment of Work Order

PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM		Project Name	Barabanki Water Project (7012)
		Vendor Code	1205294
		Work Order No.	8500006875
		Work Order Date	24.08.2023
PAN No.	BXSPM6841F	Ref. No.	WV-1049
GSTIN	09BXSPM6841F1ZW	Amend. No. & Dt.	R2 / 01.08.2024
Billing Address: PNC INFRATECH LIMITED 3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)		Consignee Address: PNC INFRATECH LIMITED Gata 55,72,74,Nawabganj,Barabanki Dehat, BARABANKI-225001 Uttar Pradesh	
PAN No.	AACCP0377Q	PAN No.	
GSTIN	09AACCP0377Q1ZU	GSTIN	09AACCP0377Q1ZU

Order For: Work Order for Construction of Flat Slab Over Head Tank of required capacity & staging as per approved drawings & DPR in the state of Uttar Pradesh under the Jal Jeevan Mission for Barabanki District in Ayodhya Division.

Reference: Recommended by PM Barabanki

We are pleased to place our work order for the following services on you. You are requested to provide the services in accordance with particulars and conditions given below and confirm acceptance of the order by return mail.

Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
10	995424	CM2-OHT(ZnAl) 125KL 14M {GP: Pyarepur Saraiya ; Block: Masauli} Construction of Over Head Water Tank including supply of all materials(other than free issue materials mentioned in this document), labour, Tool and Plant etc. required for construction of RCC Over Head Tank offollowing capacity and staging, up to bottom flat slab level with allcomponents as per approved designs/drawings. The minimum grade of concrete in foundations, staging, staircase, balcony and flat slab shallbe M-25 as per approved mix design with approved cement, coarse sand andstone grit as per IS 11682. The work includes components from Foundation to Flat slab including RCCstaircase, RCC balcony, hand railing on Balcony and Staircase fabricatedin 3 rows of 20 mm NB medium class galvanized iron pipes on stand posts of 50x50x6 mm angle section welded to MS insert plates casted inconcrete, fixing and jointing of Ductile Iron D/F Pipes and specials ofappropriate size conforming to IS 8329-2000 as vertical pipes for inlet, outlet, overflow and washout as per latest / relevant IS specificationswith all jointing materials (clamps, nut bolts etc.), installation of DIduck foot bends with bed blocks casted in 1:2:4 PCC for thrust resistance, laying of DI pipeline from Pump house outlet to duck footbend of inlet line and from duck foot bend of outlet line to the HDPE/DIpipeline of distribution network, construction of floor apron with edge protection with brick lining as per design, Construction ofwashout/overflow chamber and chambers as required for sluice /butterflyvalves as per departmental type design and drawing, Supply and overflow and washout chambers to suitable point outside the water workscompound, painting of all concrete surfaces and steel works in railing etc. with three coats of approved shades of paint. All works shall bedone as per directions of Site In-charge/Project in-Charge.				
1.01	995424	After completion of Excavation, PCC and RCC of raft and foundation beam	EA	1.000	174,375.00	174,375.00
1.02	995424	After completion of Columns up to Plinth level including back filling.	EA	1.000	58,125.00	58,125.00
1.03	995424	After completion of staging and staircase up to half height	EA	1.000	174,375.00	174,375.00
1.04	995424	After completion of staging and staircase up to full height	EA	1.000	174,375.00	174,375.00
1.05	995424	After completion of RCC of ring beam and Flat Slab	EA	1.000	290,625.00	290,625.00
1.06	995424	After completion of piping arrangement, hand rail in GI, plastering (if required), painting 2 coats and finishing work including appurtenance.	EA	1.000	116,250.00	116,250.00



Work Order

PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address: UTKARSH INFRATECH BUILDER AND CONTRACTOR G FLR, KHASARA NO. 1229, MEERA LUCKNOW-226002 Uttar Pradesh, Contact : Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM			Project Name		Barabanki Water Project (7012)	
			Vendor Code		1205294	
			Work Order No.		8500006875	
			Work Order Date		24.08.2023	
PAN No.		BXSPM6841F	Ref. No.		WV-1049	
GSTIN		09BXSPM6841F1ZW	Amend. No. & Dt.		R2 / 01.08.2024	
Sr.no	SAC Code	Particulars	Unit	Qty	Rate	Amount
1.07	995424	After construction of Valve Chambers and placement of precast slabs in position and laying of floor apron with edge protection with brick lining, laying DI pipe lines inside water works campus, Finishing of flat slab after fixing of DI pipes/ puddles	EA	1.000	116,250.00	116,250.00
1.08	995424	After completion of testing and commissioning and final coat of paint before final handover	EA	1.000	58,125.00	58,125.00
			Sub Total			1,162,500.00
			State GST @ 9 %			104,625.00
			Central GST @ 9 %			104,625.00
			Grand Total			1,371,750.00

Amount in Words : Rupees Thirteen Lakh Seventy One Thousand Seven Hundred Fifty Only

Terms & Conditions:

- 100% of the amount for executed quantity shall be certified by PNC PM as per the stage wise breakup mentioned above on the basis of prima facie acceptance of the same quantity by TPI/PMC/Client. However, if there is any deduction during the certification of the quantities in Measurement book by TPI/PMC/Client, the same shall be deducted from the contractor in the successive RA Bill and the balance payment of the earlier certified quantity shall be on hold until the measurement book certification is duly signed and accepted by TPI/PMC/Client.
- In addition to the above, 5% payment shall be kept hold as retention money for the period of 12 Months upto end of Defect Liability Period or as per the approval of project head and same can be released on submission of Bank Guarantee for the same amount.
- All construction material (Other than free issue materials mentioned in this document) shall be in Contractor's Scope with material QAP and Approval (if any required) . If any material/ equipment is provided by PNC to avoid the delay in completion of any work on the behalf of the contractor then actual cost of material / equipment plus 3% handling cost will be charged to contractor for the same.
- Free issue Items: Only Cement + Reinforcement Steel + (Inlet, Outlet, Drain and Overflow) DI Pipe & Fittings will be provide by PNC from PNC Store/Godown. Shifting, transportation, loading/unloading of the same will be in contractor's scope. All other materials which are not mentioned in this point shall be considered as contractor's scope of supply for the successful completion of allotted work. The contractor will have to submit reconciliation of the free issues material with every running bill. Any excess quantities used (after considering wastages) will be debited from the bill.
- Construction Period : The Contractor will complete individual over head tanks in 4 months for all capacities.
- Contractor has to adhere to the above mentioned schedule for completion of the OHT in any circumstance failing which LD will be imposed.
- The Client certification of the works executed by the contractor shall be in scope of the contractor .
- Only Steel Shuttering shall be used for Column Casting.
- The Following Encloser are also part of this work order:
 - Annexure-1: General Condition of Contract. (11 Pages)
 - Annexure-2: Common Check List for Scope of main items. (2 Pages)
 - Annexure-3: Check list for Appointing Sub/Petty Contractors. (1 Page)
 - Annexure-4: Labour Declaration Form. (3 Pages)
 - Annexure-5: Work Phase Plan of each GP post Cover Agreement Date. (1 Page)

NOTE :

PLEASE ISSUE TAX INVOICE ONLY

* We reserve the rights to cancel or amend Order / quantity as per our requirement.

[Handwritten signatures and stamps]



Work Order

PNC Infratech Limited

3/22 D, Civil Lines, NH-2, By Pass Road, Agra 282002 (Uttar Pradesh)
TEL: 91-562-4070000 EMAIL:ho@pncinfratech.com, URL:www.pncinfratech.com
CINNo:L452015DL1999PLC195937

Name and Address:

UTKARSH INFRATECH BUILDER AND CONTRACTOR
G FLR, KHASARA NO. 1229, MEERA
LUCKNOW-226002 Uttar Pradesh, Contact :
Tel:7509123767, Email:UDDMISHRA105@GMAIL.COM

Project Name

Barabanki Water Project (7012)

Vendor Code

1205294

Work Order No.

8500006875

Work Order Date

24.08.2023

PAN No.

BXSPM6841F

Ref. No.

WV-1049

GSTIN

09BXSPM6841F1ZW

Amend. No. & Dt.

R2 / 01.08.2024

For PNC Infratech Limited

(Approved By)

Accepted By

(Authorized Signatory)

UTKARSH INFRATECH BUILDER AND CONTRACTOR

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

1. The Works:

- 1.1 PNC Infratech Limited ("PNC") hereby engages the Subcontractor, as an independent contractor, to perform the Works and the Subcontractor hereby accepts such engagement and agrees to perform the Works in accordance with the terms of this Agreement.
- 1.2 The Work shall be performed under the direction and supervision of representative as appointed by PNC from time to time ("PNC Representative"). The Subcontractor shall fully comply with and cooperate with any instructions issued by PNC Representative. Such instructions shall not be deemed an approval by PNC of any part of the Works and shall not relieve the Subcontractor of any liability or responsibility thereof.
- 1.3 PNC Representative may require the Subcontractor to remove any person who, at the opinion of PNC Representative, (i) performed or persists in any misconduct or lack of care (in terms of safety, health, environment or otherwise), (ii) carries out duties incompetently or negligently, (iii) fails to conform with any provision of this Agreement and applicable law, and the Subcontractor shall replace such person immediately.
- 1.4 The Subcontractor shall commence the performance of the Works within 15 (Fifteen) days from the date of signing of this LOI/ Agreement/ Work Order by both parties. The Subcontractor shall carry out the Works fully and continuously, with the knowledge that time is of essence of this Agreement.
- 1.5 The Subcontractor shall provide all the plant and machinery, equipment's, manpower, shuttering, staging and consumables (such as but not limited to diesel fuel and project materials) (**Free Issue Materials** to be supplied by PNC if any as per attached annexure/as mentioned in SOR) required for the performance of the Works as well as the connection of electric, power, water and all other utilities and infrastructures necessary for the timely performance of the works and shall bear all costs and expenses related to thereto.
- 1.6 Any cost involved in loading/unloading and transportation shall be in Subcontractor's responsibilities whenever the items are issued from PNC designated stock yard.
- 1.7 The reconciliation of the free issue items or material shall be done every month and shall be verified with PNC representative. The same shall be enclosed with every running bill and stock statement.
- 1.8 For progressive issue of free issue items or material shall be entertained only after receipt of reconciliation for previously issued items.
- 1.9 The Subcontractor, following handing over of all the Works to PNC in accordance with the requirements of this Agreement, shall provide any additional related information, and reply to whatever questions and requests for consultations and clarifications that PNC may require, at no additional cost to PNC.
- 1.10 Subcontractor shall maintain the required number of experienced engineers, operators and supervisory staff at site in connection with the respective scope of the work of the Project. Subcontractor shall adhere to the deployment of experienced staff as per the Contract condition, failing which Client shall levy the penalty as mentioned in the Contract which shall be borne by the Subcontractor.
- 1.11 The Subcontractor shall ensure that all the work shall be confirmed to the specifications and standards of the contract agreement executed between PNC SPML-JV & Client.
- 1.12 If any material is supplied to the subcontractor, then supply will be under GST for PNCIL. GST shall be charged on it at applicable rate from contractor and the terms and conditions of sale shall be as mentioned in the Tax invoice with rates pertaining to the date of supply as decided by PNC representative and shall be deemed final.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

2. Representations and Warranties:

The Subcontractor hereby represents and warrants that:

- 2.1** It has all the expertise, experience, manpower, authorizations under charter documents, licenses, permits and financial means required for the purpose of performing the Works in an expert manner and in accordance with the schedule under this Agreement.
- 2.2** It has financial standing and capacity to undertake the works in its scope and as per the terms & conditions of the Agreement.
- 2.3** It shall take all necessary permissions as required in law which are required for to perform all obligations under the contract.
- 2.4** The Sub Contractor has gone through the terms and conditions of Agreement and has inspected the site, examined to scope of project, specification and standards before entering into the present agreement.
- 2.5** PNC shall have right to appropriate any amount towards any loss, or damages it has incurred or any amount which is found payable by the Sub Contractor in the Agreement under question.

3. The Subcontractor's undertakings:

The Subcontractor hereby undertakes that throughout the entire period of this Agreement, the Subcontractor shall:

- 3.1** Perform its obligations in a professional manner, with expertise and competence, shall maintain regular communication with PNC Representative concerning the progress of the Works and provide with all requested data, information and documents relating thereto.
- 3.2** Strictly follow the quality norms and requirements as per the Technical Specifications; the Requirements and BOQ included is as attached hereto, to the full satisfaction of PNC.
- 3.3** Setup a Site office, labour camp and storage facilities for tools & tackles and equipment's as necessary, on the respective site, subject to receipt of access to the site from PNC.
- 3.4** Fully cooperate with and coordinate the performance of the Works with the work carried out by other persons at or near the Site.
- 3.5** Maintain a construction site logbook (diary) for the Works, duly completed and updated in accordance with the applicable law and PNC instructions.
- 3.6** Provide monthly/weekly progress reports (or in a shorter interval if so determined by PNC Representative) with respect to the Works performed and any delay encountered during the period covered by the report or anticipated in the future ("Reports").
- 3.7** Attend status meetings and other meetings as requested by PNC Representative.
- 3.8** Subcontractor shall be entirely responsible to adhere to the highest standards of health, safety and environment regulations at the site during execution of the Project as per the requirements outlined by the Client from time to time including (but not limited to) the following:
 - 3.8.1** Take all precautions to maintain the health of everyone on its behalf, including by ensuring that suitable arrangements are made for all necessary welfare and hygiene requirements and for the prevention of epidemics;
 - 3.8.2** Take care for the safety of all persons entitled to be on the Site; and
 - 3.8.3** Provide for any temporary works (including footways, guards and fences) which may be necessary, due to the execution of the Works, for the use and protection of the public and of owners and occupants of adjacent land.
- 3.9** Subcontractor shall not permit any of the Subcontractor's personnel to maintain any temporary or permanent living quarters within the structures forming part of the Works;
- 3.10** Subcontractor shall provide and maintain the necessary security means at the Site and keep unauthorized persons away, shall take all reasonable steps to protect the environment and limit damage and nuisance to people and property resulting from pollution, noise and other



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

results of its operations; and in the performance of the Works, fully comply with all applicable law, regulations, codes and Technical Specifications and Requirements

4. Works Acceptance and Completion:

4.1 PNC Representative shall issue to the Subcontractor an approval of completion and acceptance of the Works ("Completion Approval") within 30 (Thirty) days following the occurrence of all the following events.

4.1.1 The Works have been completed and successfully commissioned in accordance with this Agreement to the full satisfaction of PNC and any other obligations been fulfilled as required.

4.1.2 The Subcontractor has to clean the Site and has to remove all debris, wreckage, obstruction and any unnecessary remains from work location.

4.1.3 All debit note amounts shall be deducted by PNC from Subcontractor and if any recovery was found to be done, the same shall be verified and deducted by PNC

4.1.4 In the event that any part of the Works was rejected and the rejected part of the Works has been re-done and such re-done parts of the works have been accepted by Client & PNC

4.2 If any issue, dispute or claim shall be outstanding or pending between PNC and the Subcontractor at the time of issuing of the Completion Approval, PNC Representative may condition or limit any confirmation, admission or certification expressed in the Completion Approval to exclude such outstanding or pending issue from the scope of such confirmation, admission or certification.

5. Liquidated Damages for Delays:

5.1 The liquidated damages if any shall be in line with the agreed terms of the contract executed between PNC-SPML JV and the Client which is part of the RFP

5.2 If the sub-contractor fails to complete the works in time period as stipulated above, PNC shall have a right to terminate the contract and/or to get the balance works executed either on its own or through any other agency of PNC's choice, at the risk and cost of the sub-contractor and the decision of PNC in this regard shall be final and binding. The amount so spent towards the cost of such execution along with overheads as computed by PNC shall be deducted from the sub-contractor's due payments/bills and/or performance security and/or retention and the decision of PNC shall be final & binding in this regard and shall be liable to pay the same at its first demand.

5.3 PNC shall be entitled to withhold all such payment(s) under any head(s) and/or account payable to the sub-contractor till all the work are not completed with uniform and corresponding progress in all respects and/or final bill is prepared and certified and/or in case where the work order is terminated or the works are executed at risk and cost of sub-contractor till such time the entire works are not complete and the costs are not worked out..

6. DEFECTS LIABILITY PERIOD:

6.1 The Warranty Period for the purpose of this Agreement shall be 12 (Twelve) months from the date of the issuance of the Completion Approval by PNC Infratech Limited.

6.2 In case any non-compliance with the terms of this Agreement is discovered in the Works during the Warranty Period, the Subcontractor, at its own cost shall promptly, but in no event later than 14 (Fourteen) calendar days after PNC notifies it of said defect .

6.3 If the Subcontractor fails to repair or make such changes to the Works as aforesaid within the time specified by PNC, PNC may, without limiting any of its rights and/or remedies under this Agreement and/or under applicable law and in addition to any such rights and/or remedy, carry out the said repair, re-performance or changes by itself or by means of a third party on its



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

behalf, and be entitled to full reimbursement of all costs resulting there-from, plus an additional 15% of such cost from Subcontractor.

7. Measurement and Evaluation of the Works:

7.1 The Works shall be measured, and valued for payment, in accordance with this Clause. The Subcontractor shall show in each application for payment the quantities and other particulars detailing the amounts, which he considers entitled under this Agreement.

7.1.1 Whenever PNC Representative requires any part of the Works to be measured, reasonable notice shall be given to the Subcontractor, who shall promptly attend and assist PNC Representative in making the measurement, and supply any particulars requested by PNC Representative.

7.1.2 If the Subcontractor fails to attend, the measurement made by or on behalf of PNC Representative shall be accepted as accurate.

7.2 If the Subcontractor examines and disagrees with the records, and/or does not sign them as agreed, then the Subcontractor shall give notice to PNC Representative of the specific aspects in which the records are asserted to be inaccurate. PNC Representative shall review the records and notify the Subcontractor of its decision to either accept or deny them. If the Subcontractor does not give any response to PNC Representative within 7 (Seven) days after receiving PNC decision, the records shall be deemed to be considered accurate.

7.3 Except as otherwise stated in the Agreement and notwithstanding local practice:

7.3.1 Measurement shall be made of the net actual quantity of each item of the installed Works. Unless specifically instructed in writing by PNC Representative, the Works performed in excess of their description in the Drawings and the Technical Specifications shall not be paid for.

7.3.2 The method of measurement shall be in accordance with the Bill of Quantities or other applicable Annexes.

7.4 The rate or price for each item of Work shall be as specified in this Agreement. If there is no rate or price specified for a specific item or Work, then the rate or price to be considered shall be for a similar item or Work, as may be applicable.

7.5 All rates and unit prices in the Bill of Quantities shall not be subject to any escalation, change or adjustment for any reason. Without derogating from the above, the omission of or reduction in quantity of any Works shall not entitle the Subcontractor to any additional payment, nor shall it justify any change in rate or unit price of any Work item.

8. Consideration and Payment:

8.1 In consideration for the full, satisfactory and timely performance of all its obligations hereunder, PNC shall pay the Subcontractor the accumulative sum of the amounts determined by PNC Representative in accordance with Clause 7, exclusive of Goods and Services Tax (GST), to the extent applicable ("Consideration").

8.2 The estimated Consideration including GST is as mentioned in the Work Order however the final Consideration shall be determined in accordance with the actual quantity of the Works executed by the Subcontractor and confirmed as aforesaid.

8.3 The Rate List is as per attached annexure. However, BOQ will be the same as per approved & finally accepted by TPI/PMC/DWSM/SWSM/DM/JJM/UPJL. The same shall be the certified quantity.

8.4 All payments shall be made to the Subcontractor against approved, timely and duly issued original invoices to PNC by the Subcontractor, together with all required and approved supporting information, documents and reports, within 15 (Fifteen) days following the date on which the Subcontractor's invoice was approved for payment and receipt of amount from client.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

- 8.5** The approval of any Subcontractor's invoice by PNC Representative and/or the payment by PNC of any amount on account of the Consideration shall not constitute an approval of the quality of the Works, and shall not relieve the Subcontractor from any liability and/or derogate from any right or remedy available to PNC.
- 8.6** The Consideration represents full, final and complete payment of any and all amounts to which the Subcontractor is or may be entitled in connection with the Works and expenses incurred by the Subcontractor in connection with the Works, including for, repairs, labour, accommodation, transportation, security, insurance, maintenance cost during the Warranty Period, (overhead etc.), all direct and indirect taxes, duties and other compulsory payment applicable to Works or Subcontractor (including TDS) and exclusive of Goods & Service Tax (GST), and all other inputs of any kind, necessary for proper performance and satisfactory completion of the Works and the remedying of any defects therein in accordance with the provisions of the Contract, and for the fulfilment of all other obligations of Subcontractor hereunder.
- 8.7** The Parties hereby agree that the Consideration is final and fixed and shall in no way be subject to any price escalations or variations for any reason, for the duration of this Agreement and until the end of the Warranty Period.
- 8.8** The Subcontractor is solely responsible and liable for the entire payment of any and all taxes, duties, fees, charges or levies imposed on it and/or any of its employees, Subcontractors and anyone on its behalf.
- 8.9** PNC shall be entitled to exercise and/or forfeit the Retention and/or, in the event that the Subcontractor has breached any of his obligations under this Agreement and has not remedied such breach within 10 (Ten) days from receipt of a written notice from PNC specifying the breach and requiring its remedy. In addition, in the event that the Subcontractor fails to extend any Guarantee at least 14 (Fourteen) days prior to its expiration date, PNC shall be entitled to exercise the relevant Guarantee.
- 8.10** Approval/validation charges of all the works as mentioned in the scope of work along with testing, if any required, by TPI/PMC/Client/PNC/Government Engineering College/NIT shall be borne by the Subcontractor.

9. Taxes & Duties & Royalties:

- 9.1** GST shall be payable extra as per prevailing rule. PNC will release GST amount to Subcontractor after submission of proof of deposit of GST and reflection of the same in GSTR-2A.
- 9.2** TDS, as applicable shall be deducted from Subcontractor's bill and necessary TDS Certificates shall be issued.
- 9.3** If Subcontractor fails to submit monthly return of GST and / or payment of GST within one month of supply to PNC, PNC shall have the liberty to recover GST amount from the Subcontractor and / or take penal action.
- 9.4** Before accepting of Work Order, Subcontractor shall check the details of HSN Code/Service code, GSTN (GSTN Number), PNC Address (Delivery address) including state code and Subcontractors dispatch location including state code as applicable. Moreover, Subcontractor shall ensure all applicable Tax rates as mentioned in the Work Order. For any changes, Subcontractor shall inform PNC for making necessary amendment. No deviation shall be entertained post Receipt of accepted work order.

10. Statutory Compliance:

- 10.1** Subcontractor shall fully comply with all the regulatory and statutory requirements/ obligations referred to in the PNC/Client Contract, which shall be read along with the Contract Agreement and the general laws of India as applicable in relation to the execution of the Projects including those stipulated under the labour legislations viz., PF, E.S.I.

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

Contract Labour, Minimum Wages, Labour Cess, Insurance and any other acts as applicable.

- 10.2** Subcontractor shall be entirely responsible for all such adherence and the cost for such compliances shall be borne by the Subcontractor.
- 10.3** All contributions towards capital expenditure, machinery and equipment, working capital contributions, insurance costs and any other expenses that may be required during Project execution shall be arranged/ borne by Subcontractor.
- 10.4** If the aforementioned statutory requirements are not met with the expectations of PNC/Client & documented, PNC shall reserve the right to hold 5% of the contract value on account by default and specifically subcontractor needs to provide EPF & ESI Challans with payment proof of the previous month, otherwise 2% shall be deducted from gross amount of the bill and the same will be deposited in the name of the employees of subcontractor/agency after a period of 2 months of deduction if no payment proof is submitted to PNC.
- 10.5** The work has to be executed in such a planned manner so that there should not be any idling of labours, equipment's and machineries and if any such idling arise, the same shall not be entertained by PNC/Client

11. Guarantees:

- 11.1** PNC shall deduct from each approved invoice an amount equal to 5% of the approved invoice (the "Retention"). The Retention shall be retained by PNC until the issuance of the Completion Approval and shall be released to the Subcontractor subject to and against an unconditional bank guarantee for 5% of the Consideration, issued by a reputable bank agreed upon by PNC, payable on first demand, valid until the end of the Defects Liability Period. In the event, the Retention shall be released to the Subcontractor within 30 (thirty) days from the end of the Defects Liability Period.
- 11.2** PNC shall be entitled to exercise and/or forfeit the Retention Guarantee, in the event that the Subcontractor has breached any of his obligations under this Agreement and has not remedied such breach within 10 (ten) days from receipt of a written notice from PNC specifying the breach and requiring its remedy. In addition, in the event that the Subcontractor fails to extend any Guarantee at least 14 (fourteen) Days prior to its expiration date, PNC shall be entitled to exercise the relevant Guarantee.
- 11.3** For the avoidance of doubt, the provision of the Retention and or the forfeiture thereof by PNC, shall not derogate from PNC remedies under the Agreement and/or the applicable law.
- 11.4** All costs associated with the issuance, maintenance, replacement, renewal and restoration of the Guarantees shall be exclusively borne by the Subcontractor.
- 11.5** The Sub Contractor shall maintain and keep all guarantee/Bank Guarantee alive till such time of the finalization of all accounts and final bill is not certified. The PBG however shall be kept alive till the Defect Liability Period is not over to the satisfaction of the PNC.

12. Completion Schedule

- 12.1** The time of completion for the each project shall be as per the clause provided in RFP/ as agreed in between the client/PNC/ as instructed by PNC representative at site.
- 12.2** PNC shall have the right to request changes to the Works ("Change" and "Change Request", respectively). The Subcontractor hereby undertakes to comply with any Change Request at no additional cost or expense to PNC other than as provided for in this Agreement and without any delay of the Time Schedule, provided that where the Change results in material additional Works outside the scope of the Works ("Additional Works"), the Parties shall agree on the consideration for such Additional Works, which shall be based on

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

the unit prices of the Works detailed as attached annexure/SOR, and the additional time granted to the Subcontractor for the performance of the Additional Works. In the event that the Additional Works include Work items with respect of which no Unit Prices are provided in annexure, the consideration for such items shall be priced by the Subcontractor in accordance with the provisions of Clause 7.4 or, based upon its additional proven Basic / actual (whichever is lower) costs resulting from these Work items plus 10% overhead and profit, and shall be subject to the prior approval of PNC Representative.

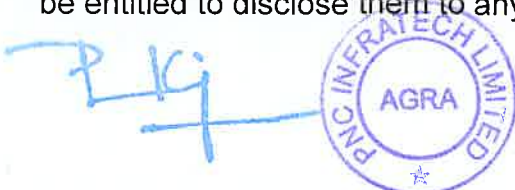
- 12.3** Any dispute between the Parties with respect to the consideration for the performance of any Additional Works shall be referred to arbitration in accordance with Clause 19. Any such dispute or arbitration proceedings shall not entitle the Subcontractor to detain, withhold, postpone, suspend, slow-down or otherwise delay or stop any part of the Additional Work or the Change.
- 12.4** PNC may at any time decrease the scope of the Works (either by reducing the quantities of the Works and/or by omitting items of Works), and the Consideration shall be paid to the Subcontractor in accordance with the decreased scope of the Works as provided in Clause 7. For avoidance of doubt, no compensation shall be paid to the Subcontractor in relation with such decrease.
- 12.5** PNC may, at any time following such Change Request, decide not to proceed with such Change and shall notify the same to the Subcontractor, in writing. PNC shall only be obligated to pay the Subcontractor the direct costs incurred by it for that part of the task already executed and approved by PNC Representative.
- 12.6** In the event the Parties agree on additional works that are not regarded as extra / additional and are not covered by the scope of the Works in this Agreement, then the extra items shall be priced according to the basic / actual (Whichever is lower) costs of labour, hire charges, governmental tax at prevalent rates. as well as 10% Overhead & profit on such value of the works before taxes

13. Insurance:

- 13.1** The Subcontractor shall procure and maintain, during the term of the Subcontractor's liability under this Agreement and any applicable law, at its expense, all necessary insurances. All insurance policies shall be submitted to PNC within 21 (Twenty-one) days following the signing of this Agreement.
- 13.2** Failure on the part of the Subcontractor to procure or maintain the insurance policies providing the required coverage, conditions and minimum limits, shall constitute a material breach of this Agreement upon which PNC may immediately terminate this Agreement, or at its discretion PNC may procure or renew any such policy or any extended reporting period thereto and may pay any and all premiums in connection therewith, and all monies so paid by PNC shall be repaid by the Subcontractor to PNC upon demand, or PNC may set off the cost and expense of the said premiums against any monies due to the Subcontractor from PNC.

14. Intellectual Property:

All reports, specifications, products and all documents and other information supplied by PNC and/or anyone on its behalf and/or produced by the Subcontractor and/or anyone on its behalf in connection with the Works, the Project and/or this Agreement ("Documents"), and all proprietary and intellectual property rights therein shall be and remain the property of PNC as first owner thereof. The Subcontractor shall not be entitled to use the Documents or any part thereof for any purpose other than for the performance of the Works and shall not be entitled to disclose them to any third party without the prior written consent of PNC.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

15. Term and Termination:

PNC shall have the right to terminate this Agreement in whole or in part, at any time for PNC convenience, by giving a 30 (Thirty) days' prior written notice of such termination to the Subcontractor.

PNC shall have the right to terminate this Agreement without prior notice in any of the following events.

15.1 If the other Party is found to be guilty of dishonesty or misconduct or breach of this Agreement; and

15.2 If the other Party becomes bankrupt or enters into liquidation or has a receiver, manager or administrator appointed over the whole or any material part of its assets or undertakings.

16. Effects of termination:

16.1 Upon expiration or termination of this Agreement for any reason, the Subcontractor shall, desist and discontinue all actions related to the Works and at no additional cost to PNC Infratech Limited, shall immediately transfer and deliver to PNC Infratech Limited, at its expense, any and all Documents and information related to this Agreement and the Project and shall not keep any copy of any part thereof unless specifically agreed upon in writing at that time by PNC Infratech Limited. The Subcontractor shall cooperate at all times with PNC in affecting the transfer.

16.2 The Subcontractor shall be entitled to payment for the Works that were performed by it and approved by PNC Representative up until the time of termination, and without derogating from PNC rights under this Agreement or any applicable law, in the event of termination by PNC in any of the events mentioned in Clause 15.2 above, PNC shall be entitled to set-off any damage, loss and expense caused to or suffered by PNC in connection with such termination.

16.3 In the event of termination of this Agreement for any reason and notwithstanding thereof, the terms of Clauses 14 [Intellectual Property], 17 [Confidentiality], 18 [Liability and Indemnification] and 19 [Law and Dispute Resolutions] shall survive the termination and remain in full force and effect and shall continue to bind the Parties in all respect.

17. Confidentiality:

Both during the term of this Agreement and after its termination, the Subcontractor undertakes:

17.1 To maintain all the Confidential Information in strict confidence and to refrain from any disclosure and/or publication and/or communication of the Confidential Information, in whole or in part, either directly or indirectly, to any third party whatsoever, without receiving the prior written approval of PNC Infratech Limited;

17.2 Not to use any Confidential Information for any purpose other than the performance of the Works under this Agreement; and

17.3 Upon PNC first written request, to return to PNC all Confidential Information of any type, as well as all copies thereof.

17.4 "Confidential Information" means this Agreement and any Documents and/or information related to the Project and/or the Works and/or concerning PNC and/or PNC subsidiaries or affiliates which are non-public, confidential and/or proprietary in nature which may be provided to the Subcontractor under this Agreement, or that the Subcontractor may become acquainted with or has access to due to the Works it performs under this Agreement as well as any materials, documents, charts, designs or other information, in any form, prepared by the Subcontractor in connection with this Agreement.



PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

18. Liability and Indemnification:

- 18.1** The Subcontractor shall be responsible for the full, timely and satisfactory performance of the Works hereunder, and shall be fully responsible and liable for, and shall fully indemnify and hold PNC harmless, its affiliates, officers, directors, clients, agents and employees ("Indemnities") from and against any damage, loss, expense, costs and/or harm (including, without limitation, bodily injuries, damage to property and legal fees), incurred (whether directly or indirectly) by PNC and/or any of the indemnities and/or the Subcontractor and/or anyone acting on its behalf (including, without limitation, its employees, agents and Subcontractors), arising out of or related to any act or omission of the Subcontractor and/or anyone acting on its behalf or under its supervision, including, without limitation, its employees, agents and Subcontractors ("Causes").
- 18.2** The Subcontractor shall defend PNC and any of the indemnities from and against any demands, claims, suits and proceedings (civil or criminal) asserted against any of them in connection with any of the Causes. PNC shall notify the Subcontractor of any such claim, suit or action and allow it, as much as it depends on PNC, to participate and defend PNC against any such proceedings.
- 18.3** PNC shall not bear any responsibility and/or liability whatsoever, to the Subcontractor, its employees, consultant or anyone on its behalf, except as expressly and specifically indicated in this Agreement and to the extent specified herein, and the Subcontractor shall not have and hereby waives any additional relief and/or claim against PNC. Without derogating from the generality of the aforesaid, PNC shall not bear any responsibility and/or liability whatsoever, to the Subcontractor, its employees, consultants or anyone on its behalf or under its supervision, in relation to use of, or reliance upon any information relating to the execution of the Subcontractor's obligations hereunder.
- 18.4** In case of violation of any terms & conditions of this work order or any illegal pressure imposed on PNC or theft, then PNC shall have sole right to cancel this work order with immediate effect and then balance payment of subcontractor's dues/ bills, shall be forfeited to the extent of such damages caused to PNC, PNC-SPML JV on account of such theft/misrepresentation.

19. Law and Dispute Resolution:

- 19.1** This Agreement and the rights and obligations of the Parties hereunder shall be governed and construed in accordance with the laws of India without regard to its conflict of law principles.
- 19.2** If a dispute, claim or controversy arises out of or in connection with this Agreement, the Parties shall negotiate in good faith in an attempt to reach an amicable settlement. If the disputed matter is not settled amicably between the Parties within 30 (thirty) days, such disputed matter shall be finally settled in arbitration as set out herein below.
- 19.3** Any dispute arising between the Parties with relation to this Agreement shall be referred to Arbitration comprising of a sole arbitrator to be appointed by PNC. Any orders/ directions/ award of the sole arbitrator shall be final and binding on the Parties. The arbitration proceedings shall be held in English language in accordance with the Arbitration and Conciliation Act, 1996 and the Rules made thereunder, or any statutory modification(s) or re-enactment(s) thereto for the time being in force. The venue of Arbitration shall be at Agra.
- 19.4** The cost of the arbitration proceedings shall be first borne equally by the Parties and the arbitrator shall be requested to rule on the division of these costs between the Parties along with his principle decree.
- 19.5** The Parties shall continue to perform their respective obligations under the Contract not with standing any referral of a dispute to arbitration herein.

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

20. Miscellaneous:

- 20.1** The Subcontractor shall have to hold a valid license under the Contract labour (Regulation & Abolition) Act 1970, wherever it is required.
- 20.2** The Subcontractor shall have to pay all fee / dues and maintain such registers and records containing such particulars of contract labour employed by them under the Contract Labour (Regulation and Abolition) Act, 1970, EPF Scheme-1952, 1995 & Amendment - 2016, Payment of wages Act-1936, Workmen's Compensation Act- 1923 or any other law including particulars regarding the nature of work performed by the contract labour.
- 20.3** The Subcontractor shall make the arrangement of food, snacks and tea/soft drinks for such workers and PNC shall not be responsible for the same.
- 20.4** If PNC finds that any worker of the Subcontractor is not able to carry out the Work satisfactorily or is otherwise physically unfit to carry out the Work involved, the Subcontractor shall withdraw such worker from the duty assigned to him and substitute some other worker on his behalf.
- 20.5** Every worker during the period of his work will be bound to observe the rules and regulations of PNC relating to his movement, dress and discipline. If there is any breach thereof by any such worker and PNC suffers any penalty, monetary loss or other charges the Subcontractor shall be responsible for the same and the Subcontractor shall reimburse PNC for any such liability.
- 20.6** The Subcontractor shall be responsible for the payment of wages to each worker when payable, and PNC can nominate an authorized representative to be present at the time of wage disbursement by the Subcontractor who shall certify the amounts paid as wages by the Subcontractor in the manner prescribed by applicable law.
- 20.7** Every worker engaged by the Subcontractor shall be as per applicable labour laws.
- 20.8** The Subcontractor should provide a list of Names, Aadhaar & Bank details of worker to PNC in prescribed form before engaging any labour at site.
- 20.9** It is the responsibility of the Subcontractor to see that the workers do not go on any strike or stop Work.
- 20.10** The Subcontractor shall comply with all law and regulations governing the relation between the employer and employee which are in force as if the Subcontractor is the employer and the worker his employee. The Subcontractor agrees to indemnify and keep indemnified PNC against any loss, charges and expenses suffered by it on account of breach of any law.
- 20.11** In case of any discrepancy or conflict between any of the annexes, the provisions of the Annex so determined by PNC Representative, shall prevail.
- 20.12** No amendment to or modification of this Agreement shall be effective unless made in writing, duly signed by all the Parties.
- 20.13** **Force Majeure:** If any event beyond the reasonable control of either Party occurs, which (i) constitutes exceptional and unforeseeable circumstances, including war and terrorist activities (but excluding strikes, shortage in work force etc.), which, despite the exercise of diligent efforts, such party was unable to prevent, limit or minimize, and (ii) the scheduled performance of any major part of the Works or their completion date, then provided that such event was acknowledged and approved as an event of Force Majeure by PNC, the Party claiming such event shall be excused from whatever performance is prevented thereby to the extent so affected. In such circumstances, neither Party shall be entitled to terminate this Contract on the basis of such non-performance or non-payment
- 20.14** The Subcontractor shall not assign, transfer, sublet, sell, pledge or otherwise dispose of, in whole or in part, its rights or obligations hereunder, without PNC prior written consent. PNC may assign its rights and/or obligations under this Agreement in whole or in part, to any of

PNC INFRATECH LIMITED

Annexure-1 (General Conditions of Contract)

its affiliated companies and/or to PNC, or to encumber or pledge any of its rights under the Contract, without the consent of Subcontractor.

- 20.15** PNC shall be entitled to set-off or withhold from the Consideration payable to the Subcontractor hereunder, any amounts owed by the Subcontractor to PNC under any contract or agreement and/or, under any applicable law.
- 20.16** Any and all notices, requests, consents and communications required or permitted to be given or made pursuant to this Agreement shall be in writing and deemed to have been given when delivered in person to the other Party to whom the communication or document is addressed or when sent by registered mail or confirmed facsimile to such Party at the addresses detailed set forth above. Each of the Parties hereto shall be entitled to give the other Party written notice of any change of address or the authorized representative relating to the Party giving such notice.
- 20.17** No waiver of any term or condition of this Agreement shall be considered as a waiver of any other breach of such term or condition, or of any other term or condition, nor shall any failure to comply any provisions hereunder. Any waiver by either party to any provisions of this Agreement shall only be binding if made and confirmed in writing.
- 20.18** This Agreement cancels, supersedes and replaces any and all prior agreements or Understandings, oral or written, between the Parties of this Agreement with regard to its subject matter.
- 20.19** The above rate are for completion of all activity in all respect as stated in the BOQ and Inclusive of all direct and indirect cost, overhead and profit margin for exceeding the work and the quantity given in the above work order are tentative and increased are decreased to any extent.
- 20.20** The Dispute arising out of the contract during the execution of the work that are on Completion which could not be amicable solved by the engineer shall be referred to CMD of employer ("PNC") for his decision, which will be binding on both the parties.
- 20.21** Any further dispute will be addressed only to court in Agra jurisdiction.

PK





NAME OF PROJECT: IMPLEMENTATION OF VARIOUS RURAL WATER SUPPLY PROJECTS IN THE STATE OF UTTAR PRADESH UNDER THE JAL JEEVAN MISSION.

NAME OF EMPLOYER: PNC INFRATECH LIMITED

Subject: Common Check List for Construction of Boundary Wall (BW) & Pump House (PH), Interlocking Tiles Pavement , Other related Units Etc., Construction of RCC Over Head Tank of desired capacity & staging above ground level & Pipe laying work in all respect including hydrotest & Associated civil Work

Revision-R1
Dated: 24-03-2023**Check List**

Sl. No.	Description	Scope	Signature of PNC Representative	Signature of Contractor's Representative
1	Approval/ Validation charges of all works & Joint Measurement book (MB) from TPI/PMC/Client/PNC/Government Engineering College/NIT	Contractor		
2	Details of Labour attendance of all working days to be submitted to PNC. PNC shall verify as and when required.	Contractor		
3	List of Names, Aadhaar & Bank details of worker shall be submitted to PNC in prescribed form before engaging any labour at site.	Contractor		
4	Monthly muster roll upto last month within 3 working days shall be submitted to PNC	Contractor		
5	Electricity for Construction & lighting Purpose for night work.	Contractor		
6	Labour PF, ESI, GST Registration, Labour License is to be taken care by contractor	Contractor		
7	TAXES : Only TDS and Labour cess will be deducted as applicable. GST will be paid extra as applicable. Relevant documents shall be submitted to PNC on monthly basis.	Contractor		
8	Contractor will deposit EPF(both side), ESIC, on the basis of furnished documents by contractor i.e. Muster roll & wages register upto closing month If Contractor does not fulfill Statutory Compliance then, PNC will deduct Cumulative of 5% from over all bill and If Contractor does not provide EPF and ESI Challans only with payment proof for the labour engaged in issued work order job, then PNC will deduct 2% from over all bill.	Contractor		
9	Water for construction / hydro test and curing	Contractor		
10	Labours for all testing related to Construction work, like Compaction Test, Cube Testing etc shall be arranged by contractor. PNC shall set up lab facilities to help the contractor in testing as possible. If any additional tests required or if PNC lab is found occupied with other contractor testing, then contractor shall get it tested at the approved third party lab agency as suggested by TPI/Client/PNC at contractors cost.	Contractor		
12	Work Man Compensation Policy	Contractor		
13	Labour Enforcement Officer - Documentation and Co-Ordination	PNC		
14	One bill per month. Bill should be make upto 25 th of each month and submit to PNC office on 28th of every month with muster roll.	Contractor		
15	Curing of all Civil Structures at regular Interval	Contractor		
16	Dewatering of surface/ rain water by dewatering pump.	Contractor		
17	Excavation by mechanical (as JCB & POCLAIN depending on works)	Contractor		
18	No Idle payment : Due to any hinderance at work or any other reasons, no labour/Idle payment will be made by PNC	Contractor		
19	All tools and tackels, Plants and Machineries/ equipments required for construction and testing of civil or pipeline work in contractor scope.	Contractor		



Check List

Sl. No.	Description	Scope	Signature of PNC Representative	Signature of Contractor's Representative
20	All PPE: Safety Helmet, Safety Shoes, Safety Belt, Safety Jacket and if Issued by PNC Store the amount will debited from contractor bill.	Contractor		
21	All construction material shall be in Contractor's Scope ,with material QAP and Approval if any required. If any material/ equipment will be provided by PNC to avoid the delay in completion of any work on the behalf of the contractor then actual cost of material/ equipment plus 3% will be debited from the payments/ invoices or according to tax invoices issued to contractor for the same.	Contractor		
22	In Case of Civil woks & OHT Work Orders Only Cement and Reinforcement Steel will be provided by PNC	PNC		
23	In Case of Pipeline Work Orders Pipes/ Fittings/Valves/Specials/FHTC material will be provided by PNC & Cement, Reinforcement steel, Bricks, Sand Aggregate, etc. for associated civil works will be in Subcontractor's scope.	PNC/ Contractor		
24	Cement and Steel to be used as per BBS and Design Mix. Any extra material consumed shall be debited from contractor bill.	Contractor		
25	All Plumbing, Electrical Item/Fixtures or any other items other than free issue materials and its fixing work shall be in contractor scope.	Contractor		
26	All consumables for executing the work other than free issue materials which may include diesel, shuttering materials, scaffoldings, Doors, windows, tiles, paints etc but not limited to, shall be in contractor scope.	Contractor		
27	Reconciliation of free issue materials on monthly basis.(In case of loss/damage, cost of same shall be debited from contractor)	Contractor		
28	Non-satisfactory labour can be removed within a day notice by PNC, full and final settlement to be ensured by contractor.	Contractor		
29	Progress Report and Photographs on daily basis.	Contractor		
30	Healthcare, Food, Accommodation, & Sanitation of Work force.	Contractor		
31	Secutity of all equipments, mapower, materials of contractor shall be in contractor scope.	Contractor		
32	Provide clear and compacted access to execution location and its maintenance till the end of the project execution/ WO which ever is earlier is in contractor scope.	Contractor		
33	Protection of existing utilities (underground/in open) such as sewer lines/water lines etc.			
34	Prepare as-built drawings for the works executed and its approval from TPI/Client at site level	Contractor		
35	Delay reasons shall be registered and updated to PNC on weekly basis	Contractor		
36	Clearance of punch points issued from TPI/ Client/ PNC	Contractor		
37	Backfilling of trenches/ foundation pits with material as per BOQ Specifications (rates already included in relevant items) for civil/pipeline works	Contractor		
38	Manual excavation (if any required/performed) will be in contractor's scope and rate for it will be same as that for mechanical excavation	Contractor		
39	If the sub-contractor fails to execute at the required output requested by PNC, PNC shall depute additional contractor at the workplace of existing contractor and the retention money of both contractors withdrawn work shall be released afterb completion of overall withdrawn work and as per retention money clause from the date of completion of said work.	Contractor		
40	Schedule for the work, catch up plans, labour, plant & machinery mobilization plan shall be submitted to PNC by contractor and be revised and resubmitted on monthly basis as per discussion with engineer in charge (PNC representative).	Contractor		



ANNEXURE-3**CHECK LIST FOR APPOINTING SUB / PETTY CONTRACTORS**

Date :

Project :

1	Name of Contractor	
2	Address	
3	Name of Partners / Directors / Proprietor	
4	Name of Contact Person	
5	Contact details & Mobile No	
6	Aaadhar No	
7	PAN Card No	
8	GST No (Copy of GST Registration Certificate to be submitted)	
9	Contractor's License Number and State	
10	Date of Expiry	
11	Status of Firm (CIN No., in case of Company/Private Ltd)	
12	Total Turnover in the last three financial years (Indicate the amount in lakhs)	
13	Details of Skilled / Semi-skilled / unskilled labours to be deployed	
14	Details of previous experience (attach list of clients)	
15	Bank details (Copy of cancelled cheque to be submitted)	
16	PF Registration No. (Copy of Regn. Details to be provided)	
17	ESIC Registration No. (Copy of Regn. Details to be provided)	
18	Workmen Compensation Policy with Medical /Accidental Rider	

I / We hereby declare that the details furnished above are true and correct to the best of our/my knowledge and belief and I undertake to inform you of any changes therein, immediately

Date :

Authorised Signatory
(Signature and stamp)

दिनांक :

ANNEXURE - 4

सेवा में,
प्रोजेक्ट इंचार्ज
पी एन सी इंफ्राटेक लिमिटेड

साइट- जल जीवन मिशन के तहत उत्तर प्रदेश राज्य के अंतर्गत विभिन्न ग्रामीण जलापूर्ति परियोजनाओं का कार्यान्वयन

{विषय=लेबर वैधानिक अनुपालन सम्बंधित उद्घोषा एवं सहमति }

महाशय,

मैं.....पुत्रश्री.....अपने
फर्म.....

वर्क आर्डर नंबरके
द्वारा पी एन सी -एस पी एम एल-जेवी को जल जीवन मिशन के तहत उत्तर प्रदेश राज्य के विभिन्न ग्रामीण जलापूर्ति परियोजनाओं में उपलब्ध कराये गए दैनिक मजदूरों के सम्बन्ध में यह घोषणा करता हूँ की मैं ठेका श्रम रेगुलेशन एवं उन्मूलन अधिनियम 1970 ,मजदूरी भुगतान अधिनियम 1936 , न्यूनतम मजदूरी भुगतान अधिनियम 1948 ,कर्मचारी भविष्यानिधि अधिनियम 1952 एवं 1995 ,कर्मचारी राज्य बीमा 1948 अधिनियम के अंतर्गत सभी नियमों का पालन करूँगा।

उपरोक्त सभी नियमों एवं अधिनियमों के अलावा श्रम प्रावधानों के अधीन अन्य लागू होने वाले प्रावधानों के पालन के लिए जिम्मेदारी लेता हूँ एवं इस एवज पूर्ण रूप से आस्वस्त करता हूँ।

प्रत्येक माह के दौरान कार्य में लगाए गए मजदूरों की जानकारी उनके कार्य में लगाए जाने के पहले दिन से ही प्रस्तुत कर दूँगा एवं ठेका श्रमिक अधिनियम द्वारा लगाए जा रहे प्रावधानों को ध्यान में रखते हुए ही कार्य प्रारम्भ करवाऊँगा एवं अधीनस्थ सभी प्रावधानों का पालन करूँगा।

1.1 मैं यह सुनिश्चित करता हूँ की श्रम अनुबंध (विनियमन और उन्मूलन) अधिनियम 1970 के तहत जहां भी आवश्यक हो, के तहत एक वैध लाइसेंस धारण करूँगा

1.2 मैं यह सुनिश्चित करता हूँ की ऐसे श्रमिकों के लिए भोजन, स्नेक्स और चाय / शीतल पेय की व्यवस्था करूँगा और पी एन सी इसके लिए जिम्मेदार नहीं होगा

1.3 मैं यह सुनिश्चित करता हूँ की अगर पी एन सी को पता चलता है कि कोई भी व्यक्ति संतोषजनक तरीके से कार्य करने में सक्षम नहीं है या अन्यथा भौतिक रूप से शामिल कार्य को पूरा करने में असमर्थ है, तो ऐसे कार्यकर्ता को उसके द्वारा सौंपा गया कर्तव्य से वापस लेते हुए और उसकी ओर से किसी अन्य कार्यकर्ता को प्रतिस्थापित करेगा

1.4 मैं यह सुनिश्चित करता हूँ की उनके कार्यकाल की अवधि के दौरान प्रत्येक कर्मचारी अपने ड्यूटी , पोशाक और अनुशासन से संबंधित पी एन सी के नियमों और विनियमों का पालन करने के लिए बाध्य होगा यदि ऐसे किसी कर्मचारी द्वारा पी एन सी के नियमों का कोई उल्लंघन करता है और इस एवज पी एन सी को कोई दंड, मौद्रिक हानि



या अन्य आरोपों का सामना करना पड़ता है तो मैं इसके लिए ज़िम्मेदार होऊंगा और इस तरह की देयता के लिए पी एन सी की छति की प्रतिपूर्ति करूंगा

1.5 मैं यह सुनिश्चित करता हूँ की देय होने पर प्रत्येक कर्मचारी को मजदूरी के भुगतान के लिए ज़िम्मेदार होऊंगा , और पी एन सी ठेकेदार द्वारा मजदूरी वितरण के समय उपस्थित होने के लिए एक अधिकृत प्रतिनिधि को नामित कर सकता है जो ठेकेदार द्वारा निर्धारित तरीके से मजदूरी के रूप में भुगतान की गई राशि प्रमाणित करेगा लागू कानून द्वारा

1.6 मैं यह सुनिश्चित करता हूँ की मेरे द्वारा लगाए गए प्रत्येक कर्मचारी 22 वर्ष से कम नहीं होंगे और 50 वर्ष से अधिक उम्र के नहीं होंगे और प्रत्येक कार्यकर्ता के सम्बन्ध में सुनिश्चित करूंगा कि वह किसी भी बीमारी या बड़ी बीमारी से पीड़ित नहीं है और वह शारीरिक रूप से कार्य करने के लिए सक्षम है

1.7 मैं यह सुनिश्चित करता हूँ की पी एन सी को पूर्ण पते और कार्यकर्ता के नाम एवं आधार पहचान पत्र अनिवार्य तौर से कार्यकर्ता को लगाए जाने के पहले दिन ही प्रदान कर दूंगा

1.8 मैं यह सुनिश्चित करता हूँ की मेरे द्वारा प्रदान किये हुए कोई भी मजदुर अथवा कर्मचारी किसी भी हड़ताल पर नहीं जायेंगे या काम बंद नहीं करेंगे

1.9 मैं यह सुनिश्चित करता हूँ की नियोक्ता और कर्मचारी के बीच संबंधों को नियंत्रित करने वाले सभी कानूनों और विनियमों का पालन करूंगा जो कि लागू हैं जैसे कि लगाए गए श्रमिक , नियोक्ता और कार्यकर्ता उसका कर्मचारी है किसी भी कानून के उल्लंघन के कारण किसी भी नुकसान, शुल्क और खर्च के खिलाफ क्षतिपूर्ति करने के लिए सहमत हूँ

1.10 इस समझौते और उसके किसी भी अनुबंध के बीच किसी भी विसंगति या संघर्ष के मामले में, इस समझौते के प्रावधान प्रबल होंगे किसी भी अनुबंध के बीच किसी भी विसंगति या संघर्ष के मामले में, पी एन सी के प्रतिनिधि द्वारा निर्धारित अनुबंध के प्रावधान, प्रबल होंगे

1.11 इस समझौते में कोई संशोधन या संशोधन तब तक प्रभावी नहीं होगा जब तक कि सभी पार्टियों द्वारा विधिवत हस्ताक्षरित नहीं किया जाता है

1.12 मैं यह सुनिश्चित करता हूँ की पी एन सी की पूर्व लिखित सहमति के बिना, पूरे या आंशिक रूप से, इसके अधिकार या दायित्वों को हस्तांतरण, सबलेट, बिक्री, प्रतिज्ञा या अन्यथा निपटान नहीं करेगा पी एन सी इस समझौते के तहत अपने अधिकारों और / या दायित्वों को पूरी तरह से या कुछ हिस्सों में, किसी भी संबद्ध कंपनियों और / या पी एन सी को, या ठेकेदार की सहमति के बिना अनुबंध के तहत अपने किसी भी अधिकार को प्रतिज्ञा करने के लिए असाइन कर सकता है

1.13 मैं यह सुनिश्चित करता हूँ की किसी भी अनुबंध या समझौते के तहत या किसी भी लागू कानून के तहत पी एन सी को मेरे द्वारा प्रदत्त किसी भी राशि को मुझे देय संविधान से सेट-ऑफ या रोकथाम के हकदार होंगे

1.14 किसी भी और सभी नोटिस, अनुरोध, सहमति और संचार आवश्यक या इस समझौते के अनुसार दिए जाने या अनुमति देने की अनुमति लिखित में होगी और माना जाता है कि जब किसी अन्य पार्टी को व्यक्तिगत रूप से पहुंचाया जाता है जिसके लिए संचार या दस्तावेज संबोधित किया जाता है या कब पंजीकृत मेल द्वारा भेजा गया है या ऊपर बताए गए पते पर ऐसी पार्टी को पुष्टि की गई है यहां से प्रत्येक पक्ष अन्य पक्ष को पते के किसी भी परिवर्तन या पार्टी से संबंधित अधिकृत प्रतिनिधि को ऐसी सूचना देने के लिखित नोटिस देने का हकदार होगा

PK



1.15 इस समझौते की किसी भी अवधि या शर्त का कोई छूट या उल्लंघन इस तरह की अवधि या शर्त, या किसी भी अन्य कार्यकाल या शर्त के किसी भी अन्य उल्लंघन की छूट के रूप में कार्य नहीं करेगा, न ही किसी भी प्रावधान को लागू करने में विफलता इस तरह की छूट के रूप में संचालित होगी प्रावधान या यहां कोई अन्य प्रावधान किसी भी पक्ष द्वारा इस समझौते के किसी भी प्रावधान के लिए कोई छूट केवल लिखित नहीं होगी और लिखित में पुष्टि की जाएगी

1.16 यह समझौता इस विषय के पक्ष में इस विषय के पक्ष में किसी भी और सभी पूर्व समझौतों या समझों, मौखिक या लिखित, को रद्द और प्रतिस्थापित करता है

इस सम्बन्ध में **प्रत्येक माह के एवज कर्मचारी भविष्य निधि अधिनियम एवं कर्मचारी राज्य बीमा अधिनियम** के अंतर्गत किये जाने वाले मासिक योगदान को यदि मेरे द्वारा जमा नहीं करा पाने में असक्षम होते हैं तो कंपनी को पूर्ण अधिकार देता हूँ की कंपनी अपने भविष्य निधि एवं कर्मचारी राज्य बीमा अधिनियम के अंतर्गत लागू दर से जमा कर दे एवं कंपनी द्वारा इस हेतु जमा कराये गए प्रत्येक माह के योगदान को मेरे द्वारा लगाए जा रहे मासिक बिल से काटने की इजाजत देता हूँ एवं इस बाबत मैं इस सपथ पत्र के द्वारा अपनी सहमति प्रदान करता हूँ एवं इस सम्बन्ध में कंपनी को पूरी जानकारी उस निहित माह के (पुरे कार्य दिवस एवं मजदूरों का विवरण) सम्बंधित माह के अंतिम दिन पी एन सी इंफ्राटेक लिमिटेड के आगरा कार्यालय में जमा कर दूंगा।

आपकी सेवा में

मेसर्स



PK

Annexure : 5

Work Phase Plan of Each GP post Cover Agreement Date

Sr. Nos	Module Description	Work Description	Phase-I	Phase-II	Pre-Trial Run	Remarks
1	Borewell (CM-3)	Drilling, Lowering, Compressor, OP Unit and Water Testing	0-1 Month		6 Months	
2	Pump House (CM-1)	Overall Completion	0-2 Months		-do-	
3	HDPE Pipe Laying (CM-10)	Pipelaying, Hydrotest, FHTC installation, Overall Line testing	0-1.5 Months		-do-	
4	Over Head Tank (CM-2)	Substructure	0-2 Months		-do-	
		Superstructure		2-4 Months		
		Installation of DI Pipes, Specials and other accessories required for overall completion		5th Month		
		Commissioning & Testing		6th Month		
5	Solar (CM-6)	Support Foundation	0-2 Months		-do-	
		Structure erection		3-4 Months		
		Panel Installation and other related works for overall completion		4-5 Months		
6	Boundary wall with Gates (CM-1)	Substructure	0-2 Months		-do-	
		Superstructure	2-3 Months			
		Gate Installation		3-4 Months		
7	Interlocking Paver Road (CM-1)	GSB & WBM	2-3 Months		-do-	
		Interlocking paver installation		5-6 Months		
8	Submersible Pumps (CM-4)	Installation of Submersible Pumps with all accessories complete in all respects	2-3 Months		-do-	
9	E&I Works (CM-5)	Panels, Cabling, glanding, termination complete in all respects		4-5 Months	-do-	
10	Diesel Generator (CM-5)	Foundation and DG installation complete in all respects	2-3 Months		-do-	
		Earthing Pit and complete in all respects	2-3 Months			
	Phase-I Completion		2-3 Months		-do-	
	Phase-II Completion	Completion in all respect for start Trial Run	5 Months		-do-	
	Commissioning		6 Months		-do-	

Note:

1. The Cover Agreement date is to be read as zero date.
2. Only applicable modules to be referred by the contractor.
3. If there is any delay in Sub-Contractor's performance. Which is conclusively proved that it is on account of reason solely attributable to the sub-contractor, resulting in extension of overall schedule for completion of project as given above, then PNC shall be entitled to recover from the sub-contractor by way of liquidated damages of 10% of total value of work.
4. In case of poor performance by the agency, PNC reserves the right to engage any alternate agency/labour team at agency's risk and cost. The expenses incurred on completing the balance work will be debited from your dues along with 20% supervisory charges on labour component.

